

CITATION: Musselman et al v. 875667 Ontario Inc. et al, 2010 ONSC 3177
COURT FILE NO.: C-24-05
DATE: 2010-06-01

ONTARIO
SUPERIOR COURT OF JUSTICE

BETWEEN:

Gloria Musselman, V. Gerald Musselman,
Karey Musselman, Carolyn Mussleman,
Mark Musselman, Leanna Wigboldus by her
Litigation Guardian Carolyn Musselman,
and Lucas Musselman by his Litigation
Guardian Mark Musselman

Plaintiffs

– and –

875667 Ontario Inc. carrying on business as
Cities Bistro, Brian Heasman, The
Corporation of the City of Toronto, Ida
Dominelli, Minas Tzortzis and Stella
Tzortzis and Fred Dominelli

Defendants

Jerome R. Morse, for the Plaintiffs

Louis A. Frapporti and Kathleen Bingham,
for the Defendants Ida Dominelli and Fred
Dominelli

HEARD: October 13, 14, 15, 16, 19, 20, 21,
22, 23, 26, & 27, November 2, 3, 4, 5, 6, 10,
12, 13, 16, 18, 19 & 20, 2009.

THE HONOURABLE MR. JUSTICE R. D. REILLY

The Genesis of the Action

[1] The evening of the 10th of February 2004 began as a happy family occasion. The plaintiff, Ms. Gloria Musselman, attended with her husband Gerald, her son Mark, and her daughter-in-law Yael at the Cities Bistro to have dinner. Cities Bistro is a small restaurant located at 859

Queen Street West in the city of Toronto. The dinner was intended to celebrate the 73th birthday of Gerald Musselman.

[2] Toward the end of the meal, Gloria Musselman left the table to attend the ladies washroom. Washrooms were located at the basement level one floor below the dining room. To gain access to the washroom, Ms. Musselman was required to descend a series of steps comprised of eight risers. She then had to turn ninety degrees to her right and descend two further risers to reach the basement floor. She apparently did so without event. The evidence is clear that after using the washroom, she then began to ascend the stairs to return to the dining room. At some point in ascending the upper series of steps (comprised of eight risers) she lost her balance and fell backwards, coming to rest on the landing, which was as noted above, located two risers above the basement floor.

[3] Her family and a waiter on duty were alerted to her fall by a yell or a scream which accompanied her fall. I shall deal in further detail below with the mechanism of her fall and what caused her to lose her balance.

[4] Her son Mark was the first to reach her side. It was apparent that she was very badly injured. Mark eased his mother onto the basement floor and began to apply mouth to mouth resuscitation. 911 was called and shortly thereafter paramedics arrived. They took her immediately to St. Michaels Hospital where she began to receive intensive medical care. Her most serious injury was a fracture of the second cervical vertebra (the C-2) which has rendered her a quadriplegic.

[5] She was transferred the next day to the Toronto Western Hospital where she continued to receive care until May 4, 2004. On that date she was transferred to the Toronto Rehabilitation Institute (Lyndhurst) where her care continued until her discharge on December 16, 2004. On that date she returned to her family home in Cambridge, where she lives today. I will deal in greater detail with her injuries below but would note at this point that she still requires constant care from family members and professional health care providers.

[6] It is the plaintiff's position that Gloria Musselman fell and was severely injured as a result of the construction and condition of the stairs leading to the basement in the Cities Bistro. The plaintiff claims negligence on the part of the city of Toronto for failing to ensure that the stairs were constructed in a manner that would provide for safe use for patrons of the Cities Bistro and specifically by Gloria Musselman. The plaintiff's also claim against Cities Bistro (875667 Ontario Inc.) Brian Heasman, Ida Dominelli and Fred Dominelli as "occupiers" of the Cities Bistro pursuant to the terms of *The Occupiers Liability Act* R.S.O. The plaintiffs Karey Musselman, Carolyn Musselman, Mark Musselman, Leanna Wigboldus and Lucas Musselman pursue derivative claims pursuant to the *Family Law Act*.

[7] Ida Dominelli and Fred Dominelli have actively defended the claims against them, have cross claimed for contribution and indemnity against Brian Heasman and have counter claimed against Gerald Mussleman and Mark Musselman for any negligence on their part that may have contributed to Gloria Musselman's fall. Suffice to say, their cross claims and counter claims are dependent on a finding of liability on their part with respect to damages to which the plaintiffs may be entitled.

The Parties

[8] It may be noted that after the Statement of Claim was filed, the defendant Brian Heasman filed in bankruptcy. Thus BDO Dunwoody Limited was added to the claim as his Trustee in Bankruptcy. On October 26, 2009, the Bankruptcy Court directed that the automatic Stay of Proceedings against Brian Heasman be lifted. Thus he became liable again for exposure to damages in his personal capacity. It may be noted as well that Minas Tzortzis and Stella Tzortzis were previous title holders to the subject property. In fact, Stella Tzortzis passed away on January 17, 2001. All claims against Minas Tzortzis and Stella Tzortzis have been abandoned. I will therefore briefly touch upon the remaining parties.

[9] The principal plaintiff Gloria Musselman was born on August 21, 1932. She was 71 years old at the time of her fall. She met her husband Gerald when they were children at Sunday school. They married on the July 13, 1957. Since 1962 they have lived at 156 Salisbury Avenue in Cambridge. The Musclemans have three children, a daughter Karey who was 45 at the time of their mother's accident, Carolyn who was 43, and Mark, who was 37 when his mother suffered her injury. Karey and Carolyn are both married, and Carolyn has a daughter, Leanna, who was 11 when her grandmother suffered her injuries. Ms. Musselman's son Mark has four children. Lucas, who was born on June 12, 2004, Ruby, born on the June 10, 2007, and twin daughters who were born during the trial.

[10] Gloria Musselman's husband Gerald is an architect (retired since Gloria's fall). Her son Mark and her daughter Carolyn are lawyers. Her daughter Karey lives with her husband in San Juan Puerto Rico.

[11] Gloria Musselman attended Stratford Teacher's College, graduating at 19. She then taught in Kitchener for five years prior to her marriage. She then taught in North York until her

first child was born and she made the decision to be a “stay at home” mom until her children graduated from university. Though not working full time, she was a volunteer at the Cambridge YWCA and then at the Fairview Mennonite Home, a residence for seniors. This subsequently led to full time employment. She was vice-president of the Cambridge Christian Women and a charter member and volunteer at the Rockway Mennonite Church. She has served as vice president, president and past president of the Mennonite Christian Women’s Council of Canada. When she assumed full time employment at the Fairview Mennonite Home, she became the Coordinator of Volunteers for all of the complex (an eight story apartment complex, 12 “Villas” and two three story apartment buildings). She recruited and trained volunteers, supervising some 350 adult volunteers as well as students from local high schools and some university student placements. She assumed responsibility for many special events, such as banquets. She retired as a full time employee of the Fairview Mennonite Home on August 20, 2002, on her 70th birthday. Compulsory retirement was supposedly at age 65, but she received an annual extension until age 70. After her retirement, she continued as a volunteer, working perhaps 20 hours over three days per week. She was also the editor of the “Fairview News”, an in house publication, published four times per year. While at Fairview, she also supervised an exercise group for senior residents, which involved in large part, climbing stairs. She also participated in a hiking group for some two years prior to her fall, which hikes occurred on weekend mornings.

[12] By reasonable observation, at the time of her fall on the stairs at the Cities Bistro, she was a vibrant, active 71 year old woman. She had suffered several falls in the few years preceding her tragic fall on February 10, 2004, which falls will be discussed in some detail when I consider the issue of causation.

[13] Gloria's husband, Gerald Musselman, turned 73 years of age on the day they attended at the Cities Bistro. He is a graduate of the University of Toronto and has been an architect since 1957. He is a senior partner in the architectural firm of Mark and Musselman, with offices in Brantford, Ontario. As of 2005, the firm employed ten professional architects with ten other supporting staff. Prior to Gloria's accident on February 10, 2004, he testified he had no intention to retire. He described architecture as "an old man's game". Relied on for his seniority and expertise, he did intend to spend more time with Gloria to travel and enjoy their family. However, he retired fully in December of 2005. He did not feel he could fully contribute to his firm and he wanted to, in effect, care for Gloria full time. As I will detail below, the strain of Gloria's accident and caring for her has taken its toll on his health.

[14] Karey Musselman is Gloria and Gerald's eldest child. She is married and lives with her husband in San Juan Puerto Rico. At the time of Gloria's fall, she was employed on a full time basis as a concierge at the Ritz Carleton Hotel in San Juan, earning (with gratuities) approximately \$35,000 annually. After her mother's accident, she took a leave of absence and travelled to Canada to provide assistance, companionship and comfort to her mother and to her father. She remained with them for a year, and received no income during that period. As a result of her lengthy absence, she lost her employment in July 2004. Karey ultimately returned to San Juan in January of 2005. While in Canada, she took five brief trips; two to Miami, two to New York, and one to Chicago. These trips were arranged to meet with her husband to maintain their marriage. Prior to her mother Gloria's fall, Karey was in the habit of visiting her parents in Cambridge twice a year, in the summer and at Christmas, for at least two weeks on each occasion. Gloria and Gerald also visited Karey and her husband in San Juan every three years.

The couples also vacationed together over the years in Chicago, New York, Las Vegas, and San Diego.

[15] Carolyn is Gloria's second child. Born on the March 28, 1960, she was 43 at the time of her mother's fall. She is married and has a daughter, Leanna, who was 11 years old when her grandmother suffered her injuries. A graduate of Wilfred Lawrie University, she spent a year in Sweden as a Rotary Exchange Student and spent time in China as well. In 1989 she began her studies as a law student at the University of Western Ontario. She graduated in 1992 when her daughter Leanna was born. She articulated for a large law firm in Toronto, during which time her mother Gloria provided the principle care for Leanna. She and her husband Orlando have been very close to Gloria and Gerald. They have travelled together as a family on many occasions and were in the process of planning a two week trip to Guatemala (as noted above) at the time of Gloria's tragic fall. I will have more to say about Carolyn and indeed all the plaintiffs when I address the issue of damages (which damages of course will be dependent upon a finding of liability).

[16] Mark Musselman is Gloria and Gerald's third child, born on March 9, 1966. He was 37 at the time of Gloria's injuries. He is married to Yael Zaretsky. Mark and Yael were married in 2002, and together they have four children. Lucas, born June 12, 2004, Clare Ruby, born June 10, 2006, and twins Sloane and Kate, born September 29, 2009. Mark graduated from the University of Western Ontario with his law degree in 1991 and then articulated in Toronto. He practised in Toronto until 1997 and from 1997 to 1999 he practised law in Vancouver. Though living some distance from his parents, he saw them frequently. In 1999, he left private practice and now serves as in-house counsel to a corporation in the city of Toronto. Since his

professional activities have brought him to Toronto, he has seen his mother and father on an even more frequent basis.

[17] Leanna Wigboldus is Carolyn's daughter. Grandmother and granddaughter have always been very close, and have participated in many activities together.

[18] Lucas Musselman is Mark's son, born June 12, 2004, following his grandmother's fall at the Cities Bistro. He too brings a claim pursuant to the *Family Law Act*. His entitlement remains to be determined.

[19] Turning to the defendants, 875667 Ontario Inc. is an incorporated entity pursuant to the *Ontario Business Corporations Act*. The company carried on business as the Cities Bistro, the restaurant at 859 Queen Street West. 875667 Ontario Inc (Cities Bistro) was clearly an occupier of the premises at the time of Gloria's fall.

[20] Brian Heasman is the sole owner and principal of 875667 Ontario Inc. and the proprietor of Cities Bistro. He testified that he incorporated 875667 Ontario Inc. together with a friend, Eugene Shewchuk, on January 3, 1990, in order to operate the restaurant. The evidence is somewhat vague but, Mr. Heasman and Mr. Shewchuk may have originally began their involvement with 859 Queen Street West by subletting a lease from a previous tenant of the Dominelli's, a Mr. Ashley Perry, who also operated a restaurant on the premises. Mr. Heasman testified that he was in effect the "front man" in the operation. Mr. Shewchuk was to be the chef. Having acquired the lease, Mr. Heasman and Mr. Shewchuk began renovations of the premises in the spring of 1990. Substantial renovations were affected, amounting to some \$50,000, which renovations included the construction of a new staircase from the main floor to the basement.

Mr. Heasman made all the arrangements for the renovations including applying for building permits. The evidence seems clear that Mr. Dominelli, the landlord, attended on no more than a very few occasions while renovations were underway, apparently largely as a matter of curiosity to see how they were going. Renovations completed, Cities Bistro opened for business on August 22, 1990. Mr. Dominelli as lessor and Mr. Heasman as lessee, entered into a new lease, on December 22, 1994. That lease having run its course, they entered into a new lease as “landlord” and “tenant” on December 30, 1999. It was that lease that defined their relationship (at least in part) on February 10, 2004, when Gloria Musselman’s fall occurred.

[21] At some point in the years following the opening of the restaurant, the relationship between Mr. Heasman and Mr. Shewchuk ended. In 2004, Mr. Heasman was the sole owner of 8765667 Ontario Inc. and the sole proprietor of Cities Bistro. It is clear he was an occupier of the premises on the relevant date.

[22] Following the commencement of this action, Brian Heasman declared bankruptcy. As a result, BDO Dunwoody Limited was added to the action as his Trustee in Bankruptcy. During the course of the trial on October 26, 2009 the bankruptcy court directed that the action would continue against him, stating “the stay of proceedings as against the bankrupt, Brian Keith Heasman, is hereby lifted, nunc pro tunc, to permit the moving parties to continue with their proceedings bearing court file No. C-24-05 commenced against the bankrupt. Enforcement of any judgment obtained against the bankrupt may not proceed without further leave of this court except that collection against any existing insurance policy may be enforced.”

[23] The Corporation of the City of Toronto is responsible for the regime that controls and approves building and construction in the city of Toronto. This includes the approval of plans for

construction or renovation, the granting of permits, the inspection of construction or renovation, together with final approval, and the granting of a certificate of occupancy. Thus the City was directly involved in the renovations that took place in 1990 at 859 Queen Street West. The plaintiffs maintain that the City of Toronto was negligent in approval of the plans for construction of the staircase, in inspecting such construction, and in effect approving the staircase as safe for use by patrons of the restaurant.

[24] Fred and Ida Dominelli are the owners of 859 Queen Street West. On October 19, 1979, Fred Dominelli signed an agreement of purchase and sale to acquire 859 Queen Street West for the sum of \$60,500. The purchase was to close on November 19, 1979. When the transaction closed, title to the property was put in the name of “Ida Dominelli in Trust”. The evidence of Fred Dominelli was clear (presented by way of “read-ins” from his examination for discovery) that title was put in the name of “Ida Dominelli in Trust” simply on his lawyer’s advice. Ida Dominelli testified that she was made aware by her husband in or about 1979 that the property was in her name in trust, but it was clear from both Fred and Ida Dominelli that they were both owners of the property in every real sense.

[25] Fred Dominelli is a mechanic by trade and owned, at least at the relevant time, a service station and motor vehicle repair business ten doors east of 859 Queen Street West. Mr. Dominelli’s evidence was that apart from attending on a monthly basis to collect the rent, he had nothing to do with, and took no responsibility for, 859 Queen Street West. He visited all responsibility for the premises on his tenant or tenants. His best recollection was that the prior tenant to Mr. Heasman was one Ashley Perry who operated a restaurant on the premises for perhaps three years. As noted above, he entered into new leases with Brian Heasman, with Fred

Dominelli as “lessor” and then as “landlord” on December 22, 1994 and December 30, 1999. His evidence was that he knew nothing about Gloria Musselman’s fall until he was served with a statement of claim in early 2005. His evidence (consistent with that of Mr. Heasman) was that Mr. Heasman “abandoned” the premises in June 2004. Mr. Dominelli was then required to enter upon and “clean up the mess” left Mr. Mr. Heasman. He paid a significant sum to W.C. Graham Construction to affect such cleanup and then relet the premises.

[26] Ida Dominelli testified briefly at trial. She advised the court quite simply that while she was aware her name was on title to 859 Queen Street West, she had nothing to do with the premises, and in fact had never even visited the premises until after Brian Heasman abandoned them.

[27] It should be noted that prior to trial the City of Toronto entered into a “Pierringer” agreement with the plaintiffs. The court advised the parties that it did not wish to know any of the financial details of the agreement. However the agreement with such details removed, was filed on consent as exhibit 90 at trial. Pursuant to the principles which guide the court in its consideration, (or lack of consideration) of a Pierringer agreement, the plaintiffs amended the statement of claim to reveal the essential details of the agreement. Paragraphs 23 to 25 of the Amended Amended Statement of Claim read as follows:

23. The Plaintiffs, having settled the within action against the City of Toronto, have agreed with the City of Toronto (herein “the Settling Defendant”) that they shall limit their claims against the remaining defendants (herein “the Non-Settling” Defendants), to claims for damages, costs and interest attributable only to the Non-Settling Defendants’ several share of liability to the Plaintiffs and joint liability to one another, if any, such that the Plaintiffs’ claims shall be limited to recovering the damages, interest, fees, disbursements and GST attributable to the Non-Settling Defendants’ several share of liability proven against each of them at trial or by other final disposition by the Court.

24. For greater certainty, the Plaintiff's shall have no claim directly or indirectly against the Settling Defendants, and the Plaintiffs shall limit their claims against the Non-Settling Defendants so as to exclude any cross-claim made against or which could be made against the Settling Defendant arising from the issues in the is action.

25. The Plaintiffs admit that the Court at the trial of this matter has and shall have full authority to adjudicate upon the apportionment of liability, if any, between the Settling and Non-settling Defendants, and the non-Settling Defendants are only liable for their direct liability with the Plaintiffs.

[28] Arguably the principle difference between a Pierringer agreement and a "Mary Carter" agreement is that the settling defendant (in this case the City of Toronto) plays no further role in the trial. That was the situation in this case. I can fairly say that the non-participation of the City (the settling defendant) in the trial constituted no prejudice to the "non-settling defendants"; specifically no prejudice to Fred and Ida Dominelli. The "paper record" of the City and the participation of City personnel during the inspection and approval process was effectively admitted on consent. Thus, the court will determine the issue of liability and the proportion thereof (if any) without being affected by an awareness that there has been a settlement agreement entered into between the City of Toronto and the Plaintiffs.

[29] Having outlined briefly the parties to this litigation, and having summarized the roles they played leading up to February 10, 2004, I will now turn to a direct consideration of the evidence. The court is mindful that essentially there are three issues for resolution. First the court must determine if the staircase, which is alleged to be the cause of Gloria Musselman's fall, is in fact unsafe. The court must then consider if the staircase was unsafe whether such condition caused or contributed to Ms. Musselman's fall or whether there was another factor or factors that caused or contributed to such fall. The court must then determine if the staircase was unsafe and if the staircase caused or contributed to Gloria Musselman's fall, who bears responsibility and in

what proportion for the condition of the staircase. Bearing in mind the principles of negligence and the provision of the *Occupier's Liability Act*, I turn first to the evidence directly related to the staircase.

The Staircase

[30] Much evidence was called at trial with respect to the structure of the staircase. Numerous photographs were introduced of the staircase, all taken after Gloria Musselman's fall. Expert witnesses were called who provided opinion evidence as to whether the staircase complied with building code requirements and acceptable building practices. A number of expert witnesses also proffered opinions as to whether the staircase cased or contributed to Ms. Musselman's fall. I can say without reservation that all of these expert witnesses were eminently qualified to give their evidence. To the extent that there is a conflict between some of those opinions, the court must carefully consider the premise of such opinions and the information upon which such opinions were based. Ultimately the court must weigh the relative probative value of the evidence of each of the experts.

[31] Mr. Steven Blaney was called as an expert witness by the plaintiffs. Mr. Blaney is a structural engineer with considerable expertise in the area of acceptable building practices, building codes, and standards of the industry. His impressive Curriculum Vitae may be found at exhibit ten, tab one. His report is found at exhibit ten, tab two with follow up reports found at tabs three and four. Mr. Blaney provided a detailed description of the stairs as a result of visits by him and his staff on May 24, 2004 and May 22, 2005. His report also included (at appendix E) detailed drawings of the staircase in question. There was no issue taken with respect to the accuracy of his drawing or the measurements set out therein.

[32] Mr. Blaney testified with respect to the regime for approval of renovation or new construction in the City of Toronto. At the time these stairs were constructed, the 1986 Ontario Building Code was in effect. This Building Code sets out minimum standards for virtually all

aspects of staircase construction, including minimum standards for the rise and run of the steps, details with respect to handrails or guards, ceiling heights, etc. By the *Building Code Act* the province has effectively transferred responsibility for enforcement of these minimum standards to city councils. City council must appoint a chief building inspector. Enforcement is then effected through a building permit and inspection process ultimately resulting, in an appropriate case, for approval by the city for occupancy of the premises. The *Building Code Act* also requires municipalities to have by-laws in effect with respect to public safety in buildings.

[33] Mr. Blaney took the court through the “paper trail” provided by the City of Toronto, with respect to the history of the staircase at 859 Queen Street West. While the paper trail is interesting, staircase construction and approval prior to 1990 are not directly relevant to the issues to be decided by the court. It is clear on the evidence that in the spring of 1990 Brian Heasman, as the new lessee, and with the intention of operating a restaurant on the premises, arranged for significant renovations, including the construction of a completely new staircase on the premises from the main floor to the basement level to give access to the washrooms.

[34] Mr. Heasman testified that the staircase that existed when he became the lessee of the premises consisted of a straight flight down to the basement floor. He felt that staircase was unsafe and therefore arranged for a completely new staircase to be built.

[35] Mr. Blaney testified that the drawings that were submitted for the building permit given by the City were “very amateurish” and should not have been accepted by the City. He added that the several visits by the City’s building inspectors should have made it obvious that the staircase was non-compliant with building code and safe building standards, and should not have been approved.

[36] Mr. Blaney's evidence as to non-compliance with the Ontario Building Code (1986 Edition) may be summarized by reference to pages four – seven of his report. His concerns include the lack of uniformity or rise and run of the stairs, the failure to comply with maximum rise and minimum run of the steps, the head room provided in the staircase, the size of the landings, and the construction of the handrail. With respect to the handrail, I note in particular, the lack of appropriate handrail-wall clearance. I note as well, the failure of the staircase to comply with code in that the west side of the staircase (below the upper level) was completely unprotected. The Ontario Building Code requires that a staircase such as this must be enclosed by walls or protected by guards. In this case there was no wall, there were no guards, and there was no handrail on the west side of the staircase. The stairs were completely open to the basement floor.

[37] Mr. Blaney also testified as to the non compliance of this staircase with By-Law number 9868 of the City of Toronto and By-Law number 300-68 of the Property Standards By-Law. In a great many respects, this staircase was woefully non-compliant with these by-laws as well. Specifics include minimum standards for rises and runs, and for the provisions of appropriate handrails. Mr. Blaney's conclusions are found at pages 30 and 31 of his report (exhibit ten tab two) and are worthy of repetition at this time:

6.1 The stair to the basement of the Cities Bistro does not comply with the 1986 Ontario Building Code. Specifically, stair dimensions (rise, tread depth, and width), landing dimensions, headroom, guard requirements, lighting, stair stringer construction, handrail dimensions, (height, continuity, clearance from the wall, size, termination, and extension) did not comply with the O.B.C. criteria.

6.2 Renovations to the stairs were included in the 1990 building permit issued by the City of Toronto for interior alterations. The stairs are therefore required to comply with the 1986 of the Ontario Building Code.

6.3 There was insufficient information provided on the approved building permit drawings to assess code compliance of the proposed work on the stairs. The City of Toronto Building Department should have requested clarification and resubmission of the drawings. Lacking this, they could only rely upon the City of Toronto building inspectors to verify that what was being constructed would meet the Ontario Building code.

6.4 Our examination of the stair identified numerous items (construction defects) in the subject stair that were not in compliance with the building code. The deficiencies noted created a number of unsafe conditions that likely contributed to Mrs. Mussleman's fall since all of the deficiencies are known to create the hazard of a fall and injury on stairs whether ascending or descending the stairs.

6.5 The dimensions of the individual steps are a construction defect and hazard. Specifically the excessive height of the risers, and insufficient tread depth created a very steep stairway, which would be difficult to negotiate. The risers are, at a minimum, one inch above the maximum specified value. This creates a trip hazard, as such a riser height is unexpected.

6.6 The lower landing was not in compliance with the 1986 Ontario Building Code. The length and the width of the landing were below the minimum width criteria of the O.B.C. The landing was not long enough (from the nosing to the south wall) to accommodate an O.B.C. width compliant stairway.

6.7 The low headroom over the lower landing is a construction defect and a hazard with the meaning 6.5 above. The low headroom will cause the stair user to unnecessarily divert attention from the steps to ensure they do not hit their head on the ceiling. As such, focusing attention elsewhere would increase the chance of tripping on the excessive risers of the subject stairway.

6.8 The handrail did not comply with the criteria of the Ontario Building Code. It is a construction defect and hazard within the meaning of 6.5 above. Specifically, the handrail did not meet the minimum height criteria. The handrail height was inconsistent throughout the stairway, and was only 23 inches above the nosing of the top landing. When travelling up the stairs, the handrail height gradually decreases. The user must crouch to maintain a handhold decreasing balance and stability. If the person is unable to crouch sufficiently then they must let go of the handrail to traverse the stair.

6.9 In addition the handrail did not have adequate clearance from the wall throughout its run to provide a continuous, safe hand hold. The hand rail had only one half inch wall clearance above the third step. This clearance is insufficient to maintain a continuous hold on the hand rail. The hand rail is also below the minimum clearance criteria where it terminates at the top of the stairs and where at the confection with the horizontal hand rail over the lower landing. For patron

using the hand rail for balance and stabilization, a break in the hand hold would result in the loss of the two.

6.10 The reduced head room at the top of the stair adjacent to the top landing is a construction defect and a hazard within the meaning of 6.5 above. A tall person will hit their head on the ceiling when walking up the stairs. This could injure someone using the stair or at minimum divert their attention either which could result in a fall.

6.11 The handrail at the top of the stairway did not comply with the Ontario Building Code. The hand rail was secured directly to the post at the top of the stairs. There was no space between the handrail and the post, resulting in a loss of hand hold. Also, the hand rail terminated at the top of the stairs, and did not continue past the end of the stair. This is a requirement of the O.B.C., to provide the user with a handrail until entirely off the stair.

6.12 A guard is required is required to be constructed in the opening on the west side of the stairway. The Ontario Building Code requires both sides of a stairway having more than two risers to be protected. This protection can be achieved by a wall or by constructing guards. Also, had there been guards in place, the guards could have been grabbed by a user in an attempt to stabilize them self, or to stop a fall.

6.13 The renovations of the stairs to the basement and to the second floor were such that the stairs failed to conform to safe building standards.

6.14 The basement stairs to the public washrooms did not fully comply with the requirements of chapter 629-19, Property Standards of the Toronto Municipal Code.

6.15 The City of Toronto building inspectors failed to identify the unsafe conditions in the subject stairs while completing their various inspections under the multiple permits. They failed to order the stairs repaired to comply with applicable Ontario Building code requirements and the City of Toronto property Standards. As confirmed by Mr. Eli Yunger in his examination, the Building Inspection Department will notify the By-Law Enforcement Department of unsafe conditions.

6.16 During the building permit approval process in 1990, the City of Toronto failed to require that the stairs be renovated and constructed to meet the requirements of the Building Code, or the building permits should not have been issued allowing the work to proceed.

6.17 The City of Toronto through Mr. Eli Yunger confirmed that they completed inspections during the renovations for Cities Bistro. The inspector failed to identify the many obvious deficiencies exhibited by this stairway and failed to

have issued an order to rebuild the stairway in such a manner that it fully complied with the 1986 Ontario Building Code.

[38] During the course of his testimony, Mr. Blaney stated that merely by visual inspection the stairs were unsafe and contributed to the plaintiff's fall. Whether these stairs contributed to the plaintiff's fall will be of course for determination by the court. However I might note that apart from the many photographs, sketches and witnesses descriptions of the subject stairs, the court also had the advantage of exhibit 32. With the consent of opposing counsel and the approval of the court, plaintiff's counsel arranged to have erected in the courtroom a reproduction or replica of the subject stairs as they existed in February of 2004. The stair structure had been pre-fabricated and was erected during the luncheon recess during on the first day of trial. As a result it was available for reference by many witnesses and for direct examination by the court. No issue is taken that it was anything other than an accurate reproduction of the stairs at 859 Queen Street West, with the exception that there was no ceiling constructed above the stairs. In the court's consideration of this exhibit I remain mindful that there is a certain "artificiality" to a "staircase to nowhere" erected in the large expanse of a courtroom. However I might say that the stairs were of considerable evidentiary assistance to counsel, to witnesses and to the court during the trial.

[39] Mr. Richard Weldon was called as an expert witness by the defendants. His curriculum vitae is found at exhibit 81. As a professional engineer, he was, as was Mr. Blaney, well qualified to express opinion evidence with respect to the structure of the stair and whether they could have or should have been approved by the City of Toronto as being compliant with the Ontario Building Code. Mr. Weldon focused on section 11.2 and 11.3 of the Ontario Building

Code, which provides for “compliant alternatives” with respect to renovations. The relevant provisions state as follows:

11.2.3.1. (1) A compliance alternative to a requirement contained in part three, four, or six, showing tables 11.2.3.A,B,C,D/E or F, may be substituted for the requirement where the chief official is satisfied that compliance with the requirement is impracticable because:

- (a) of structural or construction difficulties, or
- (b) it is detrimental to the preservation of a heritage building.

(2) A compliance alternative to a requirement contained in part nine shown in tables 11.2.3.C, D/E or F, may be substituted for the requirement without satisfying the chief official that the requirement is impracticable.

11.2.4.1. (1) An alternative measure to,

- (a) a requirement of part three, four, six or nine of the code, or
- (b) a compliance alternative, may be substituted for the requirement or the compliance alternative, as the case may be, and where the chief official is satisfied that compliance with the requirement or the compliance alternative, as the case may be, is impracticable because
- (c) of structural or construction difficulty or
- (d) it is detrimental to the preservation of a heritage building

11.3.1.1 The performance level of a building after construction shall not be less than the performance level of the building prior to construction.

[40] Mr. Weldon also noted table 11.2.3.D/E which forms part of article 11.2.3.1, providing for compliance alternatives. Alternative DE89 as an alternative to the requirements for existing stair systems set out in part nine of the Ontario Building Code provides as follows:

Replacement or extension of existing stair systems shall be exempt from the provisions of this section, except that they shall have:

- (a) A minimum width between wall faces of seven hundred millimetres, and

(b) A minimum clear height over tread nosing of 1,800 millimetres

[41] This staircase was compliant with the “minimum width between wall faces” provision. 700 millimetres is 29.5 inches, and the width between wall faces of the subject staircase exceeded that dimension. However, 1,800 millimetres is five feet eleven inches. Though the headroom varied the length of the staircase, at the edge of the top landing, headroom was only five feet five inches and at the lower landing, the headroom was only five feet eight and one half inches. Thus even if other aspects of the staircase, which in Mr. Blaney’s view were unsafe, could have been approved by the city as “compliance alternatives” the staircase should not have been approved as a result of its failure to meet the minimum height requirements, for which no compliance alternative was possible. Mr. Weldon testified that even if the staircase did not comply with the minimum height requirements of the Ontario Building Code, this could not have been a factor in Ms. Musselman’s fall, as her height was only five feet one inch. However, while the low headroom is not a significant factor in my consideration of the evidence, I do appreciate Mr. Blaney’s opinion that a low headroom may cause the stair user to “unnecessarily divert attention from the steps to ensure they do not hit their head on the ceiling. As such, focusing attention elsewhere would increase the chance of tripping on the excessive risers of the subject stairway.”

[42] Mr. Weldon’s focus on part 11 of the Ontario Building Code as opposed to part 9 of Ontario Building Code, and his opinion that “compliance alternatives” might well have permitted the City of Toronto to approve the subject staircase, was in part based upon his initial belief that this staircase was simply a “renovation” of the existing staircase. During the course of his cross-examination he conceded however, that the staircase that existed at the time of Gloria

Musselman's fall was in fact a complete replacement of the previously existing staircase which was comprised of a single run from the main floor to the basement floor. This acceptance did not alter his view that the staircase was in substantial compliance with part 11 of the Ontario Building code, and therefore could have been approved.

[43] Mr. Weldon, it may be noted, did not have the opportunity to visit the actual staircase, as did Mr. Blaney. That should not detract from the weight his evidence is otherwise entitled to based upon his examination of Mr. Blaney's drawings of the staircase (with which he took no issue) and the record of the City, involving plans, permits and approval of the staircase. I might note that if in fact the staircase at 859 Queen Street West was given City of Toronto approval as a result of "compliance alternative" in accordance with Part 11 of the code, one would have expected some note in the City's record indicating approval of such "compliance alternative" by the chief building inspector, or someone else in the building department. There is no evidence that the City of Toronto ever took into consideration Part 11 of the code in approving this staircase.

[44] There was a difference of opinion expressed by Mr. Weldon and Mr. Blaney with respect to the "performance level" of the replacement staircase. Mr. Weldon testified that if the "performance level" of the replacement stairs met the "performance level" of the previous stairs that the replacement staircase could be approved in accordance with Part 11. Mr. Blaney testified that it would be illogical to permit an unsafe staircase to be built as long as it replaced a previous unsafe staircase. Mr. Blaney testified in effect that an unsafe staircase should be replaced by a safe staircase as long as the replacement by a safe staircase was practicable or feasible. It clearly was in this case. Apparently the new tenant, who took over after Mr.

Heasman left the property, did in fact construct a safe staircase. While there is no specific evidence of such, the construction of a safe staircase may have involved a greater financial investment in order to reconfigure the staircase. However cost is of no consequence (as long as it is not unreasonable) where safety is concerned. I prefer Mr. Blaney's logic to Mr. Weldon's narrow application of Part 11 of the Ontario Building Code.

[45] Even though Mr. Weldon maintained the position that the "Heasman staircase" could have been approved by the City of Toronto pursuant to Part 11 of the Ontario Building Code, during his testimony he did express some reservations with respect to the construction. He conceded that the headroom in the staircase did not comply with Part 11 of the Ontario Building Code, that a "compliance alternative" should not have been permitted. He conceded as well that the staircase was "steep and difficult to manoeuvre". His evidence was less than clear with respect to his opinion as to the lack of safety posed by the open west side of the staircase below the upper floor. As a matter of common sense, I would conclude the lack of wall, guards or hand rail clearly constituted a potential safety hazard. I do not require an expert opinion to arrive at such conclusion. He also expressed some concern with respect to the top riser height just below the upper landing (11 5/8 inches). He testified that if he had inspected the staircase, he would have recommended "evening out" the variants of the various risers over all the steps in order to reduce the clearly excessive height of the top riser to at least eliminate the discrepancy between that riser and others on the staircase. It would then have been necessary to increase the height of the other eight risers, thereby rendering them even more non-compliant with Part 9 of the Ontario Building code.

[46] The different opinions expressed by Mr. Blaney and Mr. Weldon perhaps highlight one important principle which must guide the court in its determination of the issues in this case. The mere fact that a staircase may be compliant with a building code, a building by-law or evidence as to industry standards, does not determine the question as to whether the staircase was unsafe. That is a determination for the court on all the evidence. Building codes, building by-laws and evidence as to industry standards may all inform the court however, in coming to this determination. Building codes and building by-laws are there for a reason; to ensure that a particular structure will be safe for use. What is safe and what is reasonable may well depend on the circumstances. The “staircases” on a naval ship (sometimes referred to as “ladders”) given space restrictions, would not comply with a building by-law that relates to a public building or even a private residence. That is understood. 859 Queen Street West however, was not a naval ship; it was a restaurant open to the public, to be used within reason, by all members of the public. It would be expected that a patron of the restaurant might want to use the washrooms on the basement level. It was therefore incumbent upon an occupier of the premises and anyone else responsible for construction or approval of the staircase to ensure that it was safe for reasonable use by members of the public. In this case, I conclude without reservation that the staircase that existed at 859 Queen Street West, on the February 10, 2004, was not a safe staircase. Indeed I am disposed to concur with Mr. Blaney’s opinion expressed during his testimony the “merely by visual inspection the stairs were unsafe”. To the extent that he went further and expressed his opinion that the stairs contributed to Gloria Musselman’s fall there are other significant factors and there is a host of other evidence that the court must consider before arriving at the latter conclusion.

[47] Much evidence was presented during the trial with respect to numerous aspects of this staircase that clearly present a safety risk. These include the measurement of the steps themselves, the ceiling height, the open west side of the staircase below the upper floor, the condition and design of the handrail on the east side of the staircase and the extension of the stringer on the west side of the stairs onto the lower landing (which clearly could constitute a potential tripping hazard). Depending upon where the court concludes, (if it is able to do so) Gloria Musselman's fall occurred, some of these code deficiencies may not have caused or contributed to Ms. Musselman's fall. However the structure and condition overall of the staircase is relevant when the court considers whether the conduct of the City of Toronto, through its agents, was negligent in approving the plans for the staircase, in the inspection of the staircase and in final approval of the staircase. This is not simply a case where one riser slightly exceeded the maximum permitted height set out on the Ontario Building Code or where the handrail was one inch lower than the required height at one end or the other or where the ceiling height at the landing or the top of the stairs was one inch lower than that permitted by the building code. This staircase overall was grossly noncompliant with the Ontario Building Code, with respect to the 1962 Toronto Building By-Law and with respect to the City of Toronto Property Standards By-Law. The City of Toronto should never have approved the plans as they were apparently presented for the building permit. The several inspections by Mr. Yunger, the building inspector, and for that matter, other inspectors, who attended to focus on different aspects of the renovation, should have revealed the structural deficiencies and resulted in orders to comply. Most certainly, final approval should not have been given by the City of Toronto for the staircase. It was, in my view, "an accident waiting to happen". The fact that it took 14 years for such accident to happen is of little consequence, particularly given the tragic consequences of

Gloria Musleman's fall. It is true that there was no evidence before the court of any prior accident, or no clear evidence, that there never had been a mishap on the stairs. One may have occurred that did not result in a complaint. As a matter of common sense, I would be surprised if on occasion a patron of little more than average height had not bumped his head on the ceiling above the lower landing or at the top of the stairs. I note in passing as well, that while the width of the staircase may be barely code compliant, it still is a relatively narrow staircase. The open west side of the staircase, below the upper floor, should have put any responsible person on notice that something was required to safeguard patrons of the restaurant. I appreciate that Gloria Musselman did not fall off the staircase through the open west side and land on the basement floor. However as a matter of common sense it would be easy to anticipate a "nasty accident" if two patrons, one ascending and one descending, happened to bump each other on the lower portion of the staircase. In sum it is the overall unsafe condition of the staircase that assists the court in determining negligence on the part of the City of Toronto, and for that matter, on the part of any occupier of the premises.

[48] The court must still determine whether the unsafe condition of the staircase caused or contributed to Gloria Musselman's fall. In doing so I must carefully consider the evidence as to the mechanism of that fall.

The Evidence of the Fall

[49] Two expert witnesses were called in an attempt to reconstruct Ms. Musselman's fall. The plaintiffs called Mr. Gordon M. Jenish. Mr. Jenish's curriculum vitae is found at exhibit 10, tab 5. His report is found at exhibit 10 tab 6. Mr. Jenish is clearly an expert in the area of accident reconstruction, though under cross-examination he testified he could only recall two prior

occasions on which he investigated a fall on stairs. In his careful analysis of the circumstances of the fall, he reviewed Mr. Blaney's stair assessment report, many of the colour photographs taken of the stairs shortly after the fall, the medical records from St. Michael's Hospital with respect to Ms. Musselman's injuries and as well portions of the examination for discovery of Gerald Musselman and Mark Musselman. His conclusions were based in part on the consistent evidence of eyewitnesses that Gloria Musselman's position after her fall was lying on her left side propped partially against the south wall of the landing. Her head was to the right as one was facing down the stairway and her legs were on the left side of the landing. He considered her injuries, the small abrasion just lateral to the left eye, the laceration over and the fracture of her right second metacarpal head, the cervical spine (C2), linear fracture of the odontoid without dislocation, and the left shoulder dislocation. He noted that there were no other findings of trauma to Ms. Musselman's body, specifically no indication of external or internal trauma.

[50] His conclusions were consistent in some degree with the evidence of other witnesses: specifically that Ms. Musselman had fallen backwards while ascending the stairs. That as she fell, her body rotated partially in a counter-clockwise direction so that she landed with considerable force on the landing and against the south wall. He further expressed the opinion, shared by Mr. Blaney (and by this court) that this staircase was very steep and unsafe presenting tripping hazards.

[51] Mr. Jenish went further however, and expressed his opinion that Ms. Musselman had lost her balance and fallen near the top of the stairs. It was the court's impression that he based this conclusion on his belief that the nature of her injuries were consistent with a high impact fall from considerable height and with his belief that the top of the staircase constituted the greatest

tripping or balance hazard. He noted in particular the grossly excessive height of the top riser and its considerable discrepancy in height compared with the other risers as well as the unsafe position and condition of the handrail at the top of the stairs. Mr. Jenish testified specifically that Ms. Musselman “most likely” placed only a portion of her foot on the top landing and therefore lost her balance and fell backward. In Mr. Jenish’s opinion, the steepness of the stairs was such that Ms. Musselman could have “plummeted” from the top of the stairs to the landing without striking any portion of her body against any other steps (or for that matter the ceiling).

[52] Mr. Jenish’s opinion as to the location where the fall occurred was not shared by an expert witness called by the defendants, Mr. James Surowiak.

[53] Mr. Surowiak’s curriculum vitae is found at Exhibit 83 and his report is found at Exhibit 12, Tab 4. He, like Mr. Jenish, is a professional engineer and is eminently qualified to testify in the area of accident reconstruction. It may be noted that his academic background includes a Bachelor of Applied Science in civil engineering and a Master of Science in biomechanics, from the School of Human Biology at the University of Guelph.

[54] As he testified and as noted in his report, his examination of available material was thorough indeed, including medical reports, engineering reports (including that of Mr. Blaney, Mr. Weldon and Mr. Jenish), material related to the building permit application provided by the City of Toronto and portions of the examinations for discovery of Gloria Musselman, Mark Musselman and Gerald Musselman. As will be clear upon an examination of his report, which he adopted when he testified at trial, his analysis of Gloria Musselman’s possible fall and the location where it occurred are thorough indeed. To summarize his conclusions, it was his opinion that Ms. Musselman probably fell from one of the first three steps in ascending the staircase,

although he conceded under cross examination that a fall from the fourth step was possible as well. He further testified that he couldn't completely discount a fall from the top step, however, he felt it was not probable.

[55] Mr. Surowiak was thoroughly and properly cross examined during his evidence by counsel for the plaintiffs. Much reference was made to a learned text entitled "The Staircase" authored by Dr. John Templer, an acknowledged expert in the area of staircase falls. Mr. Surowiak maintained his opinion that if Ms. Musselman had fallen from higher on the staircase, she would have "tumbled" down the stairs and suffered other visible or significant injuries to other portions of her anatomy. I find his evidence very persuasive, consistent, as it is, with the physical evidence in the case. The court is also obliged to Mr. Surowiak for his detailed description of the fracture to the odontoid process, and how it is consistent with the fall that he testified most probably occurred. In Mr. Surowiak's opinion, the fall most probably occurred as Ms. Musselman was mounting the several steps above the lower landing, steps, 2, 3, or possibly 4.

[56] With respect to the location where Ms. Musselman's fall began, I prefer the evidence of Mr. Surowiak to that of Mr. Jenish, based both on the physical evidence and the evidence (however limited) of eye and ear witnesses. I am persuaded that after leaving the washroom, as she began to mount the stairs, Gloria Musselman lost her balance on the first several stairs above the lower landing. Unable to obtain a solid purchase on the East handrail, flailing with her left arm and hand, and finding no wall, no guard, no handrail to help her regain her balance, she rotated backward and in a counter clockwise direction, falling backward to land on her left side on the landing below. Such a fall, from any of the first several steps above the lower landing,

would clearly be of sufficient force to cause the fracture of the C2 odontoid process that resulted in her quadriplegia.

The Medical Evidence

[57] Before I turn to the evidence of the various treating physicians and expert witnesses that testified at trial, I address briefly the history of falls that Gloria Musselman experienced in the years preceding her fall on February 10, 2004.

[58] I begin with an event that occurred in September 1999. While Mrs. Musselman was attending to a flower bed, in her front lawn, while attempting to balance on a loose rock wall, on her evidence, the rocks shifted, and she fell onto her back on the neighbour's lawn. A few weeks earlier, she had suffered a period of faintness, all of which is recorded in the notes of Dr. Lawrie and the report of Dr. Sivakumaran (exhibit 6, tab 7, pp. 4-6).

[59] On April 24, 2000, she was out for a walk with a neighbour. She inadvertently stepped off the sidewalk, tripped, and suffered a fracture of her left ankle. She suffered a hairline crack fracture of the tip of the left lateral malleolus. She was placed in an air cast walking boot.

[60] On March 27, 2001, while out walking, on her evidence, she tripped on a crack and went down twisting her right ankle. Dr. Lawrie diagnosed a sprain and prescribed an air cast.

[61] On October 11, 2001, while attempting to put four quilting frames into her car, she lost her balance and fell, injuring her ankle. She was referred to Dr. Joyce Daly, an orthopaedic surgeon, who diagnosed a fractured right lateral malleolus. For treatment she was to wear an air cast. The consultation with Dr. Daly (who testified at trial) will be further referred to below. Dr.

Daly's notes refer to a "bilateral lower extremity neuropathy" and to Ms. Musselman "having sensory neuropathy in her feet". As a result of her injury, she was further referred to Ms. Deborah Taggart for physiotherapy. Ms. Taggart also testified at trial. As noted above, Ms. Musselman's explanation for this fall was that she was trying to get into her car while struggling to hold four quilting frames that she was intending to take home for her next quilting session with friends.

[62] Finally, on the 22nd of November 2003, Ms. Musselman suffered a fall on the cellar steps at her home, while she was attempting to carry a trolley down to the basement. She did not require medical attention as a result of this mishap.

[63] I then turn to the evidence of the various treating physicians and medical experts in my analysis of whether Gloria Musselman may have experienced an episode of syncope or pre-syncope at the time of her fall on the 10th of February 2004 or whether she suffered from a peripheral neuropathy that may have caused or contributed to that fall.

[64] Dr. Bruce Stewart was called as an expert witness by the defendants. Dr. Stewart is an eminently qualified neurologist. His curriculum vitae is found at Exhibit 85 and his report is found at Exhibit 12, Tab 6. His report is based largely upon his examination of Dr. Lawrie's notes, which include the referral opinion from Dr. Sivakumaran on September 23, 1999 and the referral opinion from Dr. Daly, dated November 5, 2001. Dr. Michael Lawrie is Gloria Musselman's family physician. He also considered the notes of Deborah Taggart, the physiotherapist and the report of Dr. Peter Ashby, dated December 22, 2008. At page 5 of his report, Dr. Stewart originally provided this opinion:

This woman had a longstanding peripheral neuropathy in the lower limbs, which would contribute to her falls, including the fall of February 10, 2004. It is not necessary for the neuropathy to be severe in order to contribute to any fall.

I do agree with Dr. Ashby that she did not have features of a severe chronic peripheral neuropathy at the time of her February, 2004 fall. She did, however, have symptoms and signs of a chronic peripheral neuropathy at that time, which would put her at risk of a slip and fall. She also had unexplained syncopal and pre-syncopal episodes over the years before the accident. Their timing was unpredictable. A pre-syncopal episode could have contributed to a slip and fall February 10, 2004. There are therefore two potential causes for a fall February 20, 2004 – a peripheral neuropathy and repeated pre-syncopal symptoms.

[65] When he testified, Dr. Stewart noted that he gave significant importance to Dr. Daly's report to Dr. Lawrie, with Dr. Daly's reference to a significant past history of falls and a peripheral neuropathy. When asked about that opinion expressed by Dr. Daly, Dr. Stewart replied "I don't know where it comes from but I must give it considerable weight as a written report". Under cross examination, Ms. Musselman's explanation for each of the falls was put to Dr. Stewart. When apprised of the possible external or environmental explanation for those falls, Dr. Stewart demonstrated his objectivity as an expert witness and agreed with counsel for the plaintiff that all the falls were reasonably accounted for by factors that were unrelated to neuropathy.

[66] Dr. Stewart was helpful to the court in providing the possible symptoms and signs of a severe bilateral lower extremity neuropathy and a mild bilateral lower extremity neuropathy. None of those signs and symptoms stand out as applying to Gloria Musselman prior to her fall in 2004. His opinion was that prior to her fall on the 10th of February 2004, Gloria Musselman did not suffer from a severe bilateral lower extremity neuropathy. Further, Dr. Stewart testified that he could not say prior to February 10, 2004 that Gloria Musselman suffered from a mild or a

severe bilateral lower extremity neuropathy. He added that he would not have restricted her from her normal daily activities.

[67] Dr. Stewart went on to say that the individual who suffers from a peripheral neuropathy may not be aware of the condition and that an observer might not note any signs of the neuropathy, for instance, an abnormal gait. He agreed however that as of February 10, 2004, he would have no reason to advise Ms. Musselman not to use stairs or to avoid high heels. Having agreed that there might be an “environmental” explanation for each of her falls, if such were accepted, he advised the court there would then be nothing to suggest a lower extremity neuropathy. He further stated that the first reference to a neuropathy by Dr. Daly might not have been justified. He noted that Dr. Daly’s reference was in notes that were typed approximately two weeks after Gloria’s visit and that Dr. Daly therefore could have been “confused”.

[68] Dr. Stewart was then taken through Deborah Taggart’s notes in detail and noted the progress that Ms. Musselman made during physiotherapy. He stated that the notes would support a conclusion that she was simply recovering from her fracture and the consequent immobility. He added the physiotherapy would have little effect on an improvement in her balance, if the balance problem was in fact due to a neuropathy.

[69] In sum, while Dr. Stewart’s fair and objective evidence still leaves the possibility that Ms. Musselman suffered from a bilateral lower extremity neuropathy at the time of her fall, it leaves considerable doubt as to such diagnosis.

[70] Dr. David Molloy was also called by the defendants. He is eminently qualified as a specialist in the field of geriatric medicine. In fact, he is the Chair in Aging at McMaster

University. He deals daily with senior citizens and is very familiar with the problems and challenges that arise physically and medically as one grows older. One of his duties is to supervise a memory loss clinic where he testified the average age of his patients is 83 years. He deals on a regular basis with “frail, older adults ... with multiple complex issues”. He outlined for the court the many “risk factors” that can increase the risk of a fall. He quoted with approval an article from the website www.uptodate.com entitled “Falls in Older Persons: Risk Factors and Patient Evaluation”, authored by Dr. Douglas Kiel. The risk factors first noted by Dr. Molloy were:

1. Past history of a fall
2. Lower extremity weakness
3. Age
4. Female gender
5. Cognitive impairment
6. Balance problems
7. Psychotropic drug use
8. Arthritis
9. History of stroke
10. Orthostatic hypotension
11. Dizziness
12. Anemia

[71] He initially testified that Gloria demonstrated every one of these risk factors (or at least the majority). He stated that she was a “very, very, high risk for falls”. He continued to testify in a more or less general way by stating that “falls are common in older adults”. He noted and

explained that there are three reasons why older persons fall; one, intrinsic factors, two environmental factors and three, the behavior of the older person.

[72] Dr. Molloy went on to categorize falls as falling into two groups; one, where there is no loss of consciousness and two, where there is a loss of consciousness. Where there is no loss of consciousness, people try to “grab”. If a fall is due to a loss of consciousness, there is no attempt on the part of the individual to prevent the fall. Usually where there is a loss of consciousness, Dr. Molloy stated that there was probably a cardiac or stroke issue. He went on to describe how a fall may have a cardiac or vascular cause or a cause related to the central nervous system, such as a seizure. He described how there may be a vasovagal attack or a transient ischemic attack (TIA). Dr. Molloy provided his opinion that the fall in the flower garden was due to an arrhythmia or a vasovagal attack. He went on to describe the impact of certain drugs on the individual and how they might increase the risk for a fall. He referred to the cognitive decline that may increase with increased age and described the effect of the sympathetic system and the parasympathetic system on blood pressure, together with the influence of the vagus nerve.

[73] He concluded his examination in chief by testifying that if Ms. Musselman had fallen from the top of the stairs, he would have expected greater injuries, at the very least, bruises. I agree with this latter opinion. In cross examination, he agreed that there was no reference to a transient ischemic attack in any of the medical notes or reports and agreed with Dr. Dombrower’s report that Ms. Musselman’s post-quadruplegia syncope is not relevant with respect to her pre-fall condition.

[74] He repeated his opinion with respect to the 1999 “flower bed fall” that Ms. Musselman had fallen as a result of an episode of syncope, although he agreed with plaintiffs’ counsel that a

viral illness can cause both weakness and dizziness. Dr. Molloy told the court that he had not been apprised of Ms. Musselman's explanation for her fall in the flower garden (that she lost her balance on an unstable rock retaining wall). Dr. Molloy agreed that if that were true, that that would simply be an environmental cause for the fall. He agreed as well that references to autonomic dysreflexia following her fall on the stairs would be from the quadriplegia itself. Dr. Molloy stated his opinion that Ms. Musselman fell on the stairs because she "got dizzy" as a result of a vasovagal attack or an arrhythmia. He stated that she had just eaten a meal and had visited the washroom, which would have increased her risk of a vasovagal attack. He conceded that an echocardiogram conducted after the fall had detected no arrhythmia.

[75] It can fairly be said that Dr. Molloy waived little in his expressed opinions. However, he considered only the intrinsic factors that might be present based upon his general knowledge and experience with falls among older persons. He did not consider external or environmental factors that might have related to any of her previous falls or to the fall on February 10, 2004. He testified that he had simply been asked to consider what intrinsic factors may have caused or contributed to her fall and was not asked to assess extrinsic or environmental factors. He also advised the court that he considered only internal factors because Gloria Musselman clearly had fallen backward on the stairs. He testified that he had "never heard of anyone falling backward on stairs".

[76] The court appreciates Dr. Molloy's assistance in describing the many risk factors in general that may cause or contribute to falls among older persons. I have carefully considered his evidence but must take into account the general nature of much of it and as well his focus only on intrinsic causes.

[77] Dr. Joyce Daly was called by the defendants. Dr. Daly is an orthopaedic surgeon, with privileges at Cambridge Memorial Hospital. Dr. Daly became, however briefly, Gloria Musselman's treating physician, as a result of Ms. Musselman's fall on October 11, 2001. It will be remembered that Ms. Musselman described how she was attempting to carry four quilting frames and manoeuvre them into her car. It was raining and as she was trying to accomplish this task, she slipped and fell and suffered a fracture to her right lateral malleolus (her ankle). The events that follow, in terms of her treatment, may be of some significance in assessing the probative value of Dr. Daly's testimony and the weight that should be given to the reliance that other witnesses placed upon some of Dr. Daly's initial notes.

[78] Attention should first be given to the ambulatory care record at Cambridge Memorial Hospital, which is found at Exhibit 5, Tab 14. The first page details her attendance at the emergency department on the 11th of October, immediately following her fall. Apparently the attending physician was Dr. Quinlan. He describes the injury and prescribes an air cast, some Percocet and a direction to keep the limb elevated.

[79] One may then turn to page 4, which is a copy of the brief notes made by Dr. Daly, on the occasion of Gloria Musselman's first visit with Dr. Daly at Cambridge Memorial Hospital, at the fracture clinic. This visit occurred on the 15th of October 2001. Dr. Daly's brief note simply details that she slipped at her car while carrying wooden quilt frames in the rain. It then contains the single word "neuropathy".

[80] Turning to page 5, one can read the "Consultation Report" dictated by Dr. Daly with respect to Gloria Musselman's visit more than three weeks earlier. According to the report, it was dictated by Dr. Daly on November 5 and transcribed on November 6. The report includes a

brief description of the accident, the diagnosis of her injury and the care she received. The report also contains, however, the following comment:

“Gloria’s significant past medical history is that of bilateral lower extremity neuropathy. She therefore has poor position sense when ambulating. She has otherwise not any significant ankle injuries.”

[81] Further on in the same report, Dr. Daly states the following under “Impression”:

“Gloria Musselman has an undisplaced lateral malleolar fracture in addition to having sensory neuropathy in her feet. The fracture itself at this point is not very significant. However, the neuropathy can compound this significantly because of her inability to protect it by sense of pain... Again, we will be watching for evidence of a Charcot deformity due to her neuropathy.”

[82] Dr. Daly’s own clinical notes may be found at Exhibit 6, Tab 26. Page 1 is a copy of the notes made by Dr. Quinlan in the emergency department on the 11th of October. Page 2 is a copy of Dr. Daly’s own notes made at the time of his examination on the 15th of October, referred to above, containing the single word “neuropathy”. Page 3 is his consultation report referred to above.

[83] Gloria Musselman apparently saw Dr. Daly again on the 22nd of November 2001. Her note, found at page 6 of Tab 26, Exhibit 6 is very positive with respect to the healing of her ankle and Dr. Daly’s recommendation was that she “progressed to full weight bearing”. There was a further visit by Ms. Musselman with Dr. Daly on the 10th of December 2001. Her note with respect to that visit is found at page 8 of Tab 26. Dr. Daly notes that she was not yet “weaned out of cast” and she made a referral for physiotherapy.

[84] Gloria Musselman's final visit with Dr. Daly was on the 28th of January 2002. Dr. Daly, according to her clinical notes, found at page 9 of Tab 26, reveals that though there was still swelling the healing was progressing well and that Ms. Musselman was to "continue excellent progress". Ms. Musselman was discharged from Dr. Daly's care as of that date. She continued the physiotherapy that she had begun on the 13th of December 2001.

[85] It may be noted that Dr. Daly's consultation report apparently dictated the 5th of November 2001 appears as well in Dr. Lawrie's clinical notes, by the date November 5, 2001. Dr. Michael Lawrie was Gloria Musselman's personal and family physician.

[86] The notes or impressions of Dr. Daly contain the only references to a "bilateral lower extremity neuropathy" in Gloria Musselman's history. These notes as part of a "clinical record" obviously had some impact on some of the expert witnesses who are asked by the parties to provide opinions as to possible causes for her fall. Therefore, in my view, the evidence of Dr. Daly is of considerable importance and must be carefully considered by the court.

[87] Dr. Daly impressed me as an honest witness and a well qualified orthopaedic surgeon. She has had privileges at Cambridge Memorial Hospital since 1998. Indeed, in 2001, she had a very busy practice. She described her normal routine for the court. She attended the fracture clinic at the hospital (where she saw Gloria Musselman) one day per week. She spent one day in surgery. She spent one day on paperwork and the rest of her time was "office time". When a patient was referred, she would normally communicate with the referring physician and see the patient in the fracture clinic. Depending upon the patient's needs, she might order further attention or care such as x-rays, casts or referral to physiotherapy. On October 15, 2001, the day

she saw Gloria Musselman, she told the court she saw perhaps 40 patients on that same day. She stated that there were only two orthopods on staff to do the work of four.

[88] Under examination in chief, she advised the court that she had dealt with cases where a patient suffered from peripheral neuropathy prior to Gloria. She stated that a neuropathy can contribute to a fall and can impact as well on treatment because of reduced sensation in the limb.

[89] With respect to her reference in her consultation report to a “bilateral lower extremity neuropathy”, Dr. Daly stated she had no recollection of the source of that information. She added that you do not treat a neuropathy in the fracture clinic; that in the normal course she would advise the patient to consult with a family doctor, with respect to a neuropathy. It may be noted that Gloria Musselman testified that Dr. Daly never made reference to a neuropathy when she was with Dr. Daly.

[90] Under cross examination, Dr. Daly testified that a reference to “neuropathy” was not intended to mean a motor neuropathy. She stated that a history of falls “could” indicate a bilateral lower extremity neuropathy, but falls could be due to other causes. She conceded that certainly a person could have four falls without having a neuropathy. A conclusion of neuropathy should not be based on simply the number of falls.

[91] She advised the court that if Dr. Lawrie, as a competent family physician, suspected that Gloria Musselman suffered from a bilateral lower extremity neuropathy he would chart it and perhaps refer the issue for further attention and care. She would certainly expect a competent family physician to caution his patient with respect to her activities, if the doctor suspected a neuropathy.

[92] In the end, the court is left speculating as to why Dr. Daly made reference to a bilateral lower extremity neuropathy in her consultation report or a “neuropathy” in her initial note. When she testified, she was certainly unable to provide any sound medical reason for that reference. Did she, as a cautious and conscientious physician include that reference simply based on Ms. Musselman’s history of prior falls? That would be pure speculation. I would simply note the context of the reference in a consultation report dictated more than three weeks after contact with the patient, when such contact was in the course of a very busy day, and when the orthopaedic surgeon’s attention would be focused on the fractured lateral malleolus. Suffice to say that reference was accepted at face value by Ms. Deborah Taggart, the physiotherapist, to whom Ms. Musselman was referred and who provided physiotherapy to deal with Ms. Musselman’s fractured ankle.

[93] Deborah Taggart impressed me as an honest witness and a competent and conscientious physiotherapist. When called as a healthcare provider by the plaintiffs, she testified that she has provided service as a physiotherapist since 1999. She advised the court that when she first saw Gloria Musselman on the 13th of December 2001, she had a copy of Dr. Daly’s consultation report dictated the 5th of November 2001, with the above-noted reference to a “bilateral lower extremity neuropathy”. She also had copies of the diagnostic imaging reports (x-rays) found at pages 7 and 9 of Tab 14. Ms. Taggart’s own notes with respect to her physiotherapy are found at pages 11, 12 and 13 of the ambulatory care record (Exhibit 5, Tab 14). She advised the court that her habit is to type out her notes shortly after each session. For what it’s worth, Ms. Taggart testified that Dr. Daly had once made an error in the consultation report she had received. She telephoned Dr. Daly and Dr. Daly conceded the error and approved a correction.

[94] She testified that during her training as a physiotherapist, she had received information with respect to peripheral neuropathies, but that as a physiotherapist dealing with a fractured ankle, a neuropathy would be a side issue.

[95] Ms. Taggart advised the court that the initial attendance (13 December 2001) would involve a discussion with the patient of her history, her current circumstances and her goals. There would then be a testing. She advised the court that the reference in her notes to a “lower extremity neuropathy” (LE Neuropathy) would have come from Dr. Daly’s consultation report. She recalled no detailed conversation with Gloria Musselman with respect to a neuropathy. Counsel spent some time deciphering the acronyms contained in her notes and brief references to her condition at that time. The bottom line was that Ms. Musselman was expected to return after the Christmas holidays. Ms. Taggart prescribed a home exercise program (HEP) and anticipated that physiotherapy would have duration of six weeks.

[96] Ms. Musselman did attend on one further occasion prior to Christmas, on the December 17, 2001. Physiotherapy then continued on the January 8, 2002, and February 5, 2002, at which time Gloria Musselman was discharged from physiotherapy. Essentially, she had made excellent progress and required no further physiotherapy. She was discharged with a “continued streamlined home program”. Ms. Taggart testified that her “global impression” was that Gloria Musselman had progressed quickly and progressed well, and that she worked well with the home program. Under cross-examination, Ms. Taggart testified that she remembered Gloria Musselman well, that she was “full of energy...dynamic” and that she expected that Ms. Musselman was an excellent volunteer at the Fairview Mennonite Home. She further testified

that she had “no safety concerns as far as her balance was concerned”. If she had any concerns she would have continued with physiotherapy and advised the use of a gait aid.

[97] Dr. Howard Dombrower was called as an expert witness by the plaintiffs. Dr. Dombrower is a specialist in the areas of both internal medicine and geriatric medicine. He currently lectures at the division of geriatric medicine in the Faculty of Medicine at the University of Toronto. Amongst the many positions that Dr. Dombrower has held or currently holds I would note that he is the Medical Director of the Baycrest Home for the Aged and the Medical Director of Rehabilitation at Baycrest. Baycrest is a large facility with some 500 residents. Dr. Dombrower also serves as a consultant at a number of other seniors residences. His full curriculum vitae is found at exhibit 10, tab 11, and his report is found at tab 12. It may be noted from his report that his review of available material was extensive indeed, material both pre and post accident. Among the many records and reports which he considered in coming to his opinions with respect to Ms. Musselman, he included the records of Dr. Joyce Daily (exhibit 6, tab 26), the records of Dr. Thevaki Sivakumaran (exhibit 6, tab 25), the pre-injury records from Cambridge Memorial Hospital from October 11, 2001 to February 5, 2002 (exhibit 5, tab 14), the pre-injury records of Dr. Michael Lawrie (exhibit 6, tab 17), the report of Dr. Bruce Stewart dated July 20, 2009 (exhibit 12, tab 6) and reports from Dr. Peter Ashby, dated December 22, 2008 and April 10, 2009 (exhibit 10, tabs 7 and 8). He paid particular attention to the report of Dr. David Molloy, dated June 10, 2009 (exhibit 12, tab 5) as well the report of Dr. Bruce Stewart dated July 20, 2009 (exhibit 12, tab 6). He also conducted an extensive search of the authoritative literature dealing with falls among the elderly, extrinsic and intrinsic causes of such falls, and environmental hazards, specifically hazards posed by stairs. Some of this literature is appended to his report and was referred to by him during the course of his testimony.

[98] Dr. Dombrower has extensive experience in dealing with lower extremity neuropathies. He testified that 25 per cent of seniors suffer from lower extremity neuropathies; indeed, some 50 per cent of seniors over 80 suffer from such neuropathies.

[99] His attention was directed to the report authored by Dr. Molloy, which basically proposed that the cause of Ms. Musselman's fall was a "medical cause" and his evidence with respect to whether she suffered a cardiac arrest. Dr. Dombrower stated that in his opinion, a heart attack did not cause the fall, that it was simply impossible to believe that Gloria Musselman suffered a heart attack, then fell, then experienced her cervical injury, and then survived the heart attack. He stated that this was not a fall because of a cardiac arrest, that the fall likely caused by her slipping on the stairs.

[100] He continued by saying that in his experience and based upon his research and the literature, he is able to say that most backward falls amongst the elderly are not due to cardiac arrest.

[101] He continued his testimony by saying that based upon his review of all the medical records, and the opinions of other health care providers, there was no evidence that Gloria Musselman suffered from a severe peripheral neuropathy. She was, prior to her fall, an active and vibrant woman. She was not one of the "frail elderly". If there was any intrinsic cause for her fall it would have been minimal.

[102] Dr. Dombrower characterized Dr. Molloy's report as "biased". He went on to say that 75 percent of falls involve an environmental cause as the factor. He said it was "troubling" that external factors were not given proper consideration by Dr. Molloy in his report.

[103] Dr. Dombrower then went on to discuss the various risk factors and various types of neuropathy including an anatomic neuropathy, which may result in constant dizziness when a person gets up because of the blood pooling in the legs. He agreed that the history of falls was a significant factor for consideration, and stated that balance problems usually are associated with the cerebellum. However, all of the medical reports gave no evidence of a balance problem as far as Gloria Musselman was concerned. Neither was there any evidence of a lower leg weakness prior to her fall.

[104] He stated that nothing in her medical records suggested a cardiac risk for a fall. Her arrhythmia was likely caused by her fall. There was no evidence of post-prandial hypotension. Dr. Dombrower continued by saying that he would rewrite his comment in the third paragraph on page four of his report to make it clear that there was no evidence that hypotension or a neuropathy caused Ms. Musselman's fall.

[105] Dr. Dombrower noted that clearly Gloria Musselman suffers from autonomic problems now that could cause a blackout. Any autonomic or neuropathic symptoms currently are due to her cervical injury.

[106] Dr. Dombrower concluded his examination in chief by stating that experience has shown that 40 per cent of falls are back falls, 50 per cent are forward falls and 10 per cent are to the side; that "older persons are completely different" from younger persons and that it would be "very hard to know with certainty what truly happened".

[107] Under cross examination, Dr. Dombrower agreed that falls are the leading cause of non fatal injuries, indeed are a higher cause of such injuries than motor vehicle collisions. Falls are

in fact the second leading cause of spinal cord and brain injuries. He then dealt with the hazards that are posed by stairs, and agreed with counsel that Gloria Musselman's history of falls (six in four years) was a "significant history of falls".

[108] When Dr. Molloy's opinion was put to him, that an arrhythmia was likely the cause of the fall because it was a backward fall, Dr. Dombrower stated firmly that there was no correlation between the manner of falling and the cause. He was referred to Dr. John Templar's text "The Staircase" and stated that he didn't agree that rearward falls on ascent are "relatively rare". He stated that you can't predict the direction of a fall from an intrinsic cause, though he agreed that it was probably "more likely" that a person would fall forward on ascent. A forward fall may be "more likely" but not "highly probable".

[109] Dr. Peter Ashby was called as an expert witness by the plaintiffs. Dr. Ashby is an eminently qualified neurologist. He currently is a consultant neurologist and a professor emeritus at the University of Toronto. His curriculum vitae is found at exhibit 10, tab 7. His reports are found at exhibit 10, tabs 8, 9 and 10. As an expert witness, Dr. Ashby had arguably one advantage over some of these witnesses called. Not only did he express his opinions based upon Gloria Musselman's previous medical history, he had the advantage of dealing directly with Ms. Musselman, albeit after her fall. On April 7, 2009, he conducted a clinical examination, nerve conduction studies and an electromyography (EMG).

[110] Dr. Ashby testified that after first reading Dr. Daly's report; he was suspicious that there might be a peripheral neuropathy. He noted the report of Dr. Sivakumaran, that there was nothing in that report to suggest a peripheral neuropathy.

[111] Dr. Ashby introduced exhibit 72 “a full body chart”, exhibit 73 a leg chart showing the nerves and muscles to be stimulated by the EMG and exhibit 74, a leg chart showing the nerves from the ankle. Dr. Ashby provided an explanation of the effect of a pain full stimulus to the toe. He emphasized that he also tested the reflexes, the knee jerk and the ankle jerk.

[112] Dr. Ashby emphasized, as did other witnesses that to properly test for a neuropathy you must do nerve conduction studies. It was noted that none were done, and specifically there was no EMG done prior to the accident.

[113] In assessing Dr. Daly’s “diagnosis”, Dr. Ashby indicated that on Dr. Daly’s subsequent contacts with Ms. Musselman there was no indication of a neuropathy, and that with respect to her diagnosis nowhere was there any indication of a neurological examination.

[114] When Dr. Ashby examined Ms. Musselman on April 7, 2009, he testified that generally a stimulus produced a response. He said the knee jerk was “very brisk” and the ankle jerk was “visible”. A painful stimulus to the big toe produced a “vigorous” upward movement. His conclusion based upon these tests was that there was evidence of a peripheral neuropathy but that it was ‘mild” and that this could well be a consequence of the quadriplegia itself. Dr. Ashby explained that patients who are quadriplegic have a 50 to 100 per cent chance of developing a neuropathy because of nerve compression and trans-synaptic degeneration, or simply the toxic effect of infection.

[115] Dr. Ashby testified that upon examination he found no real wasting of the calf muscle. He found some wasting of the small foot muscles, consistent with being quadriplegic for five

years. He addressed himself to the physiotherapy notes of Debra Taggart (exhibit 5, tab 14) and noted that she found the “calf muscles good”.

[116] Dr. Ashby testified that in cases of a mild peripheral neuropathy, there is “a remarkable ability to compensate using vision for example” and that there is no necessary limitation on mobility or abilities. He added that to feel ones feet “asleep” is quite a common passing symptom in people.

[117] Under cross examination Dr. Ashby advised that most patients will be aware of the symptoms of a neuropathy and that prior to his testing of Gloria Musselman, based in the medical records, (including Dr. Daly’s report) he was concerned with the evidence of a possible peripheral neuropathy. However, after his testing, he said his conclusion was that only a “minor degree” of neuropathy “could” have existed in February of 2004. With respect to the report of Dr. Daly, Dr. Ashby stated “the existence of severe neuropathy in 2004 is very unlikely”. In his opinion a neuropathy was not responsible for her fall down the basement stairs on February 10, 2004.

[118] Referring specifically to exhibit 75, a sketch Dr. Ashby provided showing the “progress” of a neuropathy, he noted that in 2009 the most distal nerve, the toe was still active. In sum his opinion was that given his testing, including the EMG, and his knowledge of the progress of a peripheral neuropathy, that if Gloria Musselman had a peripheral neuropathy in 2004 it was mild and would not have contributed to her fall down the stairs at 859 Queen Street West.

[119] The plaintiffs called Dr. Michael Lawrie as Gloria Musselman’s personal family physician. He has been for many years. Dr. Lawrie’s curriculum vitae is found at exhibit 6, tab

16. It may be noted that besides carrying on a general practice in Cambridge with active staff privileges at Cambridge memorial hospital since 1977, he also attends to patients at five local nursing homes and several retirement homes.

[120] Dr. Lawries's dealings with Ms. Musselman are set out in his records dating from November 28, 1994 up to June 23, 2009 (exhibit 6, tab 17, 18, 19 and 20). Dr. Lawries's reporting letters are found at exhibit 6, tabs 21, 22 and 23.

[121] I found Dr. Lawrie to be a very honest and impressive witness. He may not have the "expertise" of some of the medical specialists who testified but he clearly is a conscientious, competent and dedicated general physician who has provided "hands on" medical attention to Ms. Musselman over many years, including the years immediately preceding February 10, 2004.

[122] During his testimony Dr. Lawrie specifically adopted his reporting letters found at exhibit 6, tabs 21, 22 and 23. I will note only several of the opinions he expresses in those reporting letters. In the letter of September 28, 2008, (tab 21) Dr. Lawrie states inter alia:

11. Gloria at no time complained of sensory problems in her lower extremities.

12. The only time that Gloria complained of ambulation difficulties was after injuries involving her lower extremities. In every case, the symptoms resolve when the condition healed as expected.

13. The only reference to neuropathy in my office notice is found in Dr. Daly's report of November 5, 2001.

16. In my opinion, Dr. Daly refers to pre-existing health conditions that are not substantiated in my medical records. Therefore, I do not believe the claim of the past issue of neuropathy is valid.

18. Regarding the injury of November 28, 2003, there were no concerns of Gloria managing stairs at home prior to the accident. She was moving a trolley and caught her heel on a step.

22. If Gloria had a lower extremity neuropathy, her abilities prior to the injury indicate that she could ascend and descend safely. As mentioned above, her one fall on stairs was the result of carrying an object that was awkward and would obstruct her view. This situation was compounded by the catching of her heel. It is therefore my opinion, that Gloria's ability to handle stairs prior to injury adds further support to the conclusion that she did not have a lower extremity neuropathy.

23. I find it unlikely that an individual with sensory neuropathy would be able to handle stairs that are of normal steepness and step separation and escape incident and diagnosis.

[123] As noted above, Dr. Lawrie adopted these comments during his testimony and his reporting letters in general. In sum he stated that there was no indication of a neuropathy of the lower extremities in his dealings with Gloria Musselman, and never was there any proper diagnosis of such. It may be noted that Ms. Musselman suffered from a number of medical problems over the years that she was tended to by Dr. Lawrie, many of them consistent with her advancing age. Otherwise expressed, this was not a situation where Dr. Lawrie saw Gloria Musselman once a year for an "annual physical". He saw her on a reasonably regular basis to deal with issues that had nothing to do with her fall on the stairs on February 10, 2004.

[124] In examination in chief, Dr. Lawrie went through Ms. Musselman's medical history, including the "flower bed" incident in 1999. He testified that the results of the Holter Monitor indicated that there was no heart abnormality. Her problems in 1999, Dr. Lawrie testified, had no cardiovascular cause. They may have been due to a transient illness, possibly a viral flu or other stomach problems. On September 23, 1999, his notes reveal "syncope spells resolved". He further stated that there was no indication of any further syncope or presyncope prior to her fall.

[125] Dr. Lawrie's records include the report of Dr. Thevaki Sivakumaran as a result of her examination of Ms. Musselman of September 20, 1999. Dr. Lawrie testified that this appeared to be a normal neurological examination, with no indication of neuropathy. With respect to Dr. Daly's reference to the "bilateral lower extremity neuropathy" of November 5, 2001, Dr. Lawrie testified that in all of his professional dealings with Ms. Musselman, there was no evidence of a neuropathy or of "poor position sense when ambulating". As a result he testified that he "just let pass" that reference by Dr. Daly.

[126] Ms. Musselman's complaint of "leg cramps at night", Dr. Lawrie testified were a common adult complaint, and he found no evidence of "wasting calf and foot intrinsics", but if there was any indication of such, it could have been caused by a cast being worn after one of her falls.

[127] Under cross examination Dr. Lawrie conceded that a person who fell "seven times in four years with four fractures" could be "suggestive but not conclusive of neuropathy" and as well that "feet asleep" could be a symptom of neuropathy.

[128] In sum, the evidence of Dr. Lawrie, the physician who had considerable and regular contact with Gloria Musselman over a period of many years prior to February 10, 2004 was that there was nothing to suggest that her fall was due to a peripheral neuropathy, nor was it due to an arrhythmia or cardiac problem that could have resulted in an episode of syncope causing her to fall on the stairs.

[129] Having dealt with the evidence of the health care practitioners, I turn to the evidence of the lay witnesses, whose testimony is perhaps every bit as probative if not more so than that of the “experts”.

[130] It will be remembered that Gloria Musselman worked at the Fairview Mennonite Home for Retired Seniors until she was forced to retire at age 70, on the August 21, 2002. Since then, she continued as a volunteer, working many hours each week until her fall on February 10, 2004. All of the evidence leads to the conclusion that she lived a vibrant, active lifestyle.

[131] Nancy Kinsie testified as the Manager of Independent Living at the Fairview Mennonite Home. She testified that in 1989 Ms. Musselman became very active on the Women’s Auxiliary, responsible for special events and visiting programs. In 1993, Ms. Musselman became the part-time Volunteer Coordinator. She maintained an office on the main floor of Fairview. She was salaried “one-half time” but she worked far more than that. She was involved over the years in much physical work, including climbing ladders, setting up tables etc. and used the many stairs in the facility extensively. She supervised a lunchtime exercise group which involved climbing eight stories of stairs and traversing the halls between each floor. This activity was conducted once to three times per week. She testified that Gloria Musselman never had a problem with stairs.

[132] Ms. Kinsie advised the court that Gloria was required to retire formally at age 70 but continued as an auxiliary and as a volunteer. She said she was a woman with very high energy. She stated “Gloria never stops”.

[133] Ms. Kinsie was also involved in one of Ms. Musselman's weekend hiking groups. Roger Baer was called by the plaintiffs. He is a retired high school teacher who was born in 1941. When he retired the Rockway Mennonite Church asked him to lead a seniors walking group on the weekend from nine a.m. to twelve noon. Most seniors were in their sixties. Gloria was part of that group through 2002 and 2003. Mr. Baer described the various hikes they would take and testified that she never had a problem.

[134] Statements of facts were introduced on consent of counsel by Mary Burkholder and Lewis Brubacher. Ms. Burkholder was part of the hiking group, together with Gloria Musselman. In her agreed statement, she stated in part "the hiking group was a group of people in early retirement who hiked together. They hiked on local trails that were a variety of flat, hilly, paved and unpaved." Ms. Burkholder continued to state that she never saw Ms. Musselman fall or do anything that set her apart from the other hikers. She was "not one who complained of physical limitations".

[135] Lewis Brubacher in his agreed statement noted that Gloria Musselman was part of the hiking group regularly in the year prior to her injury. He stated "the hikes were generally about one and a half hours long and were more often than not through woods, and would generally be on fairly smooth trails but the trails could be rocky and were often hilly. Gloria never fell and never complained of any problems with her legs or feet or any medical conditions that would impair her ability to participate." Mr. Brubacher described Ms. Musselman as "very spry and active and someone with a busy life".

[136] The evidence of both Gloria Musselman and her husband Gerald is that of a devoted partnership. They shared responsibilities in the home. Gerald was the principle breadwinner but

Gloria also added to the family income from her activities at the Fairview Mennonite Home. Within the home Gloria had principle responsibilities with respect to the cooking and housework, but Gerald would assist her. Outside the home they worked together doing the gardening, shoveling snow from driveways and walks etc. Ms. Musselman was an active participant in taking care of the home.

[137] Mark Musselman, who had always maintained a close relationship with his mother, described his mother's activity level as "high". He testified that her timetable was "filled to the brim", that she was always involved in helping other people, that she never demonstrated any physical limitations.

[138] I have already touched upon the close relationship between Gloria Musselman and her daughter Carolyn and Carolyn's evidence with respect to Gloria's care for her granddaughter Leanna while Carolyn was completing her legal studies. Prior to the accident, Carolyn Musselman described her mother as "very active...out and about". She was the "ultimate attender".

[139] Having carefully considered all of the medical evidence and the evidence of the lay witnesses, I come to the conclusion, without reservation, that there was no intrinsic cause responsible for Gloria Musselman's fall on the stairs at the Cities Bistro on February 10, 2004. Any suggestion that she suffered from an arrhythmia, hypotension, cardiac arrest, an episode of syncope related to some other cause, or suffered from neuropathy of her extremities would be pure speculation. I therefore must determine whether I am persuaded on a preponderance of the evidence whether her fall was caused by the unsafe condition of the staircase.

Causation

[140] It is clear that the test for causation has been set by the Supreme Court of Canada in the case of *Resurface Corp. v. Hanke* [2007] S.C.J.7, [2007] 1S.C.R.333. Chief Justice McLaughlin stated at paragraph 20 though 28:

[20] Much judicial and academic ink has been spilled over the proper test for causation in cases of negligence. It is neither necessary nor helpful to catalogue the various debates. It suffices at this juncture to simply assert the general principles that emerge from the cases.

[21] First, the basic test for determining causation remains the “but for”. This applies to mutli-cause injuries. The plaintiff bears the burden of showing that “but for” the negligent act or omission of each defendant, the injury would not have occurred. Having done this, contributory negligence may be apportioned, as permitted, as permitted by statute.

[22] This fundamental rule has never been displaced and remains the primary test for causation in negligence actions. As stated in *Athey v. Leonati*, at para 14, per Major J., “the general, but not conclusive, test for causation is the “but for” test, which requires the plaintiff to show that the injury would not have occurred but for the negligence of the defendant.” Similarly, as I noted in *Blackwater v. Plint* at para 78, “the rules of causation consider generally whether “but for” the defendants acts, the plaintiff’s damages would have been incurred on a balance of probabilities”.

[23] The “but for” test recognizes that compensation for negligent conduct should only be made “where a substantial connection between the injury and the defendant conduct” is present. It ensures that a defendant will not be held liable for the plaintiff’s injuries where they “may very well be due to factors unconnected to the defendant and not the fault of anyone”: *Snell v. Farrell*, at page 327, per Sopinka J.

[24] However, in special circumstances, the law has recognized exceptions to the basic “but for” test, and applied a “material contribution” test. Broadly speaking, the cases in which the ‘material contribution’ test is properly applied involve two requirements.

[25] First, it must be impossible for the plaintiff to prove that the defendant’s negligence caused the plaintiff’s injury using the “but for” test. The impossibility must be due to factors that are outside of the plaintiff’s control: for example, current limits of scientific knowledge. Second, it must be clear that the defendant

breached a duty of care owed to the plaintiff, thereby exposing the plaintiff to an unreasonable risk of injury, and the plaintiff must have suffered that form of injury. In other words, the plaintiff's injury must fall within the ambit of the risk created by the defendant's breach. In those exceptional cases where those two requirements are satisfied, liability may be imposed, even though the quote "but for" test is not satisfied, because it would offend basic notions of fairness and justice to deny liability by applying the "but for" approach.

[141] Chief Justice McLaughlin then went on to outline examples of exceptions to the "but for" principle. They need not be quoted.

[142] In my view, causation is "essentially a practical question of fact that can best be answered by ordinary common sense" (see *Farrell v. Snell* [1990] 2 S.C.R. 311).

[143] In *Snell v. Farrell* [1990] 2 S.C.R. 311 (referred to by Chief Justice McLaughlin in *Resurface Corp. v. Hanke* noted above) Mr. Justice Sopinka provides a thorough analysis of the case law prior to 1990 and sets the guideline for determination of liability when proof positive of causation is difficult. *Snell v. Farrell* was a medical malpractice case. I appreciate the facts are quite different from the facts in the case at bar, but in my view the principles enunciated by Mr. Justice Sopinka may well be applicable. After referring to the decision of the House of Lords in *McGhee v. National Coal Board* [1972] 3 All E. R. 1008 [1973] 1 W.L.R. 1. Mr. Justice Sopinka stated at paragraph 22:

Two theories of causation emerge from an analysis of the speeches of the speeches of the Lords in this case. The first, firmly espoused by Lord Wilberforce, is that the plaintiff need only prove that the defendant created a risk of harm and that the injury occurred within the area of the risk. The second is that in these circumstances, an inference of causation was warranted in that there is no practical difference between materially contributing to the risk of harm, and materially contributing to the harm itself.

[144] Mr. Justice Sopinka continued at paragraph 27:

Causation is an expression of the relationship that must be found to exist between the tortious act of the wrongdoer and the injury to the victim in order to justify compensation of the latter out of the pocket of the former. Is the requirement that the plaintiff prove that the defendant's tortious conduct caused or contributed to the plaintiff's injury too onerous? Is some lesser relationship sufficient to justify compensation? I have examined the alternatives arising out of the *McGhee* case. They were that the plaintiff simply prove that the defendant created a risk that the injury which occurred would occur. Or, what amounts to the same thing, that the defendant has the burden of disproving causation. If I were convinced that the defendants who have a substantial connection to the injury were escaping liability because plaintiffs cannot prove causation under applied principles, I would not hesitate to adopt one of these alternatives. In my opinion, however, properly applied, the principles relating to causation are adequate to the task. Adoption of either of the proposed alternatives would have the effect of compensating plaintiffs where substantial connection between the injury and the defendant's conduct is absent. Reversing the burden of proof may be justified where two defendants negligently fire in the direction of the plaintiff and then by their tortious conduct destroy the means of proof at his disposal. In such a case it is clear that the injury was not caused by neutral conduct. It is quite a different matter to compensate a plaintiff by reversing the burden of proof for an injury that may be very well due to factors unconnected to the defendant and not the fault of anyone.

[145] After considering the recommendation of the Royal Commission on Civil Liability and Compensation for Personal Injury, (Pearson Report, Volume 1) (London: HM Stationary Off. 1978), Justice Sopinka stated at para. 30:

I am of the opinion that the dissatisfaction with the traditional approach to causation stems to a large extent to its too rigid application by the courts in many cases. Causation need not be determined by scientific precision. It is, as stated by Lord Salmon in *Alphacell Limited v. Woodward* (1972) A.C. 824, (1972) 2 All E.R. 475 at 490 (H.L.):

Essentially a practical question of fact which can best answered by ordinary common sense rather than abstract metaphysical theory.

Furthermore, as I observed earlier, the allocation of the burden of proof is not immutable. Both the burden and the standard of proof are flexible concepts. In *Blatch v Archer* (1974), 1 COWP. 63, 98 E.R. 969 at 970, Lord Mansfield stated:

It is certainly a maxim that all evidence is to be weighed according to the proof which it was in the power of one side to have produced, and in the power of the other to have contradicted.

[146] After a consideration of further jurisprudence, Mr. Justice Sopinka continued at paras. 33 and 34:

These references speak of the shifting of the secondary or evidential burden of proof or the burden of adducing evidence. I find it preferable to explain the process without using the term secondary or evidential burden. It is not strictly accurate to speak of the burden shifting to the defendant when what is meant is that the evidence adduced by the plaintiff may result in an inference being drawn adverse to the defendant. Whether an inference is or is not drawn in a matter of weighing evidence. The defendant runs the risk of an adverse inference in the absence of evidence to the contrary. This is sometimes referred to as imposing on the defendant a provisional or tactical burden. See: Cross, 6th Ed., at page 129. In my opinion, this is not a true burden of proof, and use of an additional label to describe what is an ordinary step in the fact finding process is unwarranted.

The legal or ultimate burden remains with the plaintiff, but in the absence of evidence to the contrary adduced by the defendant, an inference of causation may be drawn although positive or scientific proof of causation has not been adduced. If some evidence to the contrary is adduced by the defendant, the trial judge is entitled to take account of Lord Mansfield's famous precept. This is, I believe, what Lord Bridge had in mind in *Wilsher* when he referred to "a robust and pragmatic approach to the ... facts" (at page 881).

[147] In *Snell v. Farrell* the trial judge had made the comment "I am of the opinion that the plaintiff has prima facie proved that the defendant's actions caused the plaintiffs injury and that the defendant has not satisfied the onus that shifted to him". Mr. Justice Sopinka commented on this statement at para. 43:

The finding in the last paragraph can be read as a finding of causation inferred from the circumstances and in the absence of evidence to the contrary in satisfaction of the evidential burden cast upon the defendant. Or it could be interpreted as accepting Lord Wilberforce's formulation in *McGhee* which reverses the ultimate burden upon finding that a risk was created and that injury occurred within the area of the risk. If the former was intended, I am of the opinion that such an inference was fully warranted on the evidence. On the other hand, if the latter is the interpretation to be placed upon that statement, and I am inclined to think that it is, then I am satisfied that had the trial judge applied the principles referred to above he would have drawn an inference of causation between the appellant's negligence and the injury to the respondent.

[148] Mr. Justice Sopinka further stated at para. 45:

I am confident that had the trial judge not stated that “I cannot go beyond this since neither doctor did and I should not speculate”, he would have drawn the necessary inference. In stating the above, he failed to appreciate that it is not essential to have a positive medical opinion to support a finding of causation. Furthermore, it is not speculation but the application of common sense to draw such an inference where, as here, the circumstances, other than a positive medical opinion, permit.

[149] The inference referred to by Mr. Justice Sopinka must be distinguished from mere conjecture or speculation. In *Caswell v. Powell Duffryn Associated Collieries Limited* (1940), A.C. 152 (HL), the court stated at p. 169:

Inference must be carefully distinguished from conjecture or speculation. There can be no inference unless there are objective facts from which to infer the other facts which it has sought to establish. In some cases the other facts can be inferred with as much practical certainty as if they had been actually observed. In other cases the inference does not go beyond reasonable probability. But if there are no positive proof facts from which the inference can be made, the method of inference fails and what is left is mere speculation or conjecture.

[150] I am mindful of a number of cases in which the trial judge inferred causation in the absence of “proof positive” established by eye witness testimony, I cite for instance *Whitlow v. 572008 Ontario Inc.* (1995) Carswell Ont. 2438 (Gen. Div.), *Rehak v. McLellan* (1992) Carswell Ont. 3789 (Gen. Div.) *Robins v. Tremblay* (1993) Carwell Ont. 3057 (S.C.J.) and *Cantlon v. Timmins City* (2006) Carswell Ont. 2933 (S.C.J.).

[151] No one actually saw Gloria Musselman fall on the stairs. Effectively several person “heard” her fall, and several persons saw the immediate effect of the fall, her crumpled body on the landing. Having rejected the possibility that her fall was caused by any intrinsic factors, and

applying my common sense to the evidence, I arrive at the inescapable conclusion that her fall was due to the unsafe condition of the stairs. Otherwise expressed, the unsafe staircase caused her to lose her balance and to fall, thereby causing the injury for which the plaintiffs claim damages.

[152] My comments to this point make it clear that I have concluded the defendant City of Toronto bears at least some liability, some responsibility for the unsafe staircase. There may be others who bear liability as well, I therefore turn to the issue of liability.

Apportionment of Liability

The Corporation of the City of Toronto

[153] The liability of the City of Toronto in law is undeniable on the evidence. The principles governing such conclusion may be summarized by reference to two cases from the Supreme Court of Canada, *Rothfield v. Manolakos* (1989), 2 S.C.R. 1259 and *Ingles v. Tutkaluk Construction Limited* (2000) 1 S.C.R. 298. The facts in each case are different from the case at bar, however the principles enunciated by the Supreme Court of Canada are clearly applicable.

[154] The case of *Rothfield v. Manolakos* involved a claim by the owner of the property against a contractor and subcontractor and against the City of Vernon in British Columbia for the negligent construction of a retaining wall. Any dissent in the case (which was only in part) had to do with the responsibility of an owner/builder and the City. Mr. Justice LaForest for himself, Chief Justice Dickson and Justice Gontier, dealt with the responsibility of a municipal corporation beginning at paragraph 4. He stated:

The city adopted the relevant building by-law “for the health, safety and protection of persons and property” pursuant to section 734 of the *Municipal Act*, R.S.B.C., c 290, as amended. By application of the test formulated by Lord Wilberforce in *Anns v. Marton London Burrow Council* (1978) A.C. 728, and adopted by this court in *City of Kamloops v. Nielsen* (1984) 2 S.C.R. 2, the city, once it made the policy decision to inspect building plans and construction, owed a duty of care to all who it is reasonable to conclude might be injured by the negligent exercise of those powers. This duty is, of course, subject to such (page 1267) limitations as may arise from statutes bearing on the powers of the building inspector.

[155] Mr. Justice LaForest continued at paras. 5 and 6:

(5) In *City of Kamloops v. Nielsen*, this court did not deal with an owner/builder, but I see no reason why such a person would not fall within the scope of the duty of care owed by a municipality. There is, admittedly, an important distinction between the reliance of third parties on a municipal building inspector and the reliance of an owner/builder. Third parties, such as neighbors and subsequent purchasers or occupiers of a building, obviously have no say in the actual construction of a building that proves defective. It is nevertheless reasonable that they should be entitled to rely on the municipality to show reasonable care in inspecting the progress of the construction. Owner/builders, by contrast, are in a position to ensure that the building is built in accordance with the relevant building regulations, and from this it may be argued that they are not entitled to rely on the municipality. This would appear to be the view of Cory J. who states that it is the owner who should ensure through his contractors that the building is safe and structurally sound, and complies with municipal by-law.

(6) I am unable to accept this position. As a preliminary matter, it is not clear to me how owner/builders, unless possessed of a high degree of technical knowledge, are supposed to see to it that their contractors comply with the technical aspects of building by-laws. Doubtless owner/builders can choose their contractors, and it is incumbent upon them to hire reputable tradesman. But I fail to see how, having done that, they are in a position to ensure that construction actually proceeds according to standard. Owner/builders can hardly be expected to serve as their own inspectors. It can, I think, safely be assumed that the great majority of those who engage building contractors to undertake a project must rely on the disinterested expertise of a building inspector to ensure that it is (page 1268) properly done. In that respect, owner/builders are in a position similar to third parties who may be affected by the construction. Like them, they are, in my respectful opinion, entitled to rely on the municipality to properly inspect construction to see that it conforms to the standards set out in the municipality’s building by-laws.

[156] I am fully mindful of the standard of care that the Supreme Court of Canada has in effect visited upon municipalities with respect to their obligation. At paragraph 8, Mr. Justice LaForest continued:

Finally, I do not share the view that applying the law to owner/builders in this way would make the municipality an insurer in respect of compliance by the owner with applicable building standards. It must be borne in mind that a municipality, once it has made the policy decision to inspect construction, is not bound to discover every latent defect in a given project, nor every derogation from applicable standards. That would be to hold the municipality to an impossible standard. Rather a municipality is only called upon to show reasonable care in the exercise of its powers of inspection. Accordingly, a municipality, whether the duty of care is owed to an owner builder or a third party, (page 1269) will only incur liability for such defects as it could reasonably be expected to have detected and to have ordered remedied. This is implicit in the decision of this court in the *City of Kamloops v. Neilson*.

[157] On the facts of the case in *Rothfield v. Manolakos*, Mr. Justice LaForest formulated a question at para. 21 of his decision “In other words, is it reasonable, in the circumstances to conclude that a due exercise by the inspector of his powers, even though he was summoned late, could have avoided the danger?” In further assessing the obligation upon the municipality, Mr. Justice LaForest answered his own question in this way at paras. 22-24 of the judgment;

(22) When the question is framed in this way, I think the answer must be in the affirmative. The inspector could not and did not rely on the plans submitted to him; it was inadequate. He chose instead to rely solely on the onsite inspection. And when he attended at the site, he was confronted with a situation which, if left unremedied, manifestly stood to pose a threat to the health and safety of the public, including the neighbours and the owner/builder. Of course, the cause of the problem would have been evident if the inspector had been asked to come at the proper time. But this does not absolve the inspector of his duties. It must be remembered that the inspector was, at the time, armed with all the powers necessary to remedy the situation. As I see the matter, it was incumbent upon the building inspector, in view of the responsibility that rested on him, to order the cessation of the work, and the taking of whatever corrective measures were necessary to enable him to ensure that the structure was up to standard.

(23) Indeed, the inspector stipulated that the situation be monitored for a certain time and that construction proceed if no further damage occurred. In my view, this was negligence. When a building inspector authorizes a given project to proceed this must be taken as an indication that the inspector has satisfied himself that the project conforms to applicable standards. On what other basis could the building inspector, acting prudently, authorize construction to proceed? Here, on the (page 1275) facts, I do not see how the building inspector, using reasonable care, could have satisfied himself that this was the case. Even leaving aside the fact that the project was already showing signs of damage, the inspector, never having inspected the structure, simply did not have at his disposal any information on which to base a conclusion that the project was up to standard. Indeed, had the inspector simply turned to the city's records or inquired about the manner in which the structure was built or about the materials used in the construction, he would have discovered from the specifications what he ought to be taken to know in any event, that the structure was deficient in a number of important aspects.

(24) To return, then, to my initial proposition that it would be unreasonable to hold the owners to be the "sole authors of their loss", I see a vital distinction between this case and instances where an owner/builder determines to flout the building by-law, or is completely indifferent to the responsibilities that the by-law places on him. In such circumstances, owner/builders cannot reasonably allege that any damage they suffer is a result of the failure of the building inspector to take reasonable care to ensure that a given construction project is built in conformity with the by-laws. They have, by their actions, placed themselves outside the scope of the duty owed by the public authority. In effect, their breach of the regulations is such as to justify the conclusion that they can have no reasonable expectation that they are entitled to rely on the due exercise of the inspection power to forestall dangers to their health and safety. In summary, the duty of building inspectors should not be taken to extend to requiring them to ferret out those who are aware or indifferent as to whether work is being done illegally, and who persist in that course of action.

[158] I noted above that the facts were different in *Rothfield v. Manolakos* and the case at bar. Suffice to say I am not concerned with the liability of an owner/builder, in this case the "builder" is the tenant, Brian Heasman.

[159] The case of *Ingles v. Tutkaluk Construction Limited* further clarified the obligations of a municipality; in that case, the Corporation of the City of Toronto. In *Ingles*, the owner of the property authorized a contractor to commence renovations prior to obtaining a building permit.

When he did obtain such a permit and when there was an inspection, the building inspectors were unable to inspect certain critical aspects of the construction and relied simply on the contractors' assurances that it conformed to building code. The work ultimately proved defective. The owner was required to pay for extensive repairs and sued the City of Toronto for negligence inspection.

[160] Mr. Justice Bastarache delivered the judgment for a unanimous Supreme Court. The judgment constitutes a thorough analysis of the obligations of a municipality with respect to its obligation to inspect and to approve construction and clarifies any of the ambiguity that may have emerged from *Rothfield v. Manolakos*. One is tempted to simply cite the judgment in its entirety, but I avoid such temptation and will instead refer to only a few directly relevant paragraphs. At paragraphs 16 and 17, Justice Bastarache outlines a test for whether a duty of care is owed by the municipality to the individual plaintiff. The test is clearly met in the case at bar.

[161] Mr. Justice Bastarache then continued at paragraph 20 to outline the standard of care expected of the municipality:

Once it is determined that an inspection has occurred at the operational level, and thus that the public actor owes a duty of care to all who might be injured by a negligent inspection, a traditional negligence analysis will be applied. To avoid liability, the government agency must exercise a standard of care in its inspection that would be expected of an ordinary, reasonable and prudent person in the same circumstances. Recently, in *Ryan v. Victoria*, supra, at para. 28, Major J. reaffirmed that the measure of what is reasonable in the circumstances will depend on a variety of factors, including the likelihood of a known or foreseeable harm, the gravity of that harm and the burden or cost which would be incurred to prevent the injury. The same standard of care applies to a municipality which conducts an inspection of a construction project. While a municipal inspector will not be expected to discover every latent defect in a project, or every derogation from the Building Code Standards, it will be liable for those defects that it could

reasonably be expected to have detected and to have ordered remedied; see, for example *Rothfield v. Manolakos*, supra, at pp. 1268-69.

[162] Mr. Justice Bastarache then went on to set out in some detail the provisions of the *Building Code Act*, Revised Statutes of Ontario 1990, which visit responsibility and potential liability upon a municipality, including sections 3, 5, 6, 8, 9, 10 and 11. These sections set out the responsibilities and powers of the municipality through its agents, which responsibilities and powers were woefully neglected or ignored in the case at bar.

[163] Mr. Justice Bastarache continued his analysis at paragraphs 23 and 24. He stated:

(23) The legislative scheme is designed to insure that uniform standards of construction safety are imposed and enforced by the municipalities. Sections 5 and 6 of the *Act* require that building plans and specifications be inspected before a permit is issued to ensure that they conform with the Building Code. Section 8 to 11 set out the powers of the inspector to ensure that all work that is being completed conforms with the permit and, as a result, with the Building Code. Inspectors are given a broad range of powers to enforce the safety standards set out in the Code, from ordering tests at the owner's expense, to ordering that all work cease in general. Section 9 grants inspectors the power to order builders not to cover work pending inspections, or to uncover work where there is reason to believe that any part of the building has not been (page 317) constructed in compliance with the *Act*. The purpose of the building inspection scheme is clear from these provisions: To protect the health and safety of the public by enforcing safety standards for all construction projects. The Province has made the policy decision that the municipalities appoint inspectors who will inspect construction projects and enforce the provisions of the *Act*. Therefore municipalities owe a duty of care to all who it is reasonable to conclude might be injured by the negligence exercise of their inspection powers.

(24) It would appear from the use of the word "may" in subsections 8 to 11 that municipalities have the discretion under the *Act* to decide whether to inspect and enforce the safety standards after construction has begun. Therefore, it may be open to the municipalities to make policy decisions as to whether to inspect in certain circumstances. Of course, all such policy decisions must be made in good faith and in a way that is consistent with the overall purpose of insuring the health and safety of the public. Such decisions can only be immune from civil action when they accord with the overall purpose of the statutory scheme. Here, the

evidence is that the city had made a policy decision to inspect construction, even if the permit was issued after the construction had begun.

[164] Mr. Justice Bastarache then referred to other jurisprudence, including Mr. Justice LaForest's decision in *Rothfield*. He stated at paragraph 39:

To summarize, despite some ambiguity in the language used in his decision, it is clear that LaForest J. created a complete defence for municipalities that could be used to militate against a finding of negligence only in the rarest of circumstances, namely, when the owner/builder's conduct was such that a court could only conclude that he or she was the sole source of his or her loss. This complete defence may encompass those situations where an owner/builder never applies for a building permit, or never notifies the inspector of the need for an inspection, or those situations where the inspector receives notification so late that it would be impossible, upon full exercise of the powers granted under the governing legislation, to discover any hidden defects. In other cases, such as *Rothfield v. Manolakos*, supra, itself, it will still be open to municipalities to show that that a plaintiff was contributorily negligent, and to seek an apportionment of the damages accordingly. It is also clear that once a municipality chooses to implement a policy decision to inspect, it owes a duty to all who might be injured by the negligent exercise of those powers, including building owners, to take reasonable care in conducting that inspection.

[165] Mr. Justice Bastarache then effectively summarized the duty of care on the municipality.

At para. 40 he stated:

As I have stated above, to avoid liability the city must show that its inspectors exercised a standard of care that would be expected of an ordinary, reasonable and prudent inspector in the same circumstances. The measure of what constitutes a reasonable inspection will vary depending upon the facts of each case, including the likelihood of a known or foreseeable harm, the gravity of that harm, and the burden or cost that would be incurred to prevent the injury; see for example *Ryan v. Victora*, supra, at para. 28, for example, a more thorough inspection may be required once an inspector is put on notice of the possibility that a construction project may be defective. In addition, a municipal inspector may be required to exercise greater care when the work being inspected is integral to the structure of the house and could result in serious harm if it is defective. While in some circumstances a more thorough inspection will be required to meet the standard of care, municipalities will not be held to a standard where they are required to act as insurers for the renovation work. The city was not required to discover every

latent defect in the renovations at the appellant's home. It was, however, required to conduct a reasonable inspection in light of all of the circumstances; see, for example, *Rothfield v. Manolakos*, supra, at pp. 1268-69.

[166] I conclude that the City of Toronto was clearly negligent in a number of ways:

1. The city was negligent in approving the plans for the construction of the new staircase. The rough plan accepted by the city may be found as part of the application for the building permit (page 8) at Exhibit 13, Tab 34. The approval stamp of the city is dated May 10, 1990. It is interesting to note in passing that the rough sketch of the staircase (which is completely without dimensions) may not even accord with the final structure (see for example the two runs and three risers which appear on the plan as compared with the one run and two risers that were then constructed). It may also be noted that the application for a building permit by Mr. Heasman reveals a change in the application from a 32 seat restaurant to a 30 seat restaurant. A 32 seat restaurant would have required an architect's plan and an architect's stamp of approval. Such was not required for a 30 seat restaurant. However, certainly much more than the rough sketch approved by the city should have been required before a permit was issued.
2. The city was grossly negligent, through its agent, Mr. Yunger, in its process of inspection, while construction was underway. The evidence is uncontested that Mr. Yunger attended on a number of occasions. He of course as a building inspector, is expected to know the Building Code and reasonable

construction standards in general. As it was being constructed, or certainly at some point prior to final approval, it would have or most certainly should have been apparent to Mr. Yunger that this was an unsafe staircase presenting potential hazards to future users. Mr. Yunger had full authority to require the construction of a safe staircase. He failed to do so, which failure is visited upon the City of Toronto.

3. The city, through its agent or agents, was grossly negligent in giving final approval to the staircase, effectively certifying it as “safe for use”. It clearly was not. It was an “accident waiting to happen”. Regrettably, the “accident” that happened to Ms. Musselman had tragic consequences.

[167] It remains for determination whether there are others who share responsibility with the City of Toronto.

Cities Bistro and Brian Heasman

[168] I shall deal with Cities Bistro and Brian Heasman effectively as one entity. Cities Bistro, on the date of the accident, was Brian Heasman’s corporation. It was the restaurant he was operating on the premises. Brian Heasman was the tenant and was clearly an occupier of the premises, whose liability arises pursuant to the *Occupier’s Liability Act* (which I shall deal with in greater detail when I consider the liability of Fred and Ida Dominelli). Mr. Heasman was responsible for the construction of the staircase, which I have concluded, merely by observation to a reasonable person, would appear to be not simply “steep” but also unsafe.

[169] Apart from its initial construction, there may have been some changes to the staircase which were not even approved initially by the City of Toronto, but for which Mr. Heasman bears responsibility as occupier of the premises. I note for instance changes that may have occurred with respect to the handrail on the east side of the staircase. The evidence is that at least one bracket had broken loose and was dangling from the handrail. The upper end of the handrail, the evidence suggests, may well have been reattached to the upper post by simply nailing it to the upper post at a height lower than might have been approved initially by the city inspector. Suffice to say, there was no distance at all between the handrail and that upper post as the Ontario Building Code requires (I am mindful that I have determined the preponderance of the evidence persuades me that Ms. Musselman's fall occurred much further down the stairs than at the upper landing).

[170] Mr. Heasman testified that there "may have been" a handrail on the west side of the staircase at some point, but somehow it had disappeared, leaving the west side of the staircase below the upper floor, totally open to the basement floor. This not only presented a potential hazard for someone falling through the opening and on to the basement floor, but also removed the possibility of a brace or a handhold for someone ascending or descending the stairs. Being persuaded on a preponderance of the evidence that Ms. Musselman fell while ascending the lower portion of the staircase above the landing, I conclude that she lost her balance due to the excessive and inconsistent risers and inadequate runs and being unable to obtain a firm grip with her right hand on the east handrail, she may well have reached out to regain her balance with her left hand and found in fact nothing as an aid. There was no wall, there was no guard, there was no handrail. This would be quite consistent with her counter rotation and subsequent fall onto

her left side on the landing. In my view, Mr. Heasman's responsibility for her fall is at least as great as that of the City of Toronto.

The Liability of Fred Dominelli

[171] The liability of Fred Dominelli must be found in his being an "occupier" or potentially a "landlord" pursuant to the *Occupier's Liability Act*, R.S.O. 1990. As is suggested by section 2 of the *Act* and in my view as made clear by the jurisprudence, the *Occupier's Liability Act* was intended to supersede the common law rules of negligence which visited liability upon landlords and tenants of property and differentiated between, for instance, invitees and trespassers. The *Act* is intended to expand the liability of owners and landlords of property in appropriate circumstances. Under the common law, an owner of property was quite entitled to lease a defective or unsafe property (depending upon the circumstances) without risking any liability to the lessee or to third parties. That is no longer necessarily the case. However, given the expanded liability found in the *Occupier's Liability Act*, it is only in the rare and exceptional case that liability may be found against an owner who is not an "occupier" for leasing unsafe premises. I exclude the circumstance where an owner knowingly leases an unsafe or hazardous property without revealing the hazard to the lessee. Such is not the case at bar.

[172] I shall begin my assessment of Mr. Dominelli's potential liability by citing the appropriate provisions of the *Occupier's Liability Act*.

Definitions

1. In this Act,
"occupier" includes,

- (a) a person who is in physical possession of premises, or
- (b) a person who has responsibility for, and control over the condition of premises or the activities there carried on, or control over persons allowed to enter the premises, despite the fact that there is more than one occupier of the same premises; (“occupant”)

“premises” means lands and structures, or either of them, and includes,

- (a) water,
- (b) ships and vessels,
- (c) trailers and portable structures designed or used for residence, business or shelter,
- (d) trains, railway cars, vehicles and aircraft, except while in operation. (“lieux”) R.S.O. 1990, c. O.2, s. 1.

Common law duty of care superseded

2. Subject to section 9, this Act applies in place of the rules of the common law that determine the care that the occupier of premises at common law is required to show for the purpose of determining the occupier’s liability in law in respect of dangers to persons entering on the premises or the property brought on the premises by those persons. R.S.O. 1990, c. O.2, s. 2.

Occupier’s duty

3.(1) An occupier of premises owes a duty to take such care as in all the circumstances of the case is reasonable to see that persons entering on the premises, and the property brought on the premises by those persons are reasonably safe while on the premises.

Idem

(2) The duty of care provided for in subsection (1) applies whether the danger is caused by the condition of the premises or by an activity carried on on the premises.

Idem

(3) The duty of care provided for in subsection (1) applies except in so far as the occupier of premises is free to and does restrict, modify or exclude the occupier’s duty. R.S.O. 1990, c. O.2, s. 3.

Risks willingly assumed

[4.\(1\)](#) The duty of care provided for in subsection 3 (1) does not apply in respect of risks willingly assumed by the person who enters on the premises, but in that case the occupier owes a duty to the person to not create a danger with the deliberate intent of doing harm or damage to the person or his or her property and to not act with reckless disregard of the presence of the person or his or her property.

Restriction of duty or liability

[5.\(1\)](#) The duty of an occupier under this Act, or the occupier's liability for breach thereof, shall not be restricted or excluded by any contract to which the person to whom the duty is owed is not a party, whether or not the occupier is bound by the contract to permit such person to enter or use the premises.

Obligations of landlord as occupier

[8.\(1\)](#) Where premises are occupied or used by virtue of a tenancy under which the landlord is responsible for the maintenance or repair of the premises, it is the duty of the landlord to show towards any person or the property brought on the premises by those persons, the same duty of care in respect of dangers arising from any failure on the landlord's part in carrying out the landlord's responsibility as is required by this Act to be shown by an occupier of the premises.

Idem

[\(2\)](#) For the purposes of this section, a landlord shall not be deemed to have made default in carrying out any obligation to a person unless the landlord's default is such as to be actionable at the suit of the person entitled to possession of the premises.

Definitions

[\(3\)](#) For the purposes of this section, obligations imposed by any enactment by virtue of a tenancy shall be treated as imposed by the tenancy, and "tenancy" includes a statutory tenancy, an implied tenancy and any contract conferring the right of occupation, and "landlord" shall be construed accordingly.

Preservation of higher obligations

9.

(3) The *Negligence Act* applies with respect to causes of action to which this Act applies. R.S.O. 1990, c. O.2, s. 9.

[173] The principal position of the plaintiffs is that Mr. Dominelli was an “occupier” pursuant to the definition found in section 1 of the *Act*. They concede that he was not in physical possession of the premises but maintain that he was a person who had “responsibility for and control over the condition of the premises or the activities there carried on”. If that were so, then the principals of negligence would apply because pursuant to section 3 (1) he would owe “a duty to take such care as in all the circumstances of the case is reasonable and to see that persons entering on the premises, and the property brought on the premises by those persons are reasonably safe while on the premises” The plaintiff’s also rely upon section 8 of the *Act*, the “obligations of landlord as occupier”.

[174] It will be remembered that Mr. Dominelli acquired an equitable interest in 859 Queen Street West (together with his wife, Ida Dominelli) in November of 1979. Their property was then leased for a number of years. Mr. Heasman apparently became a sub-lessee from the previous tenant, Mr. Ashley Perry. He effected his renovations and opened Cities Bistro for business in 1990. On the 22nd of December 1994, Mr. Heasman entered into a new lease as “lessee” with Fred Dominelli as the “lessor”. They then entered into a further lease on the 30th of December 1999. That lease is found at tab 37 of exhibit 13 and is between Brian Heasman as “tenant” and Fred Dominelli as “landlord”. That lease was, pursuant to paragraph 3, for a term of 5 years ending on the 31st day of December 2004. This was therefore the lease that governed

their relationship at the time of Gloria Musselman's fall on the stairs, on the 10th of February 2004. The terms of this lease are therefore of some relevance in my determination of whether Fred Dominelli was in fact an "occupier" pursuant to the *Occupier's Liability Act* on the day in question. I therefore will touch upon some of the terms of that lease.

[175] Paragraph 2 (4) states:

- (4) The landlord and the tenant agree that it is their mutual intention that this lease shall be a completely careful net lease for the landlord and that the landlord shall not, during the term of this lease, be required to make any payments in respect of the premises other than charges of a kind personal to the landlord (such as income and estate taxes and mortgage payments):
 - (a) and to affect the said intention of the parties the tenant promises to pay the following expenses related to the premises as additional rent;
 - (i) business taxes and licenses;
 - (ii) utilities (including but not limited to gas, electricity, water, heat, air conditioning);
 - (iii) services supplied to the premises, provided that this does not in any way oblige the landlord to provide any services, unless otherwise agreed to in this lease;
 - (iv) property taxes and rates, duties and assessments;
 - (v) maintenance;
 - (vi) insurance premiums;
 - (vii) sales tax, and any other taxes imposed on the landlord respecting the rent;
 - (viii) any other charges, impositions, costs and expenses of every nature and kind whatsoever;
 - (b) and if any of the foregoing charges are invoiced directly to the tenant, the tenant shall pay same as and when they become due and shall produce proof of payment to the landlord immediately if requested to do so;

- () but the tenant may contest or appeal any such charges at the tenant's own expense;
- (c) and the tenant hereby agrees to indemnify and protect the landlord from any liability accruing to the landlord in respect of the expenses payable by the tenant as provided for herein;
- (d) and if the tenant fails to make any of the payments required by this lease then the landlord may make such payments and charge to the tenant as additional rent the amounts paid by the landlord;
- (i) and if such charges are not paid by the tenant on demand the landlord shall be entitled to the same remedies and may take the same steps for recovery of the unpaid charges as in the event of rent and arrears.
- (e) and if the tenant enjoys the use of any common areas and facilities not included in the premises, the tenant shall pay his proportionate share of the foregoing expenses relating to such common areas and facilities.

[176] Paragraph 3 of the lease provides for the term of 5 years and states in subparagraph 2:

- (2) Subject to the landlord's rights under this lease, and as long as the lease is in good standing the landlord covenants that the tenant shall have quiet enjoyment of the premises during the term of this lease without any interruption or disturbance from the landlord or any other person or persons lawfully claiming through the landlord.

[177] Paragraph 5 of the lease provides:

Use

- (1) During a term of this lease the premises shall not be used for any purpose other than a licensed restaurant on the main floor and a residential apartment on the second floor.
- (2) The tenant shall not do or permit to be done at the premises anything which may:
- (a) constitute a nuisance;
- (b) cause damage to the premises;

- (c) cause injury or annoyance to occupants of neighbouring premises;
- (d) make void or voidable any insurance upon the premises;
- (e) constitute a breach of any by-law, statute, order or regulation of any municipal, provincial or other competent authority relating to the premises.

[178] Of significant note, paragraph 6 deals with “repair and maintenance”. It provides:

- (1) The tenant covenants that during the term of this lease and any renewal thereof the tenant shall keep in good condition the premises including all alterations and additions made thereto, and shall, with or without notice, promptly make all needed repairs and all necessary replacements as would a prudent owner:
 - (a) but the tenant shall not be liable to effect repairs attributable to reasonable wear and tear, or to damage caused by fire, lightening or storm.
- (2) The tenant shall permit the landlord or a person authorized by the landlord to enter the premises to examine the condition thereof and view the state of repair at reasonable times:
 - (a) and if upon such examination repairs are found to be necessary, written notice of the repairs required shall be given to the tenant by or on behalf of the landlord and the tenant shall make the necessary repairs within the time specified in the notice;
 - (b) and if the tenant refuses or neglects to keep the premises in good repair the landlord may, but shall not be obliged to, make any necessary repairs, and shall be permitted to enter the premises, by himself or his servants or agents, for the purpose of effecting the repairs without being liable to the tenant for any loss, damage or inconvenience to the tenant in connection with the landlord’s entry and repairs;
 - (i) and if the landlord makes the repairs the tenant shall pay the cost of them immediately as additional rent.
- (3) Upon the expiry of the term or other determination of this lease the tenant agrees peaceably to surrender the premises, including any alternations or additions made thereto, to the landlord in a state of good repair, reasonable wear and tear and damage by fire, lightening and storm only accepted.

- (4) The tenant shall immediately give written notice to the landlord of any substantial damage that occurs to the premises from any cause.

[179] Paragraph 7 of the lease states:

Alterations and Additions

- (1) If the tenant, during the term of this lease or any renewal of it, desires to make any alterations or additions to the premises, including but not limited to erecting partitions, attaching equipment, and installing necessary furnishings or additional equipment of the tenant's business, the tenant may do so at his own expense, at any time and from time to time, if the following conditions are met:
 - (a) before undertaking any alteration or addition the tenant shall submit to the landlord a plan showing the proposed alterations or additions and the tenant shall not proceed to make any alteration or addition unless the landlord has approved the plan, and the landlord shall not unreasonably or arbitrarily withhold his approval;
 - (i) and items included in the plan which are regarded by the tenant as "trade fixtures" shall be designated as such on the plan;
 - (b) any and all alterations or additions to the premises made by the tenant must comply with all applicable Building Code standards and by-laws of the municipality in which the premises are located.
- (2) The tenant shall be responsible for and pay the cost of any alterations, additions, installations or improvements that any governing authority, municipal, provincial or otherwise, may require to be made in, on or to the premises.
- (3) No sign, advertisement or notice shall be inscribed, painted or affixed by the tenant, or any other person on the tenant's behalf, on any part of the inside or outside of the building in which the premises are located unless the sign, advertisement or notice has been approved in every respect by the landlord.
- (4) All alterations and additions to the premises made by or on behalf of the tenant, other than the tenant's trade fixtures, shall immediately become the property of the landlord without compensation to the tenant.

- (5) The tenant agrees, at his own expense and by whatever means may be necessary, immediately to obtain the release or discharge of any encumbrance that may be registered against the landlord's property in connection with any additions or alterations to the premises made by the tenant or in connection with any other activity of the tenant.
- (6) If the tenant has complied with his obligations according to the provisions of this lease, the tenant may remove his trade fixtures at the end of the term or other termination of this lease and the tenant covenants that he will make good and repair or replace as necessary any damage caused to the premises by the removal of the tenant's trade fixtures.
- (7) Other than as provided in paragraph 7 (6) above, the tenant shall not, during the term of the lease or any time thereafter remove from the premises any trade fixture or other goods and chattels of the tenant except in the following circumstances:
 - (a) the removal is in the ordinary course of business;
 - (b) the trade fixture has become unnecessary for the tenant's business or is being replaced by a new or similar trade fixture; or
 - (c) the landlord has consented in writing to the removal;but in any case the tenant shall make good any damage caused to the premises by the installation or removal of any trade fixtures, equipment, partitions, furnishings and any other objects whatsoever brought onto the premises by the tenant.
- (8) The tenant shall, at his own expense, if requested by the landlord, remove any all additions or improvements made by the tenant to the premises during the term and shall repair all damage caused by the installation or the removal or both.
- (9) The tenant shall not bring onto the premises or any part of the premises any machinery, equipment or any other thing that might in the opinion of the landlord, by reason of its weight, size or use, damage the premises or overload the floors of the premises;
 - (a) and if the premises are damaged or overloaded the tenant shall restore the premises immediately or pay to the landlord the cost of restoring the premises.

[180] Paragraph 8 of the lease provides as follows:

Insurance

- (1) During the term of this lease and any renewal thereof the landlord shall maintain with respect to the premises, insurance coverage insuring against;
 - (a) Loss or damage by fire, lightening, storm and other perils that may cause damage to the premises or the property of the landlord in which the premises are located as are commonly provided for as extended perils coverage or as may be reasonably required and obtained by the landlord;
 - (i) and the insurance policy shall provide coverage on a replacement cost basis in an amount sufficient to cover the cost of all signs and leasehold improvements;
 - (b) Liability for bodily injury or death or property damage sustained by third parties up to such limits as the landlord in his sole discretion deems advisable;
 - (c) Rental or income protection insurance with respect to fire and other perils to the extent of one year's rent payable under this lease;
 - (i) but such insurance and any payment of the proceeds thereof to the landlord shall not relieve the tenant of its obligations to continue to pay rent during any period of rebuilding, replacement, repairing or restoration of the premises except as provided in section 9.
 - (ii) the tenant covenants to keep the landlord indemnified against all claims and demands whatsoever by any person, whether in respect of damage to person or property, arising out of or occasioned by the maintenance, use or occupancy of the premises or the subletting or assignment of same or any part thereof. And the tenant further covenants to indemnify the landlord with respect to any encumbrance on or damage to the premises occasioned by or arising from the act, default, or negligence of the tenant, its officers, agents, servants, employees, contractors, customers, invitees or licensees:
 - (a) and the tenant agrees that the foregoing indemnity shall survive the termination of this lease

notwithstanding any provisions of this lease to the contrary.

- (iii) the tenant shall carry insurance in his own name to provide coverage with respect to the risk of business interruption to an extent sufficient to allow the tenant to meet his ongoing obligations to the landlord and to protect the tenant against loss of revenues.
- (iv) the tenant shall carry insurance in his own name ensuring against the risk of damage to the tenant's property within the premises caused by fire or other perils and the policy shall provide for coverage on a replacement cost basis to protect the tenant's stock and trade, equipment, trade fixtures, decorations and improvements.
- (v) the tenant shall carry public liability and property damage insurance in which policy the landlord shall be a named insured and the policy shall include a cross liability endorsement;
 - (a) and the tenant shall provide the landlord with a copy of the policy.

[181] Paragraph 9 deals with damage to the premises by fire or other peril. Paragraph 10 deals with acts of default and the landlord's remedies. Paragraph 11 deals with termination upon notice and at the end of term and paragraphs 12 and 13 deal with an acknowledgement by the tenant upon notice of the terms of the lease and the usual subordination and postponement term.

[182] I repeated in some detail various terms of the lease so that it may be clear that as between the owner/landlord of the property and the tenant/lessee of the property, Brian Heasman, this was as they appearly cleared to intend a "completely carefree net lease". The lessee, Brian Heasman was responsible for all expenses and charges including utilities, property taxes, insurance premiums, etc. (paragraph 2 (4)). Paragraph 6 of the lease clearly provides that the Tenant, Mr. Heasman would be responsible for all maintenance, although the landlord, Fred Dominelli,

would be entitled to enter the premises to check the state of the premises and to take steps if necessary to require the tenant to maintain the premises in a state of good repair.

[183] I have set out above numerous conditions of the Lease which may be of minimal relevance, but which may give some better indication of the relationship between Fred Dominelli and Brian Heasman and specifically the status of Fred Dominelli, who was clearly the owner and landlord of the property. As evidence of their conduct throughout their relationship, it is also of some significance in assessing whether Mr. Dominelli was an “occupier” pursuant to the *Occupier’s Liability Act*. It is clear from the evidence that Mr. Dominelli had effectively nothing to do with the renovations that took place in the Spring of 1990 and specifically the construction of the staircase which caused Gloria Musselman’s fall. The application for the building permit was made by Brian Heasman. He retained the workmen who constructed the staircase. During that period, the evidence is at best, that Mr. Dominelli may have “dropped in” to see how the renovations on a whole were going. Following the opening of the restaurant, Mr. Dominelli dropped in, at most, once a month to pick up the rent cheque. The evidence is uncontested that he had never dined at the restaurant and there is no evidence that he ever used the basement washrooms or descended the stairs.

[184] Counsel have cited a great many cases which deal with when an owner/landlord may become an “occupant” pursuant to the *Occupier’s Liability Act*. If in fact the owner/landlord does become an occupier then the court must consider whether he is liable in negligence for the damages claimed. Specifically pursuant to section 3 (1) of the *Occupier’s Liability Act*, the court must then consider whether he has failed to take such care as in all the circumstances of the case is reasonable to see that persons entering on the premises “are reasonably safe while on the

premises”. Thus it must first be determined whether the defendant, Fred Dominelli, is an “occupier” pursuant to the definition in section 1 of the *Occupier’s Liability Act*. I conclude he is not. I do not intend to analyze all the cases that counsel have cited and that I have considered in coming to this conclusion. Both on the issue of the status of the owner/landlord and the issue of possible negligence, I have considered the cases of *Barnett-Black v. Silad Investments Inc.* (1990), O.J. No. 2008 (Gen. Div.), *Richardson v. St. James Court Apartments Limited*, [1963] 38 D.L.R. (2d) 25, *Williams v. Emmons*, [1961] 29 D.L.R. (2d) 301 (Ont. H.C.J.), *Estey v. Sannio* (1998), O.J. No. 2984 (Ont. Gen. Div.), *Perez v. Roca* (2003) O.J. No. 2942 (S.C.J.), *Perricelli v. Musca* (2002), O.J. No. 3768 (S.C.J.), *Przelski v. Ontario Casino Corp.* (2001), O.J. No. 3012 (S.C.J.) and *Borzecki v. Elay Gate Signs* (2006), O.J. No. 652 (S.C.J.). I am also mindful of such cases as *Tzogas v. Ontario Housing Corp.* (1976) O.J. No. 274 (O.C.A.) which deals with a potential cause of action by a private individual if the defendant is in breach of a municipal by-law.

[185] I need not analyze the many cases cited by counsel in detail. With respect, some are dated preceding the impact of the *Occupier’s Liability Act*. In some cases they may be distinguished from the circumstances of the case at bar because what it really comes down to, in the circumstances of the case at bar, is the defendant Fred Dominelli an “occupier” as defined by the *Occupier’s Liability Act*? Returning to section 1 of the *Act*, he is clearly not “a person who is in physical possession of the premises”. It then must be determined whether he is “a person who has responsibility for and control over the condition of the premises or the activities there carried on, or control over persons allowed to enter the premises”. He clearly is not. Pursuant to the lease and pursuant to the relationship that existed between Mr. Dominelli and Mr. Heasman it was Mr. Heasman who had responsibility for and control over the condition of the premises, as

well as the activities there carried on. Mr. Heasman as well clearly had “control over persons allowed to enter the premises”.

[186] Pursuant to paragraph 6 of the lease, Mr. Heasman had complete responsibility for repair and maintenance of the premises. It was clear from the evidence of both Mr. Heasman and Mr. Dominelli (by his examination for discovery) that Mr. Dominelli was responsible for the exterior walls and the roof of the building and Mr. Heasman was responsible for everything inside the premises. Clearly, apart from the term of the lease that required the premises to be operated as a restaurant, Mr. Dominelli had no responsibility for or control over the activities that occurred on the premises or the persons that were allowed to enter the premises. The bottom line is that if Mr. Dominelli, given his relationship with Mr. Heasman and his total lack of responsibility for and control over the premises, were found to be an “occupier” then the *Occupier’s Liability Act* would become a “Landlord’s Liability Act”, which was never the intention of the legislature.

[187] Clearly, section 8 of the *Occupier’s Liability Act* does not visit liability upon Mr. Dominelli. Put quite simply, Mr. Dominelli was not “responsible for the maintenance or repair of the premises”. Even if he was, pursuant to subsection 8 (2) there could be no action for the unsafe staircase by Mr. Heasman, who was the person “entitled to possession of the premises”. The staircase was erected at the direction of Mr. Heasman himself. Mr. Dominelli had nothing to do with such erection.

[188] Therefore, I conclude that Mr. Dominelli was not an occupier within the meaning of section 1 of the *Occupier’s Liability Act* and had no duty in accordance with section 3 of the *Act* to Gloria Musselman. He is not liable for the damages which she clearly has suffered as a result of her fall.

The Liability of Ida Dominelli

[189] For the reasons stated above that relate to Fred Dominelli, but requiring even less justification for my determination, I conclude that Ida Dominelli is not liable for any damages suffered by Ms. Musselman. She may have been on title as the owner “in trust” of the property but she never even visited the property prior to Ms. Musselman’s fall. As she was not a “lessor”, she was not “a landlord” pursuant to any contract and she clearly was not an “occupier” as defined by section 1 of the *Occupier’s Liability Act*.

[190] I therefore determine that the Municipality of Metropolitan Toronto, the Cities Bistro and Brian Heasman are joint and severally liable for any and all damages suffered by Gloria Musselman. As noted above, I deal with Cities Bistro and Brian Heasman effectively as one entity, visiting upon them joint and several liability.

[191] I have carefully considered the respective responsibilities of the City of Toronto and Brian Heasman for the unsafe staircase that clearly caused Gloria Musselman to fall on the 10th of February 2004. As noted above, the City of Toronto was grossly negligent in approving the plans for the staircase and failing to properly inspect the staircase as it was constructed and in approving the construction for use by the public. So too was Brian Heasman responsible for the structure itself and for failing, in my view, to properly maintain it during the years it was in use. Once the City of Toronto gave its “stamp of approval” to the staircase, Brian Heasman then bore continuing responsibility for the unsafe staircase. His negligence in all likelihood on a preponderance of the evidence rendered it even more unsafe. I note for instance that probable changes or lack of repair to the handrail on the east side and the removal or continuing absence

of guards or a handrail on the west side of the staircase, both of which probably played a significant part in Gloria Musselman's fall.

[192] I have carefully considered the many cases in which liability has been apportioned between various defendants who may each have contributed in tort or under the *Occupier's Liability Act* to damages suffered by a plaintiff or plaintiffs. I have in particular considered the wisdom of the Ontario Court of Appeal in the case of *Mortimer v. Cameron* (1994), O.J. No. 277 (O.C.A.). After much deliberation, I have determined the Corporation of the City of Toronto should bear 30% of the liability for the damages suffered by Gloria Musselman and Cities Bistro and Brian Heasman should bear 70% of such liability. As noted above and pursuant to the *Negligence Act*, all defendants are jointly and severally liable for the damages in their entirety.

[193] It therefore remains for this court to determine the quantum of such damages.

The Damages

Damages Suffered by Gloria Musselman

[194] Counsel have realistically agreed with respect to the quantum of damages for the cost of future care (at present value) and for Gloria Musselman's special damages. I commend them for their ability to do so. The agreement as to special damages, for instance, seems abundantly justified by the actual list of Ms. Musselman's special damages introduced as Exhibit 60. This agreement by counsel is inclusive of OHIP's subrogated claim, as I understand it of \$371,000. Counsel have agreed that Gloria Musselman's cost of future care justifies an award of one million dollars and that her special damages amount to \$828,000. I therefore direct damages under those headings in those amounts.

[195] Counsel have not agreed upon the quantum of general damages to which Gloria Musselman is entitled. Her counsel submits that she is entitled to the “rough upper limit” of \$326,000. Counsel for the defendants submits that in the circumstances of this case an award of 65% to 75% of the “cap” of \$326,000 is appropriate. In order to determine what is fair and appropriate for an award of general damages, I must consider carefully the circumstances of this case and the wisdom of precedent.

[196] I begin with the trilogy of cases published in January 1978 in which the Supreme Court of Canada set what has come to be known as the “cap” or the maximum amount that may be assessed for general damages in a case of catastrophic injury. These cases are *Andrews v. Grand & Toy Alberta Limited*, [1978] S.C.J. No. 6 1978 2 S.C.R. 229, *Arnold v. Teno (Next Friend of)*, [1978] 2 S.C.R. 287 and *Thornton (Next Friend of) v. Prince George School District No. 57*, [1978] 2 S.C.R. 267. It could be said that these cases, as a matter of policy, set a cap or a maximum award for damages for catastrophic injury in order to deal in part with the disparity in such awards that seemed to be developing across Canada and to avoid the excessive awards that were becoming common in some jurisdictions in the United States. The comments of the Supreme Court merit repetition in part at this time. The circumstances of the plaintiffs need not be repeated in detail. Suffice to say that Andrews and Thornton were both young men who were rendered severely disabled, Andrews by a motor vehicle accident and Thornton as a result of an accident at school during a physical education class. Diane Teno presented as a somewhat different plaintiff. She was a 4 ½ year old child who was struck by the defendant’s motor vehicle as she crossed the street with her 6 year old brother, to make a purchase from an ice cream vending truck. Diane Teno was not rendered as physically disabled, as either Thornton or

Andrews. She did not and would not require the same degree of care as would Thornton and Andrews. Nonetheless, she was both physically and mentally significantly disabled.

[197] In *Andrews v. Grand and Toy*, at page 18, Mr. Justice Dickson (as he then was), writing for a unanimous court began his discussion of the approach that should be taken to an award of damages for non-pecuniary losses. He stated:

Andrews used to be a healthy young man, athletically active and socially congenial. Now he is a cripple, deprived of many of life's pleasures and subjected to pain and disability. For this, he is entitled to compensation. But the problem here is qualitatively different from that of pecuniary losses. There is no medium of exchange for happiness. There is no market for expectation of life. The monetary evaluation of non-pecuniary losses is a philosophical and policy exercise more than a legal or logical one. The award must be fair and reasonable, fairness being gauged by earlier decisions; but the award must also be of necessity, be arbitrary or conventional. No money can provide true restitution. Money can provide for proper care: This is the reason that I think the paramount concern of the courts when awarding damages for personal injuries should be to assure that there will be adequate future care.

However, if the principle of the paramouncy of care is accepted, then it follows that there is more room for the consideration of other policy factors in the assessment of damages for non-pecuniary losses. In particular, this is the area where the social burden of large awards deserves considerable weight. The sheer fact is that there is no objective yardstick for translating non-pecuniary losses, such as pain and suffering and loss of amenities, to monetary terms. This area is open to widely extravagant claims. It is in this area that awards in the United States have soared to dramatically high levels in recent years. Statistically, it is the area where the danger of excessive burden of expense is greatest.

It is also the area where there is the clearest justification for moderation. As one English commentator has suggested, there are three theoretical approaches to the problem of non-pecuniary loss (Ogus, 35 MLR 1). The first, the "conceptual" approach, treats each faculty as a proprietary asset with an objective value, independent of the individual's own use or enjoyment of it. This was the ancient "bot", or tariff system, which prevailed in the days of King Alfred, when a thumb was worth 30 shillings. Our law has long since thought such a solution unsubtle. The second, the "personal" approach, values the injury in terms of the loss of human happiness by the particular victim. The third, or "functional" approach, accepts the personal premise of the second, but rather than attempting to set a value on lost happiness, it attempts to assess the compensation required to provide

the injured person “with reasonable solace for his misfortune”. “Solace” in this sense is taken to mean physical arrangements which can make life more endurable rather than “solace” in the sense of sympathy. To my mind, this last approach has much to commend it, as it provides a rationale as to why money is considered compensation for non-pecuniary losses such as loss of amenities, pain and suffering, and loss of expectation of life. Money is awarded because it will serve a useful function in making up for what has been lost in the only way possible, accepting that what has been lost is incapable of being replaced in any direct way. As Windeyer J. said in *Skelton v. Collins*, supra, at p. 495:

... He is, I do not doubt, entitled to compensation for what he suffers. Money may be compensation for him if having it can give him pleasure or satisfaction ... But the money is not then a recompense for a loss of something have a money value. It is given as some consolation or solace for the distress that is the consequence of a loss on which no monetary value can be put.

If damages for non-pecuniary loss are viewed from a functional perspective, it is reasonable that large amounts should not be awarded once a person is properly provided for in terms of future care for his injuries and disabilities. The money for future care is to provide physical arrangements for assistance, equipment and facilities directly related to the injuries. Additional money to make life more endurable should then be seen as providing more general physical arrangements above and beyond those relating directly to the injuries. The result is a coordinated and interlocking basis for compensation, and a more rational justification for non-pecuniary loss compensation.

However one may view such awards in a theoretical perspective, the amounts are still largely arbitrary or conventional. As Denning LJ said in *Ward v. James* (1965 1 All E.R. 563), there is a great need in this area for assessability, uniformity and predictability. In my opinion, this does not mean that the court should not have regard to the individual situation of the victim. On the contrary, they must do so to determine what has been lost. For example, the loss of a finger would be a greater loss of amenities for an amateur pianist than for a person not engaged in such an activity. Greater compensation would be required to provide things and activities which would function to make up for this loss. But there should be guidelines for the translation into money terms of what has been lost. There must be an exchange rate, albeit conventional. In *Warren v. King*, supra, at p. 528, the following dictum of Harman L.J. appears, which I would adopt, in respect of the assessment of non-pecuniary loss for a living plaintiff:

It seems to me that the first element in assessing such compensation is not to add up items as loss of pleasure, of earnings, of marriage prospects, of children and so on, but to consider the matter from the other side, what can be done to alleviate the disaster to the victim,

what will it cost to enable her to live as tolerably as may be in the circumstances.

Cases like the present enable the court to establish a rough upper parameter on these awards. It is difficult to conceive of a person of his age losing more than Andrews has lost. Of course, the figures must be viewed flexibly in future cases in recognition of the inevitable differences in injuries, the situation of the victim, and changing economic conditions.

The amounts of such awards should not vary greatly from one part of the country to the other. Everyone in Canada, wherever he may reside, is entitled to a more or less equal measure of compensation for similar non-pecuniary loss. Variation should be made for what a particular individual has lost in the way of amenities and enjoyment of life, and for what will function to make up for this loss, but variation should not be made merely for the province in which he happens to live.

There has been a significant increase in the size of awards under this head in recent years. As Moir J.A., of the Appellate Division of the Alberta Supreme Court, has warned: "To my mind damages under the head of loss of amenities will go up and up until they are stabilized by the Supreme Court of Canada." (*Hamel v. Prather* (1976) 2 W.W.R. 742) at p. 748). In my opinion this time has come.

It is customary to set only one figure for all non-pecuniary loss, including such factors as pain and suffering, loss of amenities, and loss of expectation of life. This is a sound practice. Although these elements are analytically distinct, they overlap and merge at the edges and in practice. To suffer pain is surely to lose an amenity of a happy life at that time. To lose one's expectation of life is to lose all amenities for the loss period, and to cause mental pain and suffering in the contemplation of this prospect. These problems, as well as the fact that these losses have the common trait of irreplaceability, favour a composite award for all non-pecuniary losses.

There is an extensive review of authorities in the Court of Appeal judgment in this case (reported in 1976 2 W.W.R. 385), as well as in the *Thornton* (reported 1976 5 W.W.R. 240) and *Teno* (reported 1976 67 D.L.R. (3d) 9), cases to which I have referred. I need not review these past authorities. What is important is the general picture. It is clear that until very recently damages for non-pecuniary losses, even from very serious injuries such as quadriplegia, were substantially below \$100,000. Recently, though, the figures have increased markedly. In *Jackson v. Millar* (1976 1 S.C.R. 225), this court affirmed the figure of \$150,000 for non-pecuniary loss in an Ontario case of a paraplegic. However, this was done essentially on the principle of non-interference with awards allowed by Provincial Courts of Appeal. The need for a general assessment with respect to damages for non-pecuniary loss, which is now apparent was not as evident at that time. Even

in Ontario, prior to these recent cases, general damages allowable for non-pecuniary loss, such as pain and suffering and loss of amenities, were well below \$100,000.

In the present case, \$150,000 was awarded at trial, but this amount was reduced to \$100,000 by the Appellate Division. In *Thornton* and *Teno* \$200,000 was awarded in each case, unchanged in the Provincial Courts of Appeal.

I would adopt as the appropriate award in the case of a young adult paraplegic like Andrews the amount of \$100,000. Save in exceptional circumstances, this should be regarded as an upper limit of non-pecuniary loss in cases of this nature.

[198] Mr. Justice Dickson (as he then was) also authored the decision of a unanimous court in the *Thornton* case. It will be remembered that his personal circumstances were similar to those of *Arnold*. In *Thornton*, the Court of Appeal for British Columbia had approved an award for non-pecuniary damages of \$200,000. Mr. Justice Dickson stated, at p. 14:

The award under noneconomic related heads of damages should be a Canadian conventional award, adjusted to meet the specific circumstances of the individual case. I am in agreement with the Court of Appeal that the pain and suffering, loss of amenities, loss of enjoyment of life and loss of expectation of life experienced by Thornton are essentially similar to that experienced by Andrews. Both were active young men with an abundance of life's pleasures before them. Both are now quadriplegics, although both are mentally unimpaired and both are mobile when provided with proper assistance. For the reasons expressed by me in Andrews I would reduce the award for non-pecuniary loss to \$100,000.

[199] The judgment in the third case of the trilogy, that of Diane Teno, was penned by Mr. Justice Spence. While adopting the approach followed by Mr. Justice Dickson in *Andrews*, the comments of Mr. Justice Spence are worthy of repetition. He stated at page 26 of the judgment:

There remains the assessment of the quantum of non-pecuniary damages. These damages are spoken of as "compensation" for pain and suffering, loss of amenities of life, loss of expectation of life – a grant of largely subjective considerations the very naming of which indicates the impossibility of precise assessments. I have recited above in very complete detail the evidence and report of a preeminent medical specialist. I repeat his conclusion: "This accident has produced one of

the most disabled children I have ever seen”. The learned trial judge in his global award of \$950,000 assigned \$200,000 as non-pecuniary damages. The Court of Appeal, despite vigorous attacks on that amount by counsel for all defendants confirmed that amount. The same counsel launched the same attack in this court.

The real difficulty is that an award of non-pecuniary damages cannot be “compensation”. There is simply no equation between paralyzed limbs and/or injured brain in dollars. The award is not reparative: There can be no restoration of the lost function. There can be no doubt that awards for non-pecuniary damages in the immediate past have been increasing a pace. In the case of many verdicts in the United States, it may well be said that they have been soaring. The reasons probably are many. Firstly, I have pointed out the impossibility of accurate assessment. Then there must be many cases of what really are expressions of deep sympathy for the terribly injured plaintiff and a mistaken feeling that his or her sore loss of the amenities of life may be assuaged by the feeling of satisfaction from a pocket full of money. There might even be some element of punishment for the wrongdoer or, the most irrelevant of considerations, a measuring of the depth of the defendant’s purse. Certainly, such awards, which one may well characterize as exorbitant, fail to accord with the requirements of reasonableness, a proper gauge for all damages.

I repeat my view expressed earlier that in these cases of very serious personal injuries the prime purpose in fixing an award of damages is the provision of adequate reasonable care for the plaintiff for the rest of the plaintiff’s life. This I have attempted above by providing a fund from which may be drawn annually the necessary sum for care and attention and by an award for loss of future income from which she may supply the ordinary necessities of life. These two amounts I reach without regard for any social impact of the admittedly, and necessarily, large award. Indeed, the social burden may only be borne by a proper and reasonable assessment of the amounts. Under the present common law system of liability for fault there can be no excuse for foisting on the public the burden of caring for the plaintiff or supplying her with the necessities of life. However, that accomplished, and I hope I have accomplished it, one may and should have regard for the social impact of very large and, as I have said, none compensatory awards for non-pecuniary damages. The very real and serious social burden of these exorbitant awards has been illustrated graphically in the United States in cases concerning medical malpractice. We have a right to fear a situation where none but the very wealthy could own or drive automobiles because none but the very wealthy could afford to pay the enormous insurance premiums which would be required by insurers to meet such exorbitant awards.

One solution might be that discussed in some English cases, i.e., to confine the non-pecuniary damages to “an arbitrary conventional sum”. This solution I seek to avoid. Rather, I adopt the course taken by my brother Dickson in *Andrews*, that is, to fix the non-pecuniary damages by reference to a rational basis for them. If,

as did my brother Dickson, one realizes that it is impossible to compensate for the losses of the various elements involved in non-pecuniary damages and that it is reasonable, nonetheless, to make an award then gauge that award by attempting to set up a fund from which the plaintiff may draw, not to compensate for those losses, but, to provide some substitute for those amenities. As Harman L.J. put it so well in *Warren v. King*, [1963] 3 All E.R. 521 at p. 528 "... what can be done to alleviate the disaster to the victim, what will it cost to enable her to live as tolerably as may be in the circumstances".

I am in respectful agreement with Dickson J. that there should be uniformity, always allowing flexibility to meet each differing individual case, in awards for non-pecuniary damages. Perhaps one should say there must be upper limits with awards lower in some cases and some higher in exceptional cases. Dickson J. has found \$100,000 as being the upper limit in both *Andrews* and *Thornton*. As I have pointed out, those were both cases of young men turned by the accidents into quadriplegics but whose mental faculties were unimpaired and who, by use of wheelchairs and appropriate automotive vehicles, will be able to get about amongst their fellow men.

The infant plaintiff Diane Teno, though not completely paralyzed, is so disabled that her very limited ability to walk is accomplished in such an awkward fashion as to cause her continual embarrassment. Her left arm is very clumsy, her right is useless because of spastic weakness, her speech is impaired and nearly unintelligible and her mental impairment has reduced her to a "dull normal range". I am of the opinion that such a condition justifies a very generous award to permit the infant plaintiff to find some way by which her life may be made a little more tolerable. Moreover, the infant plaintiff in the present appeal has a life expectancy of 66.9 years while *Andrews* has a life expectancy of only 45 years and *Thornton* only 49 years. Therefore, despite the fact that the infant plaintiff, unlike *Andrews* and *Thornton*, will not need the frequent actual treatment required by the latter such as turning in bed every two hours, the other circumstances to which I have referred justify the allowance of the same sum of \$100,000 to her under this heading of non-pecuniary damages.

[200] Thus the cap or maximum award for catastrophic injuries was set by the Supreme Court in 1978. It may be noted that though the circumstances of *Arnold* and *Thornton* were somewhat similar, the circumstances of Diane Teno were arguably different, yet each received the maximum award of \$100,000, which maximum award was set by the Supreme Court and understandably so, largely for policy reasons. In the years that followed, taking into account

inflation, the maximum award or “cap” has increased. Counsel have agreed that the award for non-pecuniary damages is now capped at \$326,000. As noted above, counsel for Gloria Musselman believes that she is entitled to such maximum award or something very close to it. Counsel for the defendants submits that something less than the cap would be fair and reasonable.

[201] There have been a great many cases, both at the trial and the appellate levels, where courts have considered the wisdom of the trilogy and applied that wisdom to individual cases across the country. I will make specific reference to only three such cases, but all three provide a useful reference to the jurisprudence at the time when they decided, and to some extent, provide a comparative analysis for the severity of the injuries suffered by the plaintiff and the circumstances of that plaintiff. The case of *Suveges v. Martens*, [2000] B.C.J. No. 1037 (SCBC) is a judgment of Warren J. of the Supreme Court of British Columbia. In that case, the plaintiff was 86 years old when she was rendered a pentaplegic, as a result of a motor vehicle collision. She required the assistance of a ventilator to breath and required 24 hour attention. She was moved to Toronto so that her daughter could look after her full time. Prior to her accident, she had reduced visual acuity, some deafness and other physical challenges. Given her age and her pre-accident medical problems, Mr. Justice Warren had to determine the fair and reasonable quantum of her non-pecuniary damages. His analysis is instructive and is found at paragraphs 12 to 22 of the judgment. He stated:

Not surprisingly counsel are not agreed on the condition of the plaintiff prior to the accident. Counsel for the plaintiff submits that she was a healthy, active, independent 86 year old woman who was able to operate her own vehicle and who took pride in her appearance and her ability to live on her own. She had travelled with her sister to Europe the summer before the accident and she was planning a return for the summer of 1999.

The plaintiff's doctor's report described her as quite functional and healthy despite her medical problems which were some reduced visual acuity dealt with surgically; some deafness; Muniers disease which caused some dizziness, particularly upon rising; and heart and circulatory problems. The plaintiff had had abdominal surgery to remove a polyp and the eye surgery to correct the cataracts a year prior to the accident. Her doctor described her as "always lively and happy at her visits to (his) office". The plaintiff's son, Paul Timothy (Tim) Revesz, testified that although his mother had hearing problems she was socially active and belonged to several book clubs. She was an active letter writer and, as well, liked to watch television and bake and cook. He said that the plaintiff's sisters would spend several months visiting with her, and that the plaintiff had other overnight guests.

Counsel for the defendant submits that the plaintiff is now an 88 year old woman who is extremely limited in her ability to enjoy and appreciate the amenities of life, both of which ought to work to reduce the award of non-pecuniary damages. Counsel argues that the plaintiff's advanced age works to reduce the non-pecuniary damages: *Munro v. Faircrest*, [1987] BCJ No. 1389 (BCCA), (23 June 1987), Vancouver CA005245, and *Olesik v. Mackin*, [1987] (BCJ) No. 229 (BCSC), (23 February 1987), Vancouver B860356. Counsel submits that any award of non-pecuniary damages should be dramatically reduced because of the plaintiff's age, her life expectancy of between one and three years, and the number of her health related difficulties before the accident. Counsel argues that as a result of the decision of the Supreme Court of Canada in *Andrews v. Grand & Toy Alta Limited* (1978), 2 S.C.R. 229 and subsequent decisions, a functional approach should be undertaken and assessing non-pecuniary damages. As Dickson J. (as she then was) (sic) stated in *Lindal v. Lindal*, [1981] 34 BCLR 273 at 279 (SCC):

Thus the amount of an award for non-pecuniary damages should not depend alone upon the seriousness of the injury but upon its ability to ameliorate the condition of the victim considering his or her particular situation.

Acknowledging that the injuries the plaintiff suffered in the accident are indeed very serious, counsel for the defendant submits that the plaintiff is able to appreciate only the most basic amenities of life, and although vast amounts of money could be expended in the attempt to improve her situation, employing the functional approach to a consideration of her advanced age and the limited use to which the money could be applied, an award for non-pecuniary damages should be extremely limited. The defendant relies upon the decisions of the BC Court of Appeal in *Knutson v. Farr*, [1984] 55 BCLR 145 and *Wipfil v. Britten*, [1984] 56 BCLR 273; and more recently the decision of Dorgan J. in *Hill v. Palmer*, [1993] BCJ No. 860 (BCSC), (5 August 1993), Vancouver B900765.

In *Knutson*, supra, the Court of Appeal reduced the award for non-pecuniary damages to \$15,000 where the plaintiff had only some awareness of his surroundings and was insensitive to pain and suffering.

The Court of Appeal in *Wipfil*, supra, was considering an appeal from a damage award for an infant who had suffered brain damage at birth. There was only some awareness of circumstances on the child's part and there was but a bleak likelihood of any improvement. The majority of the court, applying a functional approach held that while a vast sum could be spent in some vain attempt to ease the plaintiff's condition, the money would be used to no avail if the plaintiff had no capacity to appreciate the results. The majority agreed with the trial judge's award of \$75,000 for non-pecuniary damages.

The decision of Dorgan J. in *Hill*, supra, resulted in an award of \$150,000 for non-pecuniary damages for a 63 year old plaintiff who had suffered severe injuries resulting in cognitive deficiencies and emotional difficulties. The plaintiff had permanent disabilities, left side paralysis, and impaired hearing, vision and sense of smell, all of which dramatically altered and restricted her lifestyle. Although the plaintiff was able to communicate and complete simple tasks, there was no realistic hope of any improvement and she would always be dependent on others.

Plaintiff's counsel submits that the current upper range for non-pecuniary damages in catastrophic injury cases is \$265,000 and that the injuries his client has suffered are far more severe than many which have been considered to be catastrophic. Plaintiff's counsel agrees that her age and life expectancy are factors to be considered. Mr. Murphy points to the fact that both medical experts agreed that, save for the accident, the plaintiff's average life expectancy was six years. However, given her health at the time she had a greater life expectancy. The expert called by the plaintiff opined that the plaintiff's life expectancy at the date of the trial was three years. The defendant's expert said that the expectancy was one year but with a possibility of a longer life expectancy. Plaintiff's counsel urged me to accept the higher estimate because of the quality of care the plaintiff was receiving and the "vigilance" of her daughter. In *Gogol v. F.W. Woolworth Co.*, [1996] BCJ No. 2047 (BCSC), (27 September 1996), Vancouver C943529, Williamson J. agreed with defence submission that advanced age was a factor to take into account but added that "any reduction in damages under this head on account of the advanced age (72) of the plaintiff must be undertaken cautiously". I agree.

Huddard J.A. writing for the court in *Ha v. Fritzke*, [1999] BCJ No. 2711, (18 November 1999), Vancouver CA023940 (BCCA) held that while age and life expectancy were relevant facts to be considered there was no legal principle which required a trial judge to determine the proper award for a young person and to then discount the amount according to the claimant's age or life expectancy.

The plaintiff lives a life that must be constantly monitored. She is largely bedridden but she can be placed in a wheelchair. She can be taken out to church, a significantly important part of her life, but only with difficulty and then by prearrangement. The plaintiff after the accident was initially capable of speaking, but sparingly and with difficulty. This ability has waned over time. At the time of the trial the plaintiff's daughter Gail Revesz testified that the plaintiff communicated by nods and facial expressions and her pastimes were prayer, watching television, being read to and receiving guests. She was particularly fond of watching wrestling on television. Other than the nursing staff, her constant companion is her daughter Gail Revesz. The evidence leaves me to conclude that the plaintiff has no cognitive deficiencies and that she is well aware of her condition and surroundings.

In the circumstances of this case and bearing in mind the principles set out in the above authorities, the plaintiff's mental acuity, the catastrophic nature of her injuries which have resulted in a drastically altered lifestyle, her age and her life expectancy which I considered to be two years calculated from January 2000, I am satisfied that the appropriate amount to fix for the plaintiff's non-pecuniary damages is \$200,000.

[202] It may be noted with a life expectancy predicted by the experts to be one to three years, after a careful consideration by the trial judge the plaintiff was awarded non-pecuniary damages of \$200,000, when the cap was \$265,000.

[203] Three years after *Suveges* was decided by Mr. Justice Warren, Mr. Justice Sigurdson decided the case of *Arce (Guardian ad litem of) v. Simon Fraser Health Region*, [2003] BCJ No. 1516. The plaintiff was 79 years old when he was injured in a motor vehicle collision. He was negligently treated by the defendants and became a ventilator-dependent quadriplegic. He resided at an extended care facility, but apparently plans were afoot to have him moved from that facility to live with family where he would require 24 hour care. He was also mentally incompetent. Mr. Justice Sigurdson stated at paras. 258 to 264:

In *Lindal v. Lindal* (1981), 2 S.C.R. 629, the Supreme Court of Canada confirmed that non-pecuniary damages should be assessed on the functional approach in the assessment of damages, and that damages are awarded to provide an injured

person with reasonable solace. Money is awarded because it can be used to substitute other enjoyments and pleasures for those that have been lost.

As noted by Mr. Justice Dickson in *Lindal*:

Thus the amount of an award for non-pecuniary damages should not depend alone upon the seriousness of the injury, but upon its ability to ameliorate the condition of the victim considering his or her situation.

The parties agree that at the present time the maximum amount that can be awarded for all non-pecuniary damages including such factors as pain and suffering, loss of amenities and loss of expectation of life is approximately \$289,000.

The plaintiff's position is that if Mr. Arce were a younger person, there would be no issue that he would be entitled to the maximum amount under this head of damage. They say that the minimum damages under the head should be \$250,000.

The defendants say that the defendant's age, mental acuity and shortened life expectancy are factors that should be taken into consideration and that the award should be in the range of \$150,000 to \$175,000.

In *Suveges*, supra, Mr. Justice Warren considered the case of a pentaplegic who was 86 years old at the time of the accident and was 88 years old at trial. She was cared for by her daughter in an apartment, and, by trial, was only able to communicate by nods and facial expressions. She went to church, an important aspect of her life, and enjoyed television. The trial judge held that she had no cognitive deficiencies and was well aware of her surroundings. Warren J. accepted that advanced age was a factor to take into consideration, but, like Mr. Justice Williamson in *Gogol v. F.W. Woolworth Co.*, [1996] BCJ No. 2047 (SC), he considered that any reduction in damages on that ground must be undertaken cautiously. The maximum award for non-pecuniary damages at that time was about \$265,000. He awarded \$200,000 for non-pecuniary damages. The defendant says that the award should be less in Mr. Arce's case given his delusional state and dementia.

Prior to the accident and the defendant's negligence, the plaintiff was, despite a series of ailments, a relatively active person, who enjoyed driving, exercise, music and his family. He is now bedridden, medically fragile and subject to constant care. His life expectancy has been significantly reduced to 3.3 years. In the circumstances, I award general damages of \$200,000.

[204] I then turn to the case of *Stapley v. Hejslet*, [2006] BCJ No. 128 (BCCA). This is a judgment of Mr. Justice Kirkpatrick of the British Columbia Court of Appeal, on an appeal of non-pecuniary damages awarded by a jury of \$275,000. The circumstances of the plaintiff are quite different from those of Gloria Musselman (the plaintiff's injuries could not be said to be catastrophic). However, the judgment is instructive in that it considers 18 previous decisions dealing with awards of non-pecuniary damages. In the result, the British Columbia Court of Appeal reduced the jury's award of \$275,000 to \$175,000.

[205] I thus turn specifically to the consequences of the fall impacting upon Gloria Musselman, to an assessment of what award of damages is fair and reasonable as compensation for her pain and suffering, for her loss of amenities of life and for her loss of expectation of life.

[206] In assessing Gloria Musselman's non-pecuniary damages, I have carefully considered the lengthy report of Dr. William Geisler. Dr. Geisler's reports dated April 30, 2007 and August 4, 2009 were submitted with the consent of counsel to be considered as his evidence at trial. Dr. Geisler's impressive curriculum vitae is found at exhibit 11, tab 13. I need not go into detail with respect to his qualifications. I would simply note that he received his first specialist's certification from the Royal College of Physicians and Surgeons of Canada in internal medicine in 1958 and his second specialist's certification in physical medicine and rehabilitation from the Royal College in 1959. His career has attracted many honours. He served for many years as a Professor of Physical Medicine and Rehabilitation at the University of Toronto, Faculty of Medicine and is currently emeritus professor of rehabilitation medicine at the University of Toronto. Dr. Geisler's detailed report dated April 30, 2007 is found at exhibit 11, tab 14 and his follow-up report dated August 4, 2009 is found at exhibit 11, tab 15. It may be noted that in

order to prepare his report, Dr. Geisler studied not only Gloria Musselman's medical history in detail, as revealed by the many medical and hospital records, he also examined Gloria Musselman to assist him in forming his opinions. His report merits a careful reading as it outlines in detail the serious consequences of Ms. Musselman's fall and as well the potential consequences yet to come. I note that Dr. Geisler provides a summary of Gloria Musselman's medical history beginning at page 28 and a detailed discussion of her circumstances and condition beginning at page 30, including potential consequences that may befall her as a result of her condition. Dr. Geisler notes at p. 37:

This patient is seriously disabled, having lost the effect of pinch and grasp and independent normal mobility. She is in my view totally dependent for day-to-day care. This will continue I believe throughout the remainder of her life. The care that she needs need not be that of registered nurses but must be given by adults who are mature and intelligent and capable of acting in an emergent fashion when necessity demands. At the present time her husband and family are acting in a significant fashion in this regard. She also has hired help.

[207] Beginning at page 38, Dr. Geisler provides his opinion with respect to Ms. Musselman's life expectancy and the reduction in her normal life expectancy as a result of her injuries from the fall. Dr. Geisler also provided a more current update on Ms. Musselman's life expectancy in his report (by letter) dated August 4, 2009. In Dr. Geisler's opinion, Ms. Musselman's reduction in life expectancy would be between 3.3 years (August 4, 2009 report) and 3.6 years (April 30, 2007 report). I appreciate that Dr. Geisler also takes into account in his prediction of Ms. Musselman's life expectancy her obesity. He did that both in 2007 and 2009. However, the reduction in life expectancy noted above (3.6 years and 3.3 years) is related simply to her quadriplegia. Taking into account her quadriplegia and her obesity, Dr. Geisler expressed the opinion in his August 4, 2009 report that her life expectancy would be about 4.7 years.

Otherwise expressed, Ms. Musselman's remaining years on earth will be almost halved as a result of her quadriplegia. Clearly, no dollar value can be put upon such a loss.

[208] When her fall occurred, Gloria Musselman was an active, healthy woman, consistent with her age (71 years). She had been the devoted wife and life partner to her husband, Gerald, for almost 50 years. She was a loving mother to Karey, who was 45 years old at the time of her mother's fall, Carolyn, 43 at the time and Mark, who was 37 in February of 2004. It would be difficult to imagine a more close knit, loving and mutually supportive family. Gloria Musselman was also very close to Carolyn's daughter, Leanna, who was 11 years old when Ms. Musselman was rendered a quadriplegic. The close relationship between Gloria Musselman and Leanna goes back to the time when Leanna was a baby and a toddler, when Ms. Musselman provided much of the day to day care for Leanna, while Leanna's mother, Carolyn, was beginning her career as a lawyer. The court heard evidence that it was quite usual for Gloria and Leanna to attend concerts and other events together.

[209] Although Ms. Musselman was forced to retire as a full-time employee of the Fairview Mennonite Home at age 70, she had continued her activities at the home as a volunteer. As I noted above, so active and involved was she at the home that her time as a formal employee had been extended on an annual basis beyond the normal retirement age of 65. Nancy Kinsie, the Manager of Independent Living at the Fairview Mennonite Home described Gloria's activities, including her supervision of the lunch time exercise group. The "exercises" of this group included climbing and descending the stairs and traversing the halls of the eight storey residence at the Fairview Mennonite Home. Ms. Kinsie described Gloria as having "very high energy". She stated "Gloria never stops".

[210] The evidence of many witnesses who testified, including her husband Gerald and her children, Karey, Carolyn and Mark, all attest to the vigour and active lifestyle which she enjoyed and in particular the impact on others of a rather special wife, mother, grandmother and friend.

[211] I choose to note briefly the evidence of only one of those witnesses, her daughter, Carolyn Musselman, who testified movingly as to the pain and suffering and loss of amenities of life, visited upon Gloria Musselman as a result of her quadriplegia. I have already noted the active role played by Gloria Musselman in providing care for Carolyn's daughter, Leanna, soon after her birth. Carolyn described the families' attendances together every year at the Chesley Mennonite Camp as well as their travels together to other destinations, such as Boston and Quebec City. Carolyn told the court of the planned family trip to Guatemala to visit the Mayan ruins. Carolyn testified that she had no reservations about her mother's ability to explore those ruins. She described her mother as "very active ... out and about". She said her mother was the "ultimate attender" which might include "dragging" her husband Gerald out to concerts or other events.

[212] The court also heard from Carolyn (and other witnesses as well) how Gloria Musselman was responsible for all the household chores, not only cooking and cleaning, but also actively participating in snow shovelling, gardening and taking out the garbage.

[213] Carolyn Musselman spoke movingly about the impact of her injuries on Gloria and the rest of the family as well. She described the care that Gloria required and how it was provided by family members who were ultimately assisted and are assisted now by her professional caregivers, two young ladies from the Philippines, named Jackie and Eva. Carolyn described how difficult it was, both for her mother Gloria and for her caregivers to deal with Ms.

Musselman's personal hygiene, which Ms. Musselman was completely incapable of dealing with on her own. The court had the advantage of Ms. Musselman's presence in the courtroom during a good portion of the time court was in session over a period of several weeks. Her incapacity was obvious. Indeed, she was only able to attend the trial because arrangements were made to have a bed and a holter lift provided for her in a private room directly off the courtroom. Her condition is such that she was unable even to sit in her wheelchair for prolonged periods. She required the attendance and assistance of either Jackie or Eva on a constant basis. The court was also able to observe the devotion displayed by her husband Gerald and the assistance he provided.

[214] It is difficult to conceive of a case which has involved greater pain and suffering and greater loss of amenities of life, to say nothing of her loss of expectation of life which must weigh particularly heavy upon her, given the limited number of years left to her. In any event, in the circumstances, I have no hesitation in awarding non-pecuniary damages to Gloria Musselman in the maximum amount of \$326,000. To the extent that that quantum reflects the court's appreciation of the significant consequences of her fall, I hope that will provide some solace to Ms. Musselman during her remaining years.

[215] I now turn to the family law claims brought by members of Gloria Musselman's family. Before dealing with the individual claims, I will touch upon the general principles which guide the court in assessing the quantum of those claims.

[216] The right of family members to claim damages is set out in section 61 of the *Family Law Act* (R.S.O. 1990). Section 61 states in part:

61 (1) If a person is injured or killed by the fault or neglect of another under circumstances where the person is entitled to recover damages, or would have been entitled, if not killed, the spouse, ... children, grandchildren, ... of the person are entitled to recover their pecuniary loss resulting from the injury or death from the person from whom the person injured or killed is entitled to recover ... and to maintain an action for the purpose in a court of competent jurisdiction.

(2) The damages recoverable in a claim under ss. (1) may include,

- (a) actual expenses reasonably incurred for the benefit of the person injured or killed;
- ...
- (c) a reasonable allowance for travel expenses actually incurred in visiting the person during his or her treatment or recovery;
- (d) where, as a result of the injury, the claimant provides nursing, housekeeping or other services for the person, a reasonable allowance for loss of income or the value of the services; and
- (e) an amount to compensate for the loss of guidance, care and companionship that the claimant might reasonably have expected to receive from the person if the injury or death had not occurred.

[217] The contextual approach that should be adopted in determining what claims may properly justify damages pursuant to section 61 of the *Family Law Act* were set out by the Ontario Court of Appeal in the case of *Macartney et al v. Warner* (2000), O.J. No. 30 46 O.R. (3d) 641 (OCA). The facts of the case involving a claim for loss of income as a result of nervous shock suffered by the plaintiffs following their son's death in a motor vehicle accident are quite different from the case at bar. The court's discussion of section 266 of the *Insurance Act* and references to the *Fatal Accidents Act* are not relevant to my consideration of the claims made by the Musselman family. However, the general application of a contextual approach to section 61 of the *Family Law Act* concurred in by Messrs. Justice Laskin and Morden are instructive. After considering

the history of such claims, under predecessor legislation (the *Family Law Reform Act*), Mr. Justice Laskin stated at para. 46 and following:

(46) The ordinary meaning of the words in section 61 (1) would permit recovery for the loss claimed by Mr. and Mrs. Macartney. Their income loss is a pecuniary loss. Each claims to have suffered profoundly because of Jeremy's death, and as a result, Mrs. Macartney was incapable of working, and Mr. Macartney was capable of working only in a less stressful, lower paying job. If Mr. and Mrs. Macartney prove the necessary facts, they can establish a "pecuniary loss resulting from the ... death" of their son. Nothing in the wording of section 61 (1) restricts Mr. and Mrs. Macartney's recovery for pecuniary loss to the pecuniary benefits that they would have received from their son had he not been killed.

(47) A basic principle of statutory interpretation is that the ordinary meaning of a legislative provision should prevail absent a good reason to reject it. The ordinary meaning is presumed to be intended or most appropriate meaning unless the context or the purpose and scheme of the legislation, or the consequences of adopting the ordinary meaning suggest otherwise. Professor Ruth Sullivan, who edited the third edition of *Driedger on the Construction of Statutes*, sets out the presumption in favour of the ordinary meaning at page 7:

- (1) It is presumed that the ordinary meaning of a legislative text is the intended or most appropriate meaning. In the absence of a reason to reject it, the ordinary meaning prevails.
- (2) Even where the ordinary meaning of the legislative text appears to be clear, the courts must consider the purpose and scheme of the legislation, and the consequences of adopting this meaning. They must take into account all relevant indicators of legislative meaning.
- (3) In light of these additional considerations, the court may adopt an interpretation in which the ordinary meaning is modified or rejected. That interpretation, however, must be plausible; that is, it must be one the words are reasonably capable of bearing.

(48) Three main reasons are put forward for departing from the ordinary meaning of section 61 (1) of the *FLA* and restricting the scope of pecuniary loss:

The wording of section 61 shows that the legislature intended largely a restatement of the law under the *Fatal Accidents Act*; the judgment of this court in *Mason v. Peters*; and permitting Mr. and Mrs. Macartney's claim for their income loss would open the door too wide for claims under section 61 (1). In my view, none of these reasons

supports restricting the ordinary meaning of section 61 (1) of the *FLA*.
I will address each of them.

(49) Rosenberg J.A. adopts the statement in *Mason v. Peters* that section 60 (1) of the *FLRA* (and now section 61 (1) of the *FLA*) “constitutes, basically, a restatement of the law as it stood before the new Act was passed”. In my colleagues view, “the legislature did not intend a wholesale revision of the basis for recovery under the new statutory equivalent of section 2 of the *Fatal Accidents Act*”. Determining what the legislature did intend enacting section 61 (1) is not an easy task. But it is a task best accomplished by considering the overall purpose of the statute, the wording of section 61 (1) itself, the relationship between section 61 (1) and section 61 (2) and the legislative history of section 61; and then determining whether any of these indicators of legislative intent justified departing from the ordinary meaning of section 61 (1).

(50) I begin with the overall purpose of the *FLRA* (and the *FLA*). In my view, restricting the scope of pecuniary loss is inconsistent with the purpose of the *Act*. The *FLRA* was path breaking legislation when enacted in our Province in 1978. Other provisions of the *Act*, dealing with support obligations, the division of family property, the matrimonial home, and domestic contracts radically altered family law in Ontario. The preamble recognized the *Act*’s important purpose of strengthening family relations by reciting: “whereas it is desirable to encourage and strengthen the role of the family ...”. Moreover, the scheme of the *Act* as a whole reflected the legislature’s intention to provide much greater protection to family members in the case of family breakup or family loss than previously available. Why then, I ask rhetorically, when we come to interpret one section of this modern, progressive legislation, do we ignore the *Act*’s purpose and instead hearken back to judicially imposed restrictions on another statute passed over 150 years ago.

(51) Indeed, section 60 (1) itself (and now section 61 (1) of the *FLA*) did not “basically” codify the existing law. It dramatically expanded recovery. For the first time, family members could sue for compensation for injury to their relatives. In doing so, as Linden J. observed in *Thornborrow v. MacKinnon* (1981), 32 O.R. (2d) 740 at pp. 743-44, 123 D.L.R. (3d) 124 (H.C.J.), “the legislature of Ontario meant to rectify that dreadful page of our legal history in the new *Family Law Reform Act*, 1978. Subsection (1) of the *Act* was a codification of the existing law to an extent but it also expanded it.” The new language of the *FLRA*, the new philosophy that underpinned that language, reflected not an intent to march backward in time, not an intent to restrict compensation by previous authority, but an intent to reform the law, an intent to develop new principles of compensation founded on the words of the statute. In my view, this court should be very reluctant to saddle this new legislation with an interpretation applied to a statute long outdated. I agree with Sutherland J. who, in denying leave to appeal in *Vaiman v. Yates*, said (at p. 220) that court should not “read into the differently

worded provisions of the *Family Law Act*, 1986 a restriction developed by the courts with respect to *Lord Campbell's Act* a long time ago when a quite different conception of family life and spousal roles was the norm and model.”

(52) What then is the immediate context of section 61 (1), or the relationship between subsection (1) and subsection (2) of section 61? Rosenberg J.A. relies on section 61 (2) for his restrictive interpretation of section 61 (1). In his view, if a family member could recover any pecuniary loss resulting from another member's death or injury, “clauses (a) to (d) of the present section 61 (2) would have been unnecessary and mere surplusage.” I disagree. I acknowledge, however, that the relationship between section 61 (1) and (2) is an important indicator of legislative intent. But I do not read section 61 (2) as limiting the scope of section 61 (1).

(53) In my view, there are three reasons why section 61 (2) does not restrict the scope of pecuniary loss in section 61 (1). First, the ordering of subsections (1) and (2) is significant. The general category “pecuniary loss” in section 61 (1) precedes the list of specific kinds of awards in section 61 (2). Because this general or broad category precedes rather than follows the list of specific examples, I infer that the legislature did not intend to restrict the general category. In other words, when the general perceives the specific, the limited class or a ejusdem generis rule of statutory interpretation ordinarily does not apply.

(54) Second, the specific examples in section 61 (2) are introduced by the words “may include”. The words “may include” show that the list of examples is not intended to be an exhaustive definition of the general category “pecuniary loss”.

(55) Third, providing specific examples introduced by the words “may include” can have only two possible purposes, neither of which restricts the general category. The legislative drafter may have used specific examples either to remove any ambiguity whether these examples are included in the general category or to evidence that the general category extends to matters otherwise thought to fall outside it. Both purposes seem to be present in section 61 (2). Clauses (a) to (d) (including “funeral expenses”, added to section 61 (2) when the *FLA* replaced the *FLRA*), are examples of awards of pecuniary loss, likely specifically provided for in section 61 to ensure “compensation for certain items which were either confusing or not compensated under the case law”.

(56) Indeed clause (d) provides a reasonable allowance for loss of income when, for example, a claimant instead of going to his or her usual job, chooses to provide nursing or housekeeping services to an injured family member. This kind of income loss may not obviously have been compensable without specifically providing for it. But clause (d) does not preclude a straightforward claim for loss of income because of a family member's injury or death, under section 61 (1).

(57) Clause (e) permitting an award for loss of guidance, care and companionship was specifically provided for because it contains elements of non-pecuniary loss. Full compensation for the loss of guidance, care and companionship could not be awarded the rubric of pecuniary loss. Thus, clause (e) extends the usual or ordinary meaning of pecuniary loss. But the important point is that whether included to remove ambiguity or to extend the meaning of the general category “pecuniary loss”, the specific examples in section 61 (2) were not intended to limit the scope of section 61 (1).

[218] After considering some of the jurisprudence, Mr. Justice Lasken concluded his analysis at paras. 64-66. He stated:

(64) Finally, my colleague expresses concern about the consequences of my interpretation of section 61 (1). In his view, my interpretation would open the door too wide, and could, for example, compensate a loss of income because of the normal bereavement process. I do not share this concern. In each case, the court will have to apply the words of the statute and ask whether this is a “pecuniary loss resulting from the injury or death.” These words may well raise difficult questions of causation. Undoubtedly, the courts will have to develop a set of principles to resolve these causation questions and to govern compensation under section 61 (1). I observe, however, that trial decisions have already held that a claim under section 61 does not depend on questions of foreseeability or remoteness, questions that are relevant to a nervous shock claim ...

(65) Thus, I am not persuaded that the wording of section 61 of the *FLA* or its legislative history, or the purpose and scheme of the *Act* as a whole provide any justification for departing from the ordinary meaning of section 61 (1). Nor am I persuaded that the scope of pecuniary loss should be restricted by case law decided in a different era and under a different statute. And I do not see any policy justification for restricting pecuniary loss. Limiting the scope of pecuniary loss in the face of the words of section 61 (1) is contrary to our contemporary notions of justice.

(66) For these reasons, I would permit Mr. and Mrs. Macartney to maintain their claim for loss of income resulting from their son’s death ...

[219] Mr. Justice Morden concurred with the approach adopted by Mr. Justice Lasken. He stated at paras. 81-84:

(81) The task now, in light of the foregoing, is to make as much sense as possible out of the legislation. The “courts own real and responsible business (is to try) to make sense out of the legislation, so far as text and context may allow”: Llewellyn, *The Common Law Tradition – Deciding Appeals* 1960 at pp. 528-29. The legislative history and evolution, as well as the text, strongly support the view that the same kinds of losses should be recoverable as a result of fatal and non fatal accidents – depending, of course, on the facts of the particular case. Accordingly, it is preferable to treat the clauses in section 61 (2) (apart from section 61 (2) (e): *Mason v. Peters*) as being examples of some of the kinds of loss which are covered by section 61 (1) and not as extensions of the scope of section 61 (1): (citing authority) the “may” before “include” emphasizes that the items listed in section 61 (2) are not exhaustive but, rather, are illustrative of the general reach of section 61 (1).

(82) Accordingly, I would not confine claims for loss of income only to those specifically provided for in section 61 (2) (d). I think our responsibility should be to read the legislation a providing for a coherent and internally consistent scheme of compensation.

(83) No doubt, this interpretation of the legislation may give rise to issues relating to the extent of the pecuniary loss recoverable and courts will be required to wrestle on a case by case basis with difficult questions of causation, particularly with where the chain of causation ends, in applying the words “loss resulting from the injury or death”.

(84) For the foregoing reasons, I agree with the disposition of this appeal proposed by Lasken J.A.

[220] There are a great many cases decided by trial judges that demonstrate the challenge faced by trial judges in determining fair and reasonable compensation in accordance with section 61 of the *Family Law Act*. I simply note a few in passing, which demonstrate that the awards directed by the court will vary as much of the circumstances that justify those awards. I refer for example to the case of *Bannon et al v. McNeely et al* (1995), O.J. No. 539 22 O.R. (3d) 396 (Gen. Div.); appealed decision reported at (1998), O.J. No. 1673 38 O.R. (3d) 659 (O.C.A.), *Fish v. Shainhouse* (2005), O.J. No. 4575, *Stephen v. Stawecki* (2005), O.J. No. 3027 and *Desbiens v.*

Mordini (2004), O.J. No. 4735. Adopting a contextual approach to the claims for damages pursuant to section 61 of the *Family Law Act*, I turn my consideration to the individual claimants.

Damages Claimed by Gerald Musselman

[221] Gloria's husband, Gerald Musselman, is or was an architect. He was 73 years of age at the time of Gloria's fall.

[222] Gerald Musselman graduated from the University of Toronto as an architect in 1957. In 1960 he founded the architectural firm of Mark & Musselman in Brantford, Ontario. The firm grew over the years. In 2005, the firm consisted of 10 professionals and 10 other staff. Prior to his wife's fall, Gerald Musselman had no intention of retiring. As he put it when he testified, architecture is "an old man's game". His intention was, with the passage of time, to devote less time to his professional endeavours, but to continue as a senior partner in the firm. He and Gloria wanted to spend more time together and devote themselves to travel and other activities, as a couple and with family. Since Gloria's fall, he has in effect spent every day and almost every night with her. When she in hospital, he spent some evenings working in Cambridge and some evenings he remained in Toronto staying at his son Mark's condominium. He found that his effectiveness at work decreased however and he retired in 2005 to devote himself to Gloria, as her full-time caregiver. Since she returned to their home in Cambridge, that is exactly what he has been. He is with her every day and is up three or four times a night to tend to her needs. Although she receives care and support from other family members and from professional caregivers, Gerald is her constant companion and caregiver. His devotion to her was obvious during the court of the trial. He was constantly by her side, was with her in every way. That devotion was also attested to by other witnesses.

[223] Gerald Mussleman has arranged at considerable expense significant renovations to the family home in Cambridge to allow Gloria, with her disabilities, to be in residence. Suffice to

say, all of the household duties that Gloria previously attended to, including cleaning, cooking and baking, she is no longer capable of. Gerald Musselman's special damages have been agreed to by counsel in the sum of \$670,000. His damages for future loss of household services has been agreed to in the sum of \$100,000. It remains to determine the quantum of his non-pecuniary damages pursuant to section 61 (2) (e) of the *Family Law Act*.

[224] The impact of Gloria's fall on Gerald Musselman has been significant indeed. Both physically and emotionally. The change in their father was testified to by both Carolyn and Mark Musselman. Mark described his "marked decline" in physical health. He told the court that his father suffers from back and leg pain. His physical health is generally "a real contrast from before". Prior to Gloria's fall, Mark described his father as a "great conversationalist", however now he is "much more passive in conversation". He is "tired all the time" and much "weaker".

[225] Carolyn Musselman described how her father's health had "gone downhill" since Gloria's fall. She described Gerald's "total devotion to Gloria" and how he is up several times a night to tend to her. She told the court that her father is "tired all the time" and "less able to deal with things".

[226] It would be difficult to conceive of a husband who has lost more of the guidance, care and companionship he previously had with a woman who was his true life's partner. Now he is and will be her constant caregiver for the rest of her days. It is clear he has adopted this role without reservation. However, he is entitled to compensation for what he has lost. I am mindful that he has received compensation for his special damages and specifically for the future loss of household services. However, I am satisfied that he is entitled to an award of non-pecuniary

damages pursuant to section 61 (1) (e) of the *Family Law Act* in the amount of \$85,000 and I direct such award.

[227] I will deal with the issue of damages claimed by Gloria Musselman's children and grandchildren in order of their ages.

Damages Claimed by Karey Musselman

[228] Karey Musselman's evidence was introduced at trial by an agreed upon statement of facts admitted as exhibit 63.

[229] Karey is Gloria's eldest child. She was 45 years old at the time of Gloria's fall. Karey Musselman lived and continues to live in San Juan, Puerto Rico, with her husband. Prior to Gloria's fall, Karey was employed on a full-time basis as a concierge at the Ritz Carlton hotel in San Juan. Prior to Gloria's fall, although Karey lived far away, her relationship with her parents and specifically her mother remained very close. Karey visited her parents in Cambridge twice a year, once in the summer and once at Christmas, for at least two weeks on each occasion. Gloria and Gerald visited Karey in San Juan once every three years. They also enjoyed family vacations together in the years prior to Gloria's fall in Chicago, in New York, in Las Vegas and in San Diego. Their plans were to continue to enjoy these family vacations. Now, travel for Gloria is impossible. Since 2005, Karey has travelled to Cambridge to be with her parents on six occasions, two summer visits and four Christmas visits.

[230] Prior to Gloria's injuries, she and Karey maintained a close bond and were in constant contact primarily through e-mail and by telephone calls. Since her return to San Juan, after spending approximately a year by her mother's side, Karey now speaks with her mother every

day and sometimes two or three times a day. They speak for 10 minutes to 1 ½ hours on every call.

[231] I noted above that at the time of Gloria's fall, Karey was employed on a full-time basis as a concierge at the Ritz Carlton hotel in San Juan. When she was advised of her mother's injury, she took a leave of absence from her employment to allow her to travel to Cambridge to provide assistance, companionship and comfort to Gloria and to assist her father with Gloria's care. She did so for a year, returning to San Juan at the end of January 2005. During that year, she had no employment income. While her position was kept open by the Ritz Carlton hotel, her employer could not do so indefinitely and her employment was terminated in July of 2004.

[232] Following her arrival in Canada, Karey spent effectively every day with her mother and many nights as well, even when Gloria was in the hospital. During her year in Canada, she took five brief trips, two to Miami, two to New York and one to Chicago. These trips were to meet her husband at places that were halfway points between them and lasted a few days on each occasion, in order to maintain their marriage during the period they were living apart. Karey Musselman's claim for special damages was introduced as a Exhibit 64. In the case of each of the trips to meet her husband, Karey Musselman claims only half of the costs incurred.

[233] In assessing Karey Musselman's entitlement to special damages, I am mindful of the wisdom of the Ontario Court of Appeal in *Macartney et al v. Warner* (cited above) and the contextual approach that should be adopted with respect to section 61 of the *Family Law Act*. Section 61 (1) (d) provides that:

Where, as a result of the injury, the claimant provides nursing, housekeeping or other services for the person, a reasonable allowance for loss of income for the value of the services;

I agree with the conclusion of Madam Justice Huddart (as she then was) of the British Columbia Supreme Court in the case of *Crane v. Worwood*, [1992] BCJ No. 433 (SCBC). In that case the issue was a claim for “lost opportunity” with respect to income. Madam Justice Huddart determined that the maximum damages that could be claimed would be the cost of the services provided, not the cost of the “lost opportunity” or in the case at bar, actual lost income. Karey Musselman’s claim for lost income for the year she spent in Canada amounts to \$38,740. She makes no claim for any income loss beyond that incurred as a result of the loss of her position at the Ritz Carlton hotel.

[234] The first year following Gloria Musselman’s fall was particularly difficult, both for Gloria and for her family. It took some time before regular professional caregivers were able to be employed full time. I am satisfied that Karey Musselman’s attendance with Gloria and the care and comfort she provided to Gloria played a critical role in Gloria’s return to her home in Cambridge and her continuing ability to reside there. I am further satisfied that the services she provided to Gloria were worth at least \$38,740 (the cost to her of her lost income). Therefore, I find that claim for special damages eminently justified.

[235] Section 61 (1) (c) provides for damages for “a reasonable allowance for travel expenses actually incurred in visiting the person during his or her treatment or recovery”. Again, I adopt the contextual approach directed by the Court of Appeal in *Macartney et al v. Warner* (cited above). Section 61 (1) (c) does not provide for travel expenses for one trip. It simply provides for “a reasonable allowance for travel expenses actually incurred in visiting the person during his

or her treatment or recovery”. Applying the principle enunciated in *Macartney et al v. Warner*, I conclude that all of the expenses claimed by Karey Musselman constitute reasonable travel expenses incurred by her to permit her to visit her mother and care for her during her “treatment or recovery”.

[236] Indeed, had Karey Musselman returned to San Juan on several occasions during the year she spent caring for her mother, then returned to continue such care, I would have concluded that the cost of each of those trips fell within the provisions of section 61 (1) (c). Instead, in order to maintain her relationship with her husband, they agreed to brief visits together at a halfway point during the year. Thus the costs claimed by Karey are less than what she might have claimed had she returned to San Juan on each of those occasions. I therefore conclude that her total claim for special damages in the amount of \$56,452.52 is eminently justified and I direct such award.

[237] Turning to Karey’s claim for “loss of guidance, care and companionship that the claimant might reasonably have expected to receive from the person if the injury ... had not occurred”, I am mindful that prior to Gloria’s fall, Karey and her mother, while remaining very close emotionally, did not see each other on a daily, weekly or even a monthly basis. Indeed, since Karey’s return to San Juan, she is in at least telephone contact her mother on a more frequent basis than prior to her mother’s injuries. That is not to say that Karey has not suffered a great loss. There will be no more family vacations, no more family occasions which obviously meant so much to both Gloria and to Karey. On those occasions when Karey is able to travel to Cambridge, she again becomes in a very real sense, a caregiver. Her principal role is to give comfort to her mother, not to simply share with her mother the joy of their time together. For this loss, Karey Musselman is entitled to significant compensation, which I set at \$30,000.

The Damages Claimed By Carolyn Musselman

[238] Carolyn is Gloria Musselman's middle child. She was 43 years old at the time of Gloria's fall. Carolyn spent a great deal of time with Gloria during her hospitalization travelling from Kitchener to do so. She claims special damages for the cost of these trips. Carolyn is a lawyer with a law firm in Kitchener. For more than half a year, as a result of Carolyn's attendances with Gloria to provide care and comfort, she was unable to attend to her duties at the law firm that employed her. Notwithstanding her absences, the law firm continued her salary. I have no hesitation in accepting that Carolyn Musselman's evidence that her employer paid her in excess of \$25,000 that she could not justify in terms of her usual work product. Carolyn claims damages equivalent to these gratuitous payments made by her employer.

[239] The principals governing deductibility or non-deductibility of continued income or "replacement income" were dealt with by three cases resulting in one judgment by the Supreme Court of Canada in 1994. The judgment is indexed as *Cunningham v. Wheeler*; *Cooper v. Miller*; *Shanks v. McNee* (1994), 1 S.C.R. 359. Mr. Justice Cory wrote the decision on behalf of the majority. He addressed to so-called "insurance exception" to the non-deductibility of income benefits with respect to a claim for damages. He determined on behalf of the Supreme Court that there were other payments that might be received by a claimant from an employer that should not be deducted from damages awarded for lost income. His comments are summarized at paras. 97 and 98. He stated:

What type of proof will be required to show that the benefits are in the nature of insurance? It is my opinion that what was required by the *Ratych* decision is that there be evidence adduced of some type of consideration given up by the employee in return for the benefit period. The method or means of payment of the consideration is not determinative. Evidence of a contribution to the plan by the

employee, whether paid for directly or by a reduced hourly wage reflected in a collective bargaining agreement, will be sufficient.

Generally speaking, any of the following examples, by no means an exhaustive list, provide the sort of evidence that could well be sufficient to establish that the employee paid for the benefit:

- (1) Evidence that there were trade-offs in the collective bargaining process, which demonstrate that the employee has foregone higher wages or other benefits in return for the disability benefits. In such a case, the employee has paid for the benefits through wages foregone.
- (2) Evidence of some money foregone by the employee in return for the benefits. For example if the employees gave up the return of a percentage of their unemployment insurance plan premiums in return for the benefits.
- (3) Evidence of a direct contribution by the employee, in a form such as payroll deductions, in return for the benefits. Such a contribution need not be 100% of the premium.
- (4) Evidence of payments made by the employer for the benefits made on behalf of the employee which shows that these payments were part of the employee's wages, and thus the employee provided work for the employer in order to have the premium paid. For example, if the employer's contribution is listed on the employee's pay slip or statement of benefits, it can reasonably be inferred that the contribution is part of the employee's wage package.

[240] At the risk of overly summarizing Mr. Justice Cory's decision, he determined on behalf of the Supreme Court that for benefits paid by an employer to be non-deductible from damages awarded for lost income, there must be some consideration by the employee/claimant for the replacement income. Mr. Justice Cory also dealt with the issue of subrogation. At para. 122 he stated:

Generally, subrogation has no relevance in a consideration of the deductibility of the disability benefits if they are found to be in the nature of insurance. However,

if the benefits are not “insurance” then the issue of subrogation will be determinative. If the benefits are not shown to fall within the insurance exception then they must be deducted from the wage claim that is recovered. However, if the third party who paid the benefits has a right of subrogation then there should not be any deduction. It does not matter whether the right of subrogation is exercised or not. The exercise of the right is a matter that rests solely between the plaintiff and the third party. The failure to exercise the right cannot in any way affect the defendant’s liability for damages. However, different considerations might well apply in a situation where the third party has formally released its subrogation right.

[241] There is no evidence and no suggestion that the law firm which is Carolyn Musselman’s employer has a right of subrogation for the income she continued to receive when she was not supplying her services on a full-time basis. Her draw from the firm was honoured by the firm gratuitously. While I appreciate the attitude and the conduct of Carolyn Musselman’s law firm, I purposefully avoid stating that they “generously” continued to pay her an income for her loyal service in the past and for her commitment to provide such loyal service in the future. I am sure that Carolyn Musselman earned and merited the approach taken by her law firm. However, it was not a benefit that was paid for by her as a form of insurance or as part of a contractual agreement she had with her employer. Counsel have referred me to two earlier cases in which gratuitous payments by an employer to an injured employee did not result in the deduction of these payments from a damages award for lost income. The first is *Myers and The City of Guelph v. Hoffman* (1955), O.J. No. 606, (1955), O.R. 965. Dealing with gratuitous payments made by an employer, Chief Justice McRuer stated at paras. 26 – 27:

After the most careful consideration I have come to the conclusion that this case must be decided on the principal expressed by Denning J. A wrongdoer is not entitled to the benefit of a payment made ex gratia which some beneficent person or corporation may have seen fit to make to the victim of his wrongdoing. If the donor wishes to trust to the honour of the donee to repay the amount so paid instead of taking an undertaking to do so that is his business and the mere form of the payment cannot enure to the benefit of the wrongdoer. I think the fact that

Myers was paid by the corporation puts him in a stronger position than if he had received ex gratia payments from a benevolent third party. His future relations which his employer have been directly affected and the moral obligation to reimburse that employer is great. The payments were not paid as wages or salary for services rendered; in fact he had no earning power during the time the payments were made. They were in law purely ex gratia gifts made because he had been injured while on duty.

In this case the plaintiff Myers has by his counsel undertaken to the court to repay the amount paid to him as salary while he was disabled, out of any compensation received. Judgment will therefore go in favour of the plaintiff Myers ... and \$729.10 for loss of wages, impressed with the undertaking that it will be paid over to the plaintiff corporation.

[242] In *Rawson v. Maher*, [1982] MJ No. 80 (ManCA), Justice Huband for the court considered older jurisprudence in support and determined that a gratuitous payment by the employer did not preclude the plaintiff from claiming a similar amount from the defendant.

[243] The court in the two cases just cited above did not have the benefit of the wisdom of the Supreme Court in *Cunningham v. Wheeler* (cited above) published in 1994. In *Young v. Sutherland* (2000), NSJ No. 327, Mr. Justice Scanlon dealt once again with the issue of payments made by an employer that were at least in part discretionary and gratuitous. After carefully analyzing the jurisprudence including *Cooper v. Miller*, Justice Scanlon stated at paras. 31 – 33:

Subsequent cases have not reconciled these statements by establishing a separate category for gratuitous payments. I am of the view that the confusion on the issue of deductibility could be avoided if the courts were to look at the intent of the payor and recipient of collateral benefits. In this case the payment was not made to the plaintiff so the defendant could have a reduced exposure in terms of liability. The evidence of the employer in this case is that the payments were simply an attempt by the employer to “do what was right” for a long term employee. Ms. Creelman from Irving Human Resources said it was up to the individual manager/supervisor to decide if, or how long, the benefits might be paid. The plaintiff was at the mercy of his employer and the employer could be as generous or as stingy as they liked. It was not paid to the benefit of the

defendants or in recognition of anything they did. It was not paid to benefit society as a whole.

In *Cooper* Cory J. wrote at paragraph 56;

Generally, subrogation has no relevance in a consideration of the deductibility of the disability benefits if they are found to be in the nature of insurance. However, if the benefits are not “insurance” then the issue of subrogation will be determinative. If the benefits are not shown to fall within the insurance exception they must be deducted from the wage claim that is recovered. However, if the third party who paid the benefits has a right of subrogation then there should not be any deduction. It does not matter whether the right of subrogation is exercised or not ...

There is no evidence as to any subrogation right in this case. The comments of Justice Cory did not deal specifically with gratuitous payments but I am satisfied the principal he enunciates is intended to include gratuitous payments. I conclude the five months wages paid to the plaintiff during the initial period of disability must be deducted from the amount recovered by the plaintiff.

[244] I agree with Mr. Justice Scanlon in *Young v. Sutherland* that the principle enunciated by Mr. Justice Cory in *Cunningham v. Wheeler* may be summarized in this fashion:

If the payments made by an employer to an employee during a period when the employee does not work did not fall within the “insurance exception” and are not subject to a right of subrogation on the part of the employer then the payments must be deducted from any damages award for lost income to which the employee is otherwise entitled. Otherwise expressed a plaintiff may not claim damages for lost income if such income has in fact been paid gratuitously by an employer during a period in which the employee did not work.

Although I am somewhat torn in coming to this conclusion it does make some sense, particularly when applied to a professional person like Carolyn Musselman. In my view, it would create an awkward situation to expect her to simply follow through on some “moral obligation” to repay her law firm. How should they respond? How would the repayment be handled as an accounting matter? In the circumstances of this case, the rule against “double recovery” persuades me that the principle enunciated by Mr. Justice Cory in *Cunningham v. Wheeler*,

which I have paraphrased, makes good sense. It seems clear that Carolyn Musselman's loyal service to her law firm in the past earned their loyalty in providing financial assistance during a difficult time. I am confident that her continued loyal service will more than repay her law firm for their financial assistance.

[245] Carolyn Musselman also makes a claim for special damages for renovations to her home to accommodate her mother. These damages, in my view, are clearly recoverable and amount to \$10,227.19.

[246] A further claim for special damages is made by Carolyn Musselman for travel expenses incurred by her, for her constant trips from Cambridge to Toronto while her mother was in hospital, to provide comfort and care to her mother at her bedside. These expenses include mileage at 45¢ per kilometre, parking and some meals and miscellaneous expenses. This claim in my view is reasonable and indeed is accepted by the defendants. Therefore, I award special damages to Carolyn Musselman in the amount of \$17,596.96.

[247] It is clearly impossible to place a price, a dollar value, on the loss of guidance, care and companionship that Carolyn Musselman has suffered as a result of her mother's injury. Carolyn and her mother were as close as a mother and daughter could be. The closeness of their relationship did not diminish when Carolyn physically left home, when she married and started her family and her career. They vacationed together. They shared many activities together. It could fairly be said that together they raised Carolyn's daughter and Gloria's granddaughter, Leanna. Their companionship was to continue for the many years of active life that Gloria would have had left to her but for her fall. Indeed, as noted above, the families had planned a trip to Guatemala to explore the Mayan ruins. Such trip and so many other joys they could have

shared are now never to be. I know, however, that Carolyn will continue to provide the companionship, the love and the comfort that will make more bearable Gloria Musselman's remaining years. I am mindful of the many cases counsel have cited that provide some guidance as to the quantum of non-pecuniary damages that are appropriate depending upon the circumstances. In the circumstances of this case I direct an award in favour of Carolyn Musselman to compensate for the loss of guidance, care and companionship that she would reasonably have expected to receive from Gloria if her injuries had not occurred in the amount of \$48,000.

Damages Claimed by Mark Musselman

[248] Mark Musselman is Gloria Musselman's youngest child. He was 37 years old at the time of her fall. Mark and his wife, Yael, were dining with Gloria and Gerald Musselman the evening she suffered her fall. After he heard her scream and saw her crumpled on the landing at the bottom of the upper staircase, Mark was the first at her side. He eased her off the landing and gave her mouth to mouth resuscitation until the paramedics arrived. He was then, with other members of his family, constantly at her bedside during her hospitalization and has continued to provide comfort and care throughout the following period.

[249] Mark is an in-house counsel for a film and television company. As a result of the time he spent with his mother in hospital, his hours of service to his employer were significantly reduced. Notwithstanding this reduction in service, his employer continued to pay his salary. Mark Musselman claims damages for the income represented by the time he spent with his mother in an amount in excess of \$50,000. With some regret, for the reasons I gave above with respect to a similar claim made by Carolyn Musselman, I reject Mark Musselman's claim for compensation

for the gratuitous payments which were made by his employer to him, while he attended with and cared for his mother. As with the case of Carolyn Musselman, I am confident that the loyalty Mark Musselman demonstrated in previous years to his employer justified his employer's discretion in continuing Mark's income. I am also satisfied that Mark's loyal service in the future will more than repay his employer's exercise of discretion.

[250] Immediately after Gloria's fall, when she was hospitalized in Toronto, Mark and his wife Yael, allowed Gerald Musselman and Karey Musselman to stay with them in the small condominium in which they lived in Toronto. After some period of time, given the limited space, Mark and Yael moved out of the condominium, leaving it to Gerald and Karey. Mark and Yael moved in with other relatives and ultimately sold the condominium after Gerald and Karey moved out. They continued to pay the taxes and maintenance fees until the unit sold. At an estimated rental of \$1,500 a month, Mark claims special damages for the cost of accommodating Gerald and Karey in his condominium from February 2004 to September 2005 in the sum of \$20,000.

[251] With some regret, I reject this claim. Mark's offer (together with his wife) of a temporary home to Gerald and Karey is to be highly commended. I appreciate the crowded conditions in the small condominium and the reasons why Mark and Yael sought accommodation elsewhere. However, this is what families do in times of crisis. There are too many other alternatives that might have been available to permit Gerald and Karey to remain close to Gloria while she was in hospital. In a sense, I refuse to put a price on Mark and Yael's generosity of spirit and therefore reject this claim.

[252] Mark Musselman also claims an expense for a ramp at his home in Toronto to permit his mother to visit, on occasion. When he testified, Mark Musselman advised the court that another ramp is necessary at an estimated cost of \$2,000. In my view, this is a valid actual expense that he has or will reasonably incur for the benefit of Gloria Musselman.

[253] Mark Musselman also claims mileage to and from Toronto Western Hospital for his regular visits to see his mother. I conclude he is entitled to an award of \$300 to cover these expenses.

[254] Mark also claims in excess of \$10,000 for mileage from Toronto to Cambridge to visit his mother between October 2004 and September of 2009. In my view, he would have visited his parents on a number of occasions in any event, given his closeness with his mother and father. I am prepared to direct an award of \$5,000 to cover these expenses representing extra trips that he made to provide care and comfort to his mother as a result of her injuries. In the result, I direct an award for special damages claimed by Mark Musselman in the amount of \$7,300.

[255] Mark was also very close to his mother. Although he was married with a family on the way, he still counted on his mother, indeed both his parents, for guidance, care and companionship. When Gloria suffered her fall, Mark's wife, Yael, was expecting their first child. Lucas was born on the 12th of June 2004. Since then, Mark and Yael, have a daughter, Ruby, who was born on the 10th of June 2007 and twin daughters, who were born during the trial. Mark described what a wonderful grandmother Gloria "would have been" and testified with honest emotion his regret that his mother could never "hold her grandchildren in her arms". His grief in this regard is relevant not only to the non-pecuniary damages that Gloria Musselman is entitled to, but also is relevant to the loss Mark experiences as a result of the care, guidance

and companionship that his mother will not be able to give to him and his young family. In all the circumstances, I have no hesitation in awarding Mark Musselman the sum of \$48,000, for his loss of guidance, care and companionship as a result of his mother's injuries.

The Claim for Damages by Leanna Wigboldus

[256] Leanna Wigboldus is Carolyn's daughter and Gloria's granddaughter. I have already noted the close relationship between Gloria Musselman and her granddaughter, Leanna. They were, it could be said, much more than grandmother and granddaughter. Gloria had cared for Leanna when she was an infant and while Carolyn was beginning her legal career, on a constant basis. Leanna was 11 years old at the time of her grandmother's fall and over the years they had become not simply grandmother – granddaughter, but very real friends. Gloria and Leanna often attended concerts or other events together. The evidence leads me to the conclusion that their relationship would have become even closer as Leanna passed through her teenage years into young womanhood. Fortunately, Leanna can still rely upon her grandmother for inspiration and advice. However, the care, constant guidance and companionship that she would undoubtedly otherwise have received from her grandmother has been significantly impacted by Gloria's injuries. She is therefore entitled to damages for that loss of care, guidance and companionship, which I set at \$22,000.

Damages Claimed by Lucas Musselman

[257] Lucas is the first child born to Mark Musselman and his wife Yael. Lucas was born on the 12th of June 2004 and was thus en ventre sa mere at the time of Gloria Musselman's fall.

This court must determine whether he is entitled to damages pursuant to section 61 of the *Family Law Act*, since he was not born at the time his grandmother suffered her injury.

[258] It is clear law that a claim pursuant to the *Family Law Act* is a derivative claim. It is dependent upon the merits of the claim brought by the principal plaintiff. It is also clear that the principal plaintiff must be a “person” at the time he or she is injured or killed. In *Seede v. Camco Inc.* (1985) 50 O.R (2d) 218 (H.C.J.) an action was brought by the mother and other family members claiming damages for the loss of guidance, care and companionship with respect to a child who was aborted as a result of an accident. Flinn L.J.S.C. held that an unborn child was not a “person” within the meaning of the *Family Law Reform Act* and that relatives had no right of action for loss of guidance, care and companionship.

[259] In *Paul et al v. Kurdyak*, MacKinnon A.C.J.O. stated:

When the *Family Law Reform Act* is looked at as a whole it is clear that a “person” in section 60 refers to a living person and a fetus does not fall within that definition either under the *Act* or at common law if it is stillborn. If there is to be a change in the law in our view it will have to be done by the legislature and there are a number of complicated and difficult issues to be resolved if that course were to be followed.

It may be noted that references to section 60 of the *Family Law Reform Act* in the earlier cases may be viewed as references to section 61 of the *Family Law Act* which replaced the *Family Law Reform Act*.

[260] Thus it is clear that the principal plaintiff must be a “person” living at the time of the incident that is the basis for the cause of action. It is, however, less than clear whether the derivative claimant or claimants must, as well, be “living” at that time. In opposing the claim

brought by Lucas Musselman, who was born after Gloria Musselman's fall, but was en ventre sa mere at the time, the defendants rely principally on the case of *MacIsaac et al v. Smith et al* (1987), O.J. No. 125 58 O.R. (2d) 289 (Divisional Court). In that case, the plaintiff sued for personal injury damages as a result of a motor vehicle accident which occurred in January 1984. Approximately 14 months after the accident, the plaintiff's granddaughter was born. The plaintiffs then moved for an order to amend the statement of claim to include the new granddaughter within the class of persons entitled to bring a claim pursuant to section 60 of the *Family Law Reform Act*. The motion was dismissed and the plaintiffs appealed to the Divisional Court. Mr. Justice Watt authored the decision of that court.

[261] In his thorough and thoughtful decision, Mr. Justice Watt analyzed a number of those, as he put it, "born into" and "marry into" cases, including *Seghers et al v. Double A Farms Limited et al* (1984), 46 O.R. (2d) 258, 9 D.L.R. (4th) 273, *Lister et al v. Mount Sinai Hospital et al*, [1984] 46 CPC 132 (Divisional Court), *Espinosa et al v. Garisto et al* (1986), O.J. No. 418 (Gen. Div.), *Ficht et al v. Kitchen et al* (1984), 47 O.R. (2d) 495 (S.C.O.), together with the decision in *Mason v. Peters et al* (1982), 39 O.R. (2d) 27, 139 D.L.R. (3d) 104 (O.C.A.). In the case of *Mason v. Peters*, Mr. Justice Robins (Zuber and Cory JJA concurring) dealt in principal with the effect of section 60 of the *Family Law Reform Act*. He stated at p. 34 O.R. and pp. 112 – 113 D.L.R.:

This section puts the law of Ontario relating to non-fatal injuries on the same basis as the law relating to fatal injuries; it creates a new statutory right of action enabling members of a family to recover losses resulting from non-fatal injuries to a family member caused by the tortious conduct of third persons, just as they are able to recover losses resulting from fatal injuries. Further, it enlarges the circle of relatives entitled to maintain the action beyond that provided for in the *Fatal Accidents Act*. And, most important, it specifically allows recovery of certain damages which may not have been recoverable under the *Fatal Accidents Act*,

particularly, for the purposes of this case, the loss of “guidance, care and companionship”.

His Lordship then went on to consider the nature of the statute as an aid to an interpretation of its provisions. He stated at pp. 37-8 O.R. and pp. 115-16 D.L.R.:

The *Family Law Reform Act* is a remedial statute and should be liberally construed so as to give full effect to the legislative intent. It recognizes, as its preamble states, the desirability of encouraging and strengthening the role of the family in society, and, in part 5, grants family members greater protection against family losses than was previously available to them. Relational interests within the family have long been recognized and accorded legal protection ...

Now, we have a general scheme of compensation covering family losses where injury, whether the injury is fatal or non-fatal, is caused by a third party to one of the family members. The right of action established by the *Act* evidences the legislature’s intention to accord greater recognition to the interest in family relations and provide greater protection against wrongful disturbance or destruction of that advantageous relationship. Consistent with that intent, section 60 (2) is aimed at repairing certain losses which may not fall within the pecuniary loss category and can properly be awarded on a non-pecuniary basis. Guidance, care and companionship cannot ordinarily be equated in dollar value; the deprivation of these important elements in a family relationship is not generally capable of computation on a strictly monetary basis; and while it cannot be said that they can never constitute economic benefits (*Dana v. Tosta et al*, [1968] S.C.R. 71, 66 D.L.R. (2d) 97), the connection can seldom be traced from one to the other. Guidance, care and companionship, including as they do in imponderable elements of loss, are essentially non-pecuniary in character.

[262] Mr. Justice Watt then went on to quote from the decision of Mr. Justice Osborne (as he then was) in the case of *Ficht et al v. Kitchen et al* (cited above). Mr. Justice Osborne stated at pp. 498-9 O.R.:

There are a number of restrictions imposed upon a section 60 claimant’s rights. The injured person must have a right to recover damages. In that sense, a section 60 claimant’s claim is subservient to the claim of the injured person. The section 60 claimant must fall within the defined class, that is be a spouse, etc. There can be no more than one action per occurrence against the alleged wrongdoer. The action cannot be brought after two years from the time the cause of action arose.

In that context reference to the cause of action must be the happening of the accident ...

Damages are to be assessed from the date of the accident. This, of course, does not exclude specific consideration of damages flowing years after the accident. In my view the entitlement of a person who claims damages must exist as at the date of the negligence giving rise to the claim in the first place ...

In the end result, it is my conclusion that had the legislature intended that post-accident marriages or adoptions, etc., might bring claimants within the class of beneficiaries referred to in section 60, the legislature would have clearly so provided. In my opinion Ms. Ficht cannot succeed under section 60 of the *Family Law Reform Act*, unless she was part of the class of authorized claimants at the time of the accident. Clearly she was not.

[263] In the *Ficht* case, Mr. Justice Osborne dismissed the family law claim of a wife who had married the principal plaintiff some 14 months after the accident, which gave rise to the cause of action.

[264] Mr. Justice Watt summarized in part his conclusions at p. 14 of his judgment. He stated:

In my view, with the greatest of respect to those who are of a contrary opinion, the decisions which deny access to section 60 *FLRA* relief unless the claimant falls within the statutorily delimited relationship at the time the principal cause of action arose, represent the proper interpretation to be accorded the provisions of section 60 *FLRA*. Such a conclusion, in my respectful view, not only gives effect to the plain meaning and grammatical sense of the words actually used by the legislators, but equally, is congruent with and amical to the manifest purpose which underlay its enactment.

It will be remembered that Mr. Justice Watt was addressing a situation where a claim was sought to be made by a child who was born 14 months after the cause of action arose.

[265] Mr. Justice Watt continued with his analysis at p. 16 of the judgment. He stated:

The coincidence or common source of the principal and derivative causes of action would seem to require, as a matter of logic and common sense, that those to

whom the statute affords a cause of action in consequence of the tort-feasor's conduct, stand in the necessary relationship, the one to the other or others, at the time the factual situation whose existence gives entitlement to such claim for relief, occurs. Relationships exist between ascertainable persons at a fixed point in time not in futuro. The manner in which section 60 (1) defines the class of claimants is by the degree, proximity or nature of the relationship to the claimant in the principal action from whom their entitlement derives. Such relationship can only exist between identifiable persons of the requisite degree of consanguinity or affinity at the time the cause of action arises.

[266] Mr. Justice Watt then went on to quote from the decision in *Paul et al v. Kurdyak* (noted above) in which the Ontario Court of Appeal determined that there was no right on the part of parents of a stillborn child to sue their obstetrician for negligence in causing the child's death. Since a stillborn child was not a "person" and could therefore not be a principal plaintiff there arose no derivative cause of action on the part of family members. Mr. Justice Watt then continued at p. 17 to make the statements principally relied on by the defendants. He stated:

It would seem clear from the decision in *Paul v. Kurdyak*, supra, that the principal action referred to in the introductory words of section 60 (1) cannot be maintained by one who is not a "person" in law. Put differently, to be a "person" for the purposes of section 60 (1) requires a life "in" being. To be a "spouse" or within the class of "children, grandchildren, parents, grandparents, brothers and sisters" of the principal claimant, requires at bottom that the one so related be a "person". If one is not a "person" it is a fortiori that one cannot be a person within a specified degree of relationship to another person. Indeed, it would seem somewhat anomalous to hold that whereas the principal claimant need be a "person" at the time the cause of action arose, the derivative claimant who statutorily must stand in a particular relationship to the principal to be entitled to the relief articulated in the subsection need not be a person at the time the cause of action from which his or her entitlement derives, arose.

To hold that the class of section 60 claimant is restricted to those alive and standing within the defined relationship at the time the principal cause of action arises, in my respectful view, is also compatible with the principal that a tort-feasor ought not to be left at risk beyond the statutorily prescribed period of limitation, at least in the absence of special circumstances. There must be some end to litigation.

[267] The above quote from Mr. Justice Watt's decision in *MacIsaac* would seem to be strong support for the defendants' contention that Lucas was not a "person" at the time of Gloria Musselman's fall and therefore has no right to claim damages as a grandchild pursuant to section 61 of the *Family Law Act*. I might note in passing that Mr. Justice Watt's concern that "a tortfeasor ought not to be left at risk beyond the statutorily prescribed period of limitation" is not an issue in a case involving a claimant who was en ventre sa mere at the time the cause of action arose.

[268] The issue of a child en ventre sa mere was specifically addressed by Master Clark in the case of *Stone v. Hartman* (1996), O.J. No. 3107 (O.C.J.-Gen Div). In this case, family law claims were initially made by the parents of a young man who had died as a result of alleged medical negligence. At the time of the death (when the cause of action arose), the deceased's mother was 18 weeks pregnant. The child, Tristan, was born some five months after his brother's death. His parents sought to add Tristan as a plaintiff in the proceedings claiming damages as a result of his brother's death. Master Clark gave heed to Justice Watt's comments in *MacIsaac* and decided at paragraph 24; "I find therefore that, Tristan Breen not being alive when the cause of action arose, is not an eligible claimant under the *Act*, and leave to add in as a third party is denied".

[269] The plaintiffs rely on a number of cases supporting their position that a child en ventre sa mere and who is subsequently born alive is entitled to bring a claim pursuant to section 61 of the *Family Law Act*. They cite the decision of Mr. Justice Osborne (as he then was) in the case of *Treverton v. Canada (Superintendent of Insurance)* (1989), O.J. No. 198, 67 O.R. (2d) 765, 57 D.L.R. (4th) 179 (H.C.J.). In this case, as a result of a tragic motor vehicle accident, family

members brought a number of claims under the *Family Law Act*. Because of the shortfall in insurance, the applicants also made claims against the respondent insurance company's standard form of automobile insurance policy, which policy contained an S.E.F. 42 underinsured motorist endorsement. One of the claimants, Christine Treverton, was en ventre sa mere at the time of the accident and was born approximately six months after the accident. She claimed damages under section 61 of the *Family Law Act* with respect to the deaths of her father and brother and with respect to severe injuries sustained by her brother, Kevin. The principal action was settled after trial had commenced and judgment was issued, further to minutes of settlement. The settlement provided for damages to Christine Treverton in excess of \$1,000,000. The question for determination by Mr. Justice Osborne was whether Christine was an "insured person" pursuant to the S.E.F. 42 endorsement. Mr. Justice Osborne determined that she was. He stated at paras. 40 and 41:

Christine Treverton presents a somewhat different problem. There is no doubt that upon being born, Christine was entitled to recover damages from the defendant owner and driver, occasioned by the defendant driver's negligence. The parties' settlement provides for the payment of damages to Christine. At that level of analysis, therefore, Christine's entitlement has been determined by consent. The settlement recognizes the clear authority for payment of damages to a child suffering injury in Christine's circumstances: see Fleming, *The Law of Torts*, 7th edition, page 152, *Duval v. Seguin* (1973), 1 O.R. (2d) 482, 40 D.L.R. (3d) 666 (Ont. C.A.), and *Watt v. Rama*, (1972), V.R. 353 (AUST. F.C.). In addition, part 6 of the *Family Law Act*, 1986, entitled "Amendments to the Common Law", section 66 provides:

66. No person is disentitled from recovering damages in respect of injuries for the reason only that the injuries were incurred before his or her birth.

The entitlement of Christine Treverton to damages is, however, a separate issue from the issue of whether Allstate as under insurer is required to pay her, under its S.E.F. 42 endorsement. It seems to me consistent with the scheme established through the S.E.F. 42 endorsement to view Christine as an insured person once she was born alive. Christine was clearly dependent upon her mother at the time

of the accident although she could not then be viewed as a person: see *Dehler v. Ottawa Civic Hospital* (1979), 25 O.R. (2d) 47, 101 D.L.R. (3d) 686, 14 C.P.C. 4 (Ont. H.C.J.). It seems to me that upon being born alive and in circumstances where she was totally dependent upon her mother, Christine became an insured person under clause 9 of the S.E.F. 42 endorsement. The definition of insured person, in the case of an unborn child born alive, should be liberally approached consistent with the intention underlying the introduction of the S.E.F. 42 endorsement to the lives of Ontario's drivers.

[270] Mr. Justice Osborne's decision does lend some weight to the plaintiff's position. It must be read with some caution however, bearing in mind that Christine's entitlement to damages was initially resolved on consent and the real issue for Mr. Justice Osborne was whether she was an "insured person" pursuant to the S.E.F. 42 endorsement.

[271] There are, however, two decisions that are arguably direct on point. It may be noted that both decisions were published after the decision of the Divisional Court in *MacIsaac*. The first decision is *Seede v. Delhey* (1989), O.J. No. 1413, 70 O.R. (2d) 692 (H.C.J.). In this case, the father of the infant plaintiff, a pedestrian, was struck down and killed by a motor vehicle operated by the defendant. The infant plaintiff was en ventre sa mere at the time her father was killed. She was born approximately 1 ½ months following her father's death. Mr. Justice Chadwick had to determine specifically whether a child en ventre sa mere could bring a claim pursuant to section 61 of the *Family Law Act*. In dealing with "after acquired rights", Mr. Justice Chadwick specifically considered *MacIsaac v. Smith* (quoted above). He also considered the decision of the Court of Appeal in *Pole v. Hendery* (1987), 61 O.R. (2d) 486, 43 D.L.R. (4th) 150, in which case the Court of Appeal adopted the reasoning of Mr. Justice Robbins in *Mason v. Peters* (quoted above). He then dealt with other jurisprudence dealing with claims under the *Workmen's Compensation Act* and the *Alberta Insurance Act*. More directly on point, at paras. 15 and 16 he stated:

Espinosa v. Garisto (1986), O.J. No. 418, 38 A.C.W.S. (2d) 155 (Ont. H.C.J.), dealt with a similar matter as to whether a child who was conceived prior to the death of the father and born after his death had any cause of action. Rosenberg J. held that the unborn child did have a claim under the *Family Law Reform Act*. Likewise, Sutherland J. in *McCartney v. Andrews* (1987), O.J. No. 1092 (June 17, 1987) (summarized 7 A.C.W.S.) (3) 187 (Ont. H.C.J.)), allowed a grandchild who was born two months after the deceased's death to make a claim under section 60 of the *Family Law Reform Act*.

In my view, these cases can be clearly distinguished from the cases dealing with after acquired rights. It would appear to be inequitable that a child who had been conceived before the death of his or her father and born alive would not be entitled to the same rights and benefits of his or her brothers and sisters. In applying the fiction, the legislatures undoubtedly were aware of the property rights which had developed over the years to protect the child "en ventre sa mere" and if they had intended to exclude this class of child, they would have specifically said so in the legislation. The reasoning of Justice Robbins in *Mason v. Peters* on the interpretation of the *Family Law Reform Act* would apply equally to the *Family Law Act*, 1986, and must, of course, receive a liberal interpretation to give full effect to the legislative intent.

[272] Mr. Justice Chadwick reached his conclusion at para. 17. He stated "In answer to the question posed for the court by the plaintiff, Candis Lori Francis Seede is entitled to maintain an action pursuant to the provisions of section 60 (1) of the *Family Law Act*, 1986".

[273] Approximately one year later, Mr. Justice West delivered his decision in the case of *Garland v. Rowsell* (1990), O.J. No. 822, 73 O.R. (2d) 280 (Ont. D.C.). In this case, there were two infant plaintiffs. One child was en ventre sa mere at the time of the motor vehicle accident which was the basis for the cause of action. The second child was born some 22 months after the accident. Mr. Justice West ruled on the entitlement of each of the infant plaintiffs to bring a cause of action for damages pursuant to section 61 of the *Family Law Act*. After analyzing a number of the cases which I have referred to above, including *MacIsaac v. Smith*, Mr. Justice West then focused on *Espinosa v. Garisto*, *McCartney v. Andrews* and *Seede v. Delhey* and specifically, Mr. Justice Chadwick's comments in *Seede*. Justice West concluded at para. 21;

The court was invited to find that the judgment in *Seede* had been wrongly decided and should not be followed in the light of the judgments in *MacIsaac* and *Pole*. I am not prepared to do so. I believe that the rights of a child en ventre sa mere can be distinguished from after acquired rights obtained through subsequent marriage. The key is to be found in a judgment in *Pole* which requires the existence of an “advantageous relationship” at the time of the tortious conduct. I am satisfied that the relationship which exists between an unborn child and his or her mother is very much an existing “advantageous” relationship so as to permit a claim to be made on behalf of the child after its birth.

In the result, Justice West permitted the action to continue on behalf of the child who was en ventre sa mere at the time of the motor vehicle accident, but denied the right of the child, who was born after the accident to pursue a claim pursuant to the *Family Law Act*.

[274] I will simply say that until appellate jurisprudence focusing directly on the issue decides otherwise, I am disposed to follow the wisdom of Mr. Justice Chadwick in *Seede* and Mr. Justice West in *Garland*. While a principal plaintiff must be a “person” living at the time the cause of action arises, the class of derivative plaintiffs set out in section 61 (1) of the *Family Law Act* includes a plaintiff who was en ventre sa mere at the time the cause of action arose; was then born and as a living person launched his or her claim for damages pursuant to section 61 of the *Family Law Act*. Specifically I find that Lucas Musselman had that special and advantageous relationship with his grandmother at the time of her fall that permits him to pursue his claim.

[275] As to the quantum of damages to which he is entitled, for the loss of guidance, care and companionship, as a result of his grandmother’s injuries, Lucas is not in the same position as Leanna. Lucas never knew his grandmother before her fall. He will never know the grandmother that was so very much a part of Leanna’s life for 11 years. He cannot feel the pain that Leanna must feel every time she sees her grandmother in her wheelchair, remembering the companionship that they once had. Gloria Musselman will, I know, continue to show love to all

her grandchildren, but neither Lucas nor his sisters born after him will ever truly know the close companion that Gloria was for 11 years to Leanna. In all the circumstances, I direct an award for damages for loss of guidance, care and companionship in favour of Lucas in the amount of \$5,000.

The Disposition of the Court

[276] For the above reasons, I conclude that 875667 Ontario Inc., carrying on business as Cities Bistro, Brian Heasman and the Corporation of the City of Toronto are jointly and severally liable for the damages which this court awards to the plaintiffs. 875667 Ontario Inc. and Brian Heasman, together share responsibility for 70% of those damages and the Corporation of the City of Toronto bears responsibility for 30% of the damages. The damages I award are as follows:

Gloria Musselman	
Damages for cost of future care (present value);	\$1,000,000.00
Special damages;	\$ 828,000.00
Non-pecuniary damages;	\$ 326,000.00
Gerald Musselman	
Damages for future loss of household services;	\$ 100,000.00
Special damages;	\$ 670,000.00
Non-pecuniary damages;	\$ 85,000.00
Karey Musselman	
Special damages;	\$ 56,452.52
Non-pecuniary damages;	\$ 30,000.00
Carolyn Musselman	
Special damages;	\$ 17,596.96
Non-pecuniary damages;	\$ 48,000.00
Mark Musselman	
Special damages;	\$ 7,300.00
Non-pecuniary damages;	\$ 48,000.00
Leanna Musselman	
Non-pecuniary damages;	\$ 22,000.00
Lucas Musselman	
Non-pecuniary damages;	\$ 5,000.00

[277] The total damages therefore amount to \$3,243,349.48. If I have misunderstood any of the agreements counsel have with respect to the quantum of some of the damages, if my calculations are in error or if I have otherwise overlooked some matter that should be attended to in this judgment, counsel are free to approach me in writing (on consent) or in person to settle this judgment. If counsel are unable to agree on the issue of costs, they may address me by written submissions directed to me in chambers. If counsel feel the need to address me in person on the issue of costs, they may arrange a date to do so with the trial coordinator.

[278] I wish to thank counsel, Mr. Morse for the plaintiffs and Mr. Rapporti for the defendants (ably assisted by Ms. Bingham) for their considerable assistance in this challenging and sensitive case. I commend counsel for their preparation and for their advocacy and most particularly for their general conduct of the trial. Their collegial courtesy and the courtesy they displayed to the witnesses was consistent with the highest standards expected of members of the Bar. Although cross-examinations were vigorous (and properly so) I do not believe that any witness ever felt abused. Counsel's ability to agree as to at least some of the quantum of damages, served to shorten considerably the length of the trial, which lasted in any event several weeks, to the benefit of their respective clients. I wish to thank counsel as well for their courtesy to the court. That was in large part the reason why it was a professional privilege to preside this trial.

[279] This case involved a tragedy. The evidence revealed no villains, only human beings who made tragic errors. These errors amounted to negligence, as a matter of law and resulted in the judgment which I have rendered.

[280] The damages which I have directed can never return Gloria Musselman to the vital wife, mother and grandmother she once was. I hope, however, this verdict will not only provide

compensation for the care she will continue to receive, but also provide some comfort and solace to Gloria Musselman and to the members of her family. I am confident that notwithstanding the physical challenges she faces on a day-to-day basis, her strength of character will sustain her and will provide an inspiration to all members of her family.

R.D. REILLY J.

Released: June 1, 2010

CITATION: Musselman et al v. 875667 Ontario Inc. et al, 2010 ONSC 3177

COURT FILE NO.: C-24-05

DATE: 2010-06-01

ONTARIO

SUPERIOR COURT OF JUSTICE

BETWEEN:

Gloria Musselman, V. Gerald Musselman,
Karey Musselman, Carolyn Musselman,
Mark Musselman, Leanna Wigboldus by her
Litigation Guardian Carolyn Musselman,
and Lucas Musselman by his Litigation
Guardian Mark Musselman

Plaintiffs

- and -

875667 Ontario Inc. carrying on business as
Cities Bistro, Brian Heasman, The
Corporation of the City of Toronto, Ida
Dominelli, Minas Tzortzis and Stella
Tzortzis and Fred Dominelli

Defendants

REASONS FOR JUDGMENT

R.D. Reilly J.

Released: June 1, 2010